Arch Insurance Company
(A Missouri Corporation)

Home Office Address:
2345 Grand Blvd,
Suite 900
Kansas City, MO 64108

Administrative Address:
Harborside 3
210 Hudson Street, Suite 600
Jersey City, NJ 07311-1107
Tel: (866) 413-5550

Binder of Insurance

Policy Number:	PCD1003118-04 Renewal of PCD1003118-03
Binder Period:	December 31, 2025 – January 30, 2026 or "Policy Issuance"
Agent / Broker Contact:	Jeremy Flom
Agent / Broker Firm:	Aon Risk Services Central, Inc.
Agent / Broker Address:	200 East Randolph Street, 9th Floor Chicago, IL 60601
Insured:	Weaver Holdings, LLC
Insured Address:	35 E. Wacker, Suite 1250 Chicago, IL 60601
Insurer:	Arch Insurance Company Admitted Carrier
Coverage:	Primary – Arch Corporate Canopy Policy Private Company Management Liability & Crime Insurance
Proposed Policy Period:	Inception Date: December 31, 2025 Expiration Date: December 31, 2026 (12:01 A.M. Local time at the address of the Insured shown above)

Total Premium:	**$44,932.00**
Additional Taxes, Fees and Surcharges:	**$0.00**

Only those Limits of Liability, Coverage Parts, Insuring Agreements, and Additional Defense Costs Limits designated with an X below are included in this Policy. If a Sublimit of Liability is $0, there shall be no coverage for any Loss within the scope of such Sublimit of Liability.

☒	**A.**	**Liability Coverage Parts Aggregate Limit of Liability:** $9,000,000

☐	**B.**	**Liability Coverage Parts Subject to Shared Limit of Liability – Shared Limit of Liability:**	
		☐	Directors, Officers, & Organization Liability Coverage Part
		☐	Employment Practices Liability Coverage Part
		☐	Fiduciary Liability Coverage Part
		☐	Network Security, Privacy, & Media Liability Coverage Part – Insuring Agreements A.1 Network and Privacy Liability and A.2 Media Liability

☒	**C.**	**Directors, Officers, & Organization Liability Coverage Part:**		
		Limit of Liability:	Retention:	Prior Litigation Date:
		$3,000,000	Insuring Agreement A: $0 Insuring Agreement B: $25,000 Insuring Agreement C: $25,000	06/12/2012
		☒	Additional Limit of Liability for Claims against Insured Persons – Limit of Liability: $1,000,000	
		Coverage Extensions and Sublimits:		
		Derivative and Books & Records Demands Coverage: Investigation Costs – Sublimit of Liability: $500,000		
		Appraisal Claim: Defense Costs and Investigation Costs– Sublimit of Liability: $250,000		
		Asset Protection Costs: Per Executive Sublimit of Liability – $50,000 Aggregate Sublimit of Liability – $250,000		
		Crisis Management Costs – Sublimit of Liability: $25,000		
		Insured Organization Investigation – Sublimit of Liability: $250,000		

☒	**D.**	**Employment Practices Liability Coverage Part:**		
		Limit of Liability:	Retention:	Prior Litigation Date:
		$3,000,000	Non-Indemnifiable Loss: $0 Loss Other Than Non-Indemnifiable Loss or Loss Resulting from a Mass Claim: $25,000 Loss resulting from a Mass Claim: $25,000	06/12/2002
		Wage & Hour Claim Defense Costs – Sublimit of Liability: $100,000		
		Coverage Extensions and Sublimits:		
		Workplace Violence – Sublimit of Liability: $250,000		
		Employee Privacy Claim – Sublimit of Liability: $250,000		
		Immigration Investigation Defense Costs – Sublimit of Liability: $50,000		

☒	E.	Fiduciary Liability Coverage Part:		
		Limit of Liability:	Retention:	Prior Litigation Date:
		$3,000,000	Non-Indemnifiable Loss: $0 All Loss other than Non-Indemnifiable Loss: $0	06/12/2012
		Coverage Sublimits:		
		Settlement Program: Voluntary Settlement and Defense Costs – Sublimit of Liability: $250,000		
		Internal Revenue Code Section 4975 Penalties – Sublimit of Liability: $250,000		
		HIPAA Penalties – Sublimit of Liability: $1,500,000		
		ERISA Section 502 (c) Penalties – Sublimit of Liability: $500,000		
		Pension Protection Act Penalties – Sublimit of Liability: $250,000		
		Patient Protection and Affordable Care Act Penalties – Sublimit of Liability: $250,000		

☒	F.	Crime Coverage Part:				
		Insuring Agreement:			Limit of Liability:	Retention:
		☒	A.	Employee Theft	$2,000,000	$10,000
		☒	B.	Customer Property	$2,000,000	$10,000
		☒	C.	Inside the Premises	$2,000,000	$10,000
		☒	D.	Outside the Premises	$2,000,000	$10,000
		☒	E.	Forgery or Alteration	$2,000,000	$10,000
		☒	F.	Computer Fraud	$2,000,000	$10,000
		☒	G.	Fraudulent Transfer Instructions	$2,000,000	$10,000
		☒	H.	Social Engineering Fraud	$250,000	$50,000
		☒	I.	Currency Fraud	$2,000,000	$10,000
		☒	J.	Charge Card Fraud	$2,000,000	$10,000
		Coverage Sublimits:				
		Investigation Costs – Sublimit of Liability: $100,000				
		Computer Restoration Costs – Sublimit of Liability: $100,000				

☐	G.	Kidnap & Ransom Coverage Part:			
		Security Consultant: Test			
		Insuring Agreement:			Limit of Liability
		☐	A.	Kidnap, Express Kidnapping & Extortion Costs	$0
		☐	B.	Custody Costs	$0
		☐	C.	Claims Costs	$0
		☐	D.	Response Costs Disappearance Sublimit of Liability: $0 Threat Incident Sublimit of Liability: $0 R&R Costs Sublimit of Liability: $0	$0
		☐	E.	Personal Injury Benefits	
				Death Benefit	$0
				Mutilation Benefit	$0
				Amputation, Blindness, or Deafness/Muteness Benefit	$0
		☐	F.	Repatriation Costs	$0
		☐	G.	Recall Costs	$0
		☐	H.	Express Kidnapping Response Costs	$0
		☐	I.	Hostage Crisis Response Costs	$0

☐	H.	**Network Security, Privacy & Media Liability Coverage Part:**		
		Limit of Liability:	Prior Litigation Date:	
		$0		
		Insuring Agreement:	Sublimit of Liability:	Retention:
	☐	A.1 Network and Privacy Liability	$0	$0
	☐	A.2 Media Liability	$0	$0
	☐	B.1 Data Incident Response	$0	$0
	☐	B.2 Business Interruption Forensic Accounting Firm Costs Sublimit of Liability: $0 Waiting Period:	$0	$0
	☐	B.3 Extortion	$0	$0
	☐	B.4 Reputation Harm Waiting Period:	$0	$0

☐	I.	**Additional Defense Costs:**		
		Coverage Parts	**Additional Defense Costs Limit**	**Shared Defense Limit**
		Directors, Officers, & Organization Liability	$0	☐
		Employment Practices Liability	$0	☐
		Fiduciary Liability	$0	☐

Premium Summary by Coverage Part:

Directors, Officers, & Organization Liability Coverage Part	$10,366.00
Employment Practices Liability Coverage Part	$25,736.00
Fiduciary Liability Coverage Part	$3,699.00
Crime Coverage Part	$5,131.00

Taxes, Fees and Surcharges: Any applicable Taxes, Fees and Surcharges are in addition to the Total Premium shown above.

Commission Percentage: 20.00%

Coverage for Certified Acts of Terrorism: Elected

Forms / Endorsements:

Form Number	Form Title
05 PCD0700 00 12 23	ARCH CORPORATE CANOPY 2.0 POLICY PRIVATE COMPANY MANAGEMENT LIABILITY, CRIME, KIDNAP & RANSOM, & AND NETWORK SECURITY INSURANCE
00 ML0012 00 09 04	SCHEDULE OF FORMS AND ENDORSEMENTS
05 ML0002 00 12 14	SIGNATURE PAGE (ARCH INSURANCE)
00 PCD0701 00 07 22	GENERAL PROVISIONS
00 ME6894 00 10 23	CANOPY PLUS (AON) (GENERAL PROVISIONS)
00 PCD0742 00 07 22	PRIOR LITIGATION DATE SCHEDULED LIMIT OF LIABILITY (ELECTED LIABILITY COVERAGE PART) D&O/EPL/FID - $1m xs $2m: 12/31/2025
00 PCD0726 00 07 22	ADDITIONAL INSURED ORGANIZATION(S) WITH PRIOR ACTIVITY EXCLUSION DATES JPC Ventures LLC JPC Energy LLC Landmarc Holdings, LLC JPC Holdings LLC. Weaver Consultants Group Northeast, LLC d/b/a Weaver Consultants Group Northeast Engineering Anchor Construction East, LLC Trinity Architecture LLC Trinity Architecture PLLC Weaver Consultants Group of North Carolina, PLLC
00 ME6813 00 07 23	SPECIFIED CLAIMANT EXCLUSION CLAIMS BROUGHT BY OR AGAINST John Briest
00 PCD0702 00 07 22	DIRECTORS, OFFICERS, & ORGANIZATION LIABILITY COVERAGE PART
00 ME6891 00 07 25	CANOPY PLUS (AON) (D&O)
00 PCD0703 00 07 22	EMPLOYMENT PRACTICES LIABILITY COVERAGE PART
00 ME6892 00 10 23	CANOPY PLUS (AON) (EPL)
00 ME6830 00 07 23	SEPARATE RETENTION FOR CLAIMS BROUGHT BY HIGH WAGE EARNERS (EMPLOYMENT PRACTICES LIABILITY COVERAGE PART) $200k Annual Compensation / $250k SIR
00 PCD0760 00 07 22	SCHEDULED STATE CLAIM RETENTION (EPL) California / $50k
00 ME7394 00 06 25	WAGE & HOUR WRONGFUL ACT ENDORSEMENT
00 ME6791 00 06 23	WAGE & HOUR EXCLUSION DEFENSE COST SUBLIMIT OUTSIDE CALIFORNIA (EPL COVERAGE PART) $100k
00 PCD0704 00 07 22	FIDUCIARY LIABILITY COVERAGE PART
00 ME6893 00 10 23	CANOPY PLUS (AON) (FIDUCIARY)
00 PCD0705 00 07 22	CRIME COVERAGE PART
00 ME6895 00 08 25	CANOPY PLUS (AON) (CRIME)
00 PCD0774 14 02 23	ILLINOIS AMENDATORY ENDORSEMENT
00 ML0065 00 06 07	U.S. TREASURY DEPARTMENT S OFFICE OF FOREIGN ASSETS CONTROL (OFAC)
00 MLT0027 00 12 19	TERRORISM COVERAGE DISCLOSURE NOTICE

Prior Acts Exclusion:	Directors & Officers	N/A
	Employment Practices Liability	N/A
	Fiduciary	N/A
Pending & Prior Litigation:	Directors & Officers	06/12/2012
	Employment Practices Liability	06/12/2002
	Fiduciary	06/12/2012
ERP Options:	Additional Period:	1 Year
	Additional Premium:	100% Of The Annualized Policy Premium
Run-Off Options:	Additional Period:	1 year
	Additional Premium:	100% Of The Annualized Policy Premium
	Additional Period:	3 years
	Additional Premium:	125% Of The Annualized Policy Premium
	Additional Period:	6 years
	Additional Premium:	150% Of The Annualized Policy Premium

Policy Issuance Subjectivities: None

This binder is conditioned upon the receipt, review and approval of additional information listed above, all of this additional information must be provided to the Company within fourteen (14) days of the effective date of this binder or the Company may, at its sole option, terminate this binder as of its effective date and cancel any policy which was issued pursuant to the binder.

Material Change in Risk: Prior to the effective date of this Policy, we should be immediately notified of any material change relevant to this binder (including, without limitation, claim and potential claim information). If such material change occurs, we may modify or withdraw this binder.

General Disclaimer: Any preceding binder issued by the Company is void in its entirety as of its inception date and replaced by this binder.

Signature:

Authorized by: Kieran Lacovara

Invoice Information

Gross Premium:	$44,932.00
Commission:	$8,986.40
Net Premium:	$35,945.60
Taxes, Fees & Surcharges:	$0.00
Total Due to Arch:	$35,945.60

Invoice Disclaimer: Payment of premium is due within 30 days of the effective date of this binder. Should premium not be received by the date due, this binder will be cancelled as of its effective date.

Payment Remittance:

Arch Insurance Company
Bank of America
Arch Insurance Company
P.O. Box 7411543
Chicago, IL 60674-1543

For Incoming Wire Transfers:
Bank of America
Routing/Transit (ABA) Number (wire only): 026-009-593
Routing/Transit (ABA) Number (ACH only): 011-200-365
Account Number: 0080239467

Overnight Express Mail Address
Arch Insurance Company (lockbox # **7411543**)
540 W. Madison St, 4th Floor
Chicago, IL 60661

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully**.

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – http://www.treas.gov/ofac.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

TERRORISM COVERAGE DISCLOSURE NOTICE

TERRORISM COVERAGE PROVIDED UNDER THIS POLICY

The Terrorism Risk Insurance Act of 2002 as amended and extended by the subsequent Terrorism Risk Insurance Program Reauthorization Acts (collectively referred to as the "Act") established a program within the Department of the Treasury, under which the federal government shares, with the insurance industry, the risk of loss from future terrorist attacks. An act of terrorism is defined as any act certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security and the Attorney General of the United States, to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of an air carrier or vessel or the premises of a United States Mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

In accordance with the Act, we are required to offer you coverage for losses resulting from an act of terrorism **that is certified under the federal program** as an act of terrorism. The policy's other provisions will still apply to such an act. Your decision is needed on this question: do you choose to pay the premium for terrorism coverage stated in this offer of coverage, or do you reject the offer of coverage and not pay the premium? You may accept or reject this offer.

If your policy provides commercial property coverage, in certain states, statutes or regulations may require coverage for fire following an act of terrorism. In those states, if terrorism results in fire, we will pay for the loss or damage caused by that fire, subject to all applicable policy provisions including the Limit of Insurance on the affected property. Such coverage for fire applies only to direct loss or damage by fire to Covered Property. Therefore, for example, the coverage does not apply to insurance provided under Business Income and/or Extra Expense coverage forms or endorsements that apply to those coverage forms, or to Legal Liability coverage forms or Leasehold Interest coverage forms.

Your premium will include the additional premium for terrorism as stated in the section of this Notice titled DISCLOSURE OF PREMIUM.

DISCLOSURE OF FEDERAL PARTICIPATION IN PAYMENT OF TERRORISM LOSSES

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. **The federal share equals 80% in years 2020 through 2027 of that portion of the amount of such insured losses that exceeds the applicable insurer deductible during Calendar Year 2020 and each Calendar Year thereafter through 2027.**

DISCLOSURE OF CAP ON ANNUAL LIABILITY

If the aggregate insured terrorism losses of all insurers exceed $100,000,000,000 during any Calendar Year provided in the Act, the Secretary of the Treasury shall not make any payments for any portion of the amount of such losses that exceed $100,000,000,000, and if we have met our insurer deductible, we shall not be liable for the payment of any portion of such losses that exceeds $100,000,000,000.

DISCLOSURE OF PREMIUM

Your premium for terrorism coverage is: $0.00
(This charge/amount is applied to obtain the final premium.)
You may choose to reject the offer by signing the statement below and returning it to us. Your policy will be changed to exclude the described coverage. If you chose to accept this offer, this form does not have to be returned.

REJECTION STATEMENT

I hereby decline to purchase coverage for certified acts of terrorism. I understand that an exclusion of certain terrorism losses will be made part of this policy.

______________________	Weaver Holdings, LLC
Policyholder/Legal Representative/Applicant's Signature	Named Insured
______________________	Arch Insurance Company
Print Name of Policyholder/Legal Representative /Applicant	Insurance Company
Date:	Policy Number: PCD1003118-04

Jackson Lewis Risk Management for Employment Practices Liability

Loss avoidance is better than loss recovery.

Arch Insurance Group is pleased to offer a comprehensive risk management service provided by Jackson Lewis to help manage your workforce proactively and reduce your exposure to employment claims. Since its founding in 1958, Jackson Lewis — a national firm employing over 1000 labor and employment lawyers — has exclusively represented management in cases involving a full spectrum of workplace law issues. As a result, Jackson Lewis has acquired a wealth of expertise in a broad range of employment matters.

Hotline for Employment Practices Risk Management: (908) 795-2981

Jackson Lewis provides a no-charge confidential call-in "Hotline" for companies insured by Arch Insurance. The Hotline can assist you on a broad range of employment related subjects such as forms of harassment, insubordination, wage and hour issues, leaves of absence, immigration processes, employment-at-will concepts, etc. The Hotline is an excellent place to initiate consideration of a decision, but is not intended to replace the relationship your company should develop with experienced employment counsel.
Jackson Lewis EPL Hotline:* (908) 795-2981

Online Tools for Employment Practices Risk Management: www.jacksonlewis.com

You can also access exclusive Jackson Lewis bulletins online, detailing trends and developments in labor and employment law, everything explained in practical and straightforward terms. What's more, when extraordinary circumstances arise, supplemental bulletins are developed. Even special regional bulletins are available, as well as industry-oriented publications.

**The Hotline is not intended to provide an answer as to whether any specific adverse personnel action should be taken. It provides general employment law advice only. Please note that the Hotline cannot be used to report service of an administrative charge, arbitration demand, service of lawsuits, or other notices*

Pursuing Better Together®

Please note that the independent risk management services offered by Jackson Lewis P.C. are accessible to you as a policyholder of Arch Insurance or one of its subsidiaries and affiliates. Arch Insurance is independent from Jackson Lewis P.C. and is not responsible for any fees or charges you may incur for services or products which may be offered to you, or for which you may contract with Jackson Lewis P.C. Under no circumstances should the recommendations, services or products of Jackson Lewis P.C. be construed as recommendations, services or products of Arch Insurance. By making this service provider accessible to you, Arch Insurance does not assume (and specifically disclaims) any duty, undertaking or responsibility to you regarding the employment risk management services of Jackson Lewis P.C.

ARCH INSURANCE COMPANY
(A Missouri Corporation)

Home Office Address:
2345 Grand Blvd, Suite 900
Kansas City, MO 64108

Administrative Address:
Harborside 3
210 Hudson Street, Suite 600
Jersey City, NJ 07311-1107
Tel: (866) 413-5550

ARCH CORPORATE CANOPY℠ 2.0 POLICY

PRIVATE COMPANY MANAGEMENT LIABILITY, CRIME, KIDNAP & RANSOM, AND NETWORK SECURITY INSURANCE

CERTAIN PARTS OF THIS POLICY PROVIDE CLAIMS MADE COVERAGE. EACH CLAIMS MADE LIMIT OF LIABILITY SHALL BE REDUCED BY DEFENSE COSTS PAYMENTS. IF ANY CLAIMS MADE COVERAGE LIMIT OF LIABILITY IS EXHAUSTED, THE INSURER SHALL HAVE NO FURTHER LIABILITY UNDER SUCH COVERAGE, INCLUDING LIABILITY FOR DEFENSE COSTS PAYMENTS.

DECLARATIONS

Policy No.: PCD1003118-04

Item 1. Named Organization & Address:
Weaver Holdings, LLC
35 E. Wacker, Suite 1250
Chicago, IL 60601

Item 2. Policy Period:
From: December 31, 2025
To: December 31, 2026
12:01 a.m. local time at the address stated in Item 1

Item 3. Policy Premium: $44,932.00
Premium attributable to Terrorism Risk Insurance: $0.00
☒ Included in Policy Premium
☐ In addition to Policy Premium

Item 4. Extended Reporting Period (Liability Coverage Parts only):
Additional Period: 1 Year
Additional Premium: 100% Of The Annualized Policy Premium

Item 5. Run-Off Period Options (Liability Coverage Parts only):

Only those Runoff Period options designated with an X below are included in this Policy:

Runoff Period		Additional Premium (% of the annualized Policy Premium)
☒	1 year	100% Of The Annualized Policy Premium
☒	3 years	125% Of The Annualized Policy Premium
☒	6 years	150% Of The Annualized Policy Premium

Item 6. Coverage Elections:

Only those Limits of Liability, Coverage Parts, Insuring Agreements, and Additional Defense Costs Limits designated with an X below are included in this Policy. If a Sublimit of Liability is $0, there shall be no coverage for any **Loss** within the scope of such Sublimit of Liability.

☒	**A.**	**Liability Coverage Parts Aggregate Limit of Liability:** $9,000,000 (Includes Additional Defense Cost Limit as described in Item 6.I.)

☐	**B.**	**Liability Coverage Parts Subject to Shared Limit of Liability – Shared Limit of Liability:**	
		☐	Directors, Officers, & Organization Liability Coverage Part
		☐	Employment Practices Liability Coverage Part
		☐	Fiduciary Liability Coverage Part
		☐	Network Security, Privacy, & Media Liability Coverage Part – Insuring Agreements A.1 Network and Privacy Liability and A.2 Media Liability

☒	**C.**	**Directors, Officers, & Organization Liability Coverage Part:**		
		Limit of Liability:	Retention:	Prior Litigation Date:
		$3,000,000	Insuring Agreement A: $0 Insuring Agreement B: $25,000 Insuring Agreement C: $25,000	06/12/2012
		☒	Additional Limit of Liability for Claims against Insured Persons – Limit of Liability: $1,000,000	
		Coverage Extensions and Sublimits:		
		Derivative and Books & Records Demands Coverage: Investigation Costs – Sublimit of Liability: $500,000		
		Appraisal Claim: Defense Costs and Investigation Costs– Sublimit of Liability: $250,000		
		Asset Protection Costs: Per Executive Sublimit of Liability – $50,000 Aggregate Sublimit of Liability – $250,000		
		Crisis Management Costs – Sublimit of Liability: $25,000		
		Insured Organization Investigation – Sublimit of Liability: $250,000		

☒	D.	**Employment Practices Liability Coverage Part:**		
		Limit of Liability:	Retention:	Prior Litigation Date:
		$3,000,000	Non-Indemnifiable Loss: $0 Loss Other Than Non-Indemnifiable Loss or Loss Resulting from a Mass Claim: $25,000 Loss resulting from a Mass Claim: $25,000	06/12/2002
		Wage & Hour Claim Defense Costs – Sublimit of Liability: $100,000		
		Coverage Extensions and Sublimits:		
		Workplace Violence – Sublimit of Liability: $250,000		
		Employee Privacy Claim – Sublimit of Liability: $250,000		
		Immigration Investigation Defense Costs – Sublimit of Liability: $50,000		

☒	E.	**Fiduciary Liability Coverage Part:**		
		Limit of Liability:	Retention:	Prior Litigation Date:
		$3,000,000	Non-Indemnifiable Loss: $0 All Loss other than Non-Indemnifiable Loss: $0	06/12/2012
		Coverage Sublimits:		
		Settlement Program: Voluntary Settlement and Defense Costs – Sublimit of Liability: $250,000		
		Internal Revenue Code Section 4975 Penalties – Sublimit of Liability: $250,000		
		HIPAA Penalties – Sublimit of Liability: $1,500,000		
		ERISA Section 502 (c) Penalties – Sublimit of Liability: $500,000		
		Pension Protection Act Penalties – Sublimit of Liability: $250,000		
		Patient Protection and Affordable Care Act Penalties – Sublimit of Liability: $250,000		

☒	F.	**Crime Coverage Part:**				
		Insuring Agreement:			Limit of Liability:	Retention:
		☒	A.	Employee Theft	$2,000,000	$10,000
		☒	B.	Customer Property	$2,000,000	$10,000
		☒	C.	Inside the Premises	$2,000,000	$10,000
		☒	D.	Outside the Premises	$2,000,000	$10,000
		☒	E.	Forgery or Alteration	$2,000,000	$10,000
		☒	F.	Computer Fraud	$2,000,000	$10,000
		☒	G.	Fraudulent Transfer Instructions	$2,000,000	$10,000
		☒	H.	Social Engineering Fraud	$250,000	$50,000
		☒	I.	Currency Fraud	$2,000,000	$10,000
		☒	J.	Charge Card Fraud	$2,000,000	$10,000
		Coverage Sublimits:				
		Investigation Costs – Sublimit of Liability: $100,000				
		Computer Restoration Costs – Sublimit of Liability: $100,000				

☐	G.	**Kidnap & Ransom Coverage Part:**		
		Security Consultant: Test		
		Insuring Agreement:		Limit of Liability
		☐	A. Kidnap, Express Kidnapping & Extortion Costs	
		☐	B. Custody Costs	
		☐	C. Claims Costs	
		☐	D. Response Costs Disappearance Costs Sublimit of Liability: Threat Incident Sublimit of Liability: R&R Costs Sublimit of Liability:	
		☐	E. Personal Injury Benefits	
			Death Benefit	
			Mutilation Benefit	
			Amputation, Blindness, or Deafness/Muteness Benefit	
		☐	F. Repatriation Costs	
		☐	G. Recall Costs	
		☐	H. Express Kidnapping Response Costs	
		☐	I. Hostage Crisis Response Costs	

☐	H.	**Network Security, Privacy, & Media Liability Coverage Part:**			
		Limit of Liability:		Prior Litigation Date:	
		Insuring Agreement:		Sublimit of Liability:	Retention:
		☐	A.1 Network and Privacy Liability		
		☐	A.2 Media Liability		
		☐	B.1 Data Incident Response		
		☐	B.2 Business Interruption Forensic Accounting Firm Costs Sublimit of Liability: Waiting Period:		
		☐	B.3 Extortion		
		☐	B.4 Reputation Harm Waiting Period:		

☐	I.	**Additional Defense Costs:**		
		Coverage Parts	**Additional Defense Costs Limit**	**Shared Defense Limit**
		Directors, Officers, & Organization Liability	$0	☐
		Employment Practices Liability	$0	☐
		Fiduciary Liability	$0	☐

Item 7. Notices to Insurer:

Claims or Potential Claims:
Arch Insurance Company
Executive Assurance Claims
1299 Farnam Street, Suite 500
Omaha, NE 68102
P.O. Box 542033
Omaha, NE 68154
Phone: 877 688-ARCH (2724)
Fax: 866 266-3630
E-mail: Claims@ArchInsurance.com

All Other Notices:
Arch Insurance Company
Executive Assurance Underwriting
Harborside 3
210 Hudson Street, Suite 600
Jersey City, NJ 07311-1107
Tel: (866) 413-5550

Item 8. Endorsements:

See attached schedule of endorsements and notices.

SCHEDULE OF FORMS AND ENDORSEMENTS

NAMED INSURED: Weaver Holdings, LLC **TERM**: December 31, 2025 to December 31, 2026
POLICY NUMBER: PCD1003118-04

ENDT. NO.	FORM NO.	TITLE
	05 ML0002 00 12 14	SIGNATURE PAGE (ARCH INSURANCE)
	00 PCD0701 00 07 22	GENERAL PROVISIONS
	00 ML0207 00 11 03 (00 ME6894 00 10 23)	CANOPY PLUS (AON) (GENERAL PROVISIONS)
	00 PCD0742 00 07 22	PRIOR LITIGATION DATE SCHEDULED LIMIT OF LIABILITY (ELECTED LIABILITY COVERAGE PART) D&O/EPL/FID - $1m xs $2m: 12/31/2025
	00 PCD0726 00 07 22	ADDITIONAL INSURED ORGANIZATION(S) WITH PRIOR ACTIVITY EXCLUSION DATES JPC Ventures LLC JPC Energy LLC Landmarc Holdings, LLC JPC Holdings LLC. Weaver Consultants Group Northeast, LLC d/b/a Weaver Consultants Group Northeast Engineering Anchor Construction East, LLC Trinity Architecture LLC Trinity Architecture PLLC Weaver Consultants Group of North Carolina, PLLC
	00 ML0207 00 11 03 (00 ME6813 00 07 23)	SPECIFIED CLAIMANT EXCLUSION CLAIMS BROUGHT BY OR AGAINST John Briest
	00 PCD0702 00 07 22	DIRECTORS, OFFICERS, & ORGANIZATION LIABILITY COVERAGE PART
	00 ML0207 00 11 03 (00 ME6891 00 07 25)	CANOPY PLUS (AON) (D&O)
	00 PCD0703 00 07 22	EMPLOYMENT PRACTICES LIABILITY COVERAGE PART
	00 ML0207 00 11 03 (00 ME6892 00 10 23)	CANOPY PLUS (AON) (EPL)
	00 ML0207 00 11 03 (00 ME6830 00 07 23)	SEPARATE RETENTION FOR CLAIMS BROUGHT BY HIGH WAGE EARNERS (EMPLOYMENT PRACTICES LIABILITY COVERAGE PART) $200k Annual Compensation / $250k SIR
	00 PCD0760 00 07 22	SCHEDULED STATE CLAIM RETENTION (EPL) California / $50k
	00 ML0207 00 11 03 (00 ME7394 00 06 25)	WAGE & HOUR WRONGFUL ACT ENDORSEMENT
	00 ML0207 00 11 03 (00 ME6791 00 06 23)	WAGE & HOUR EXCLUSION DEFENSE COST SUBLIMIT OUTSIDE CALIFORNIA (EPL COVERAGE PART) $100k
	00 PCD0704 00 07 22	FIDUCIARY LIABILITY COVERAGE PART
	00 ML0207 00 11 03 (00 ME6893 00 10 23)	CANOPY PLUS (AON) (FIDUCIARY)
	00 PCD0705 00 07 22	CRIME COVERAGE PART
	00 ML0207 00 11 03 (00 ME6895 00 08 25)	CANOPY PLUS (AON) (CRIME)
	00 PCD0774 14 02 23	ILLINOIS AMENDATORY ENDORSEMENT

ENDT. NO.	FORM NO.	TITLE
	00 ML0065 00 06 07	U.S. TREASURY DEPARTMENT S OFFICE OF FOREIGN ASSETS CONTROL (OFAC)
	00 MLT0027 00 12 19	TERRORISM COVERAGE DISCLOSURE NOTICE

Signature Page

IN WITNESS WHEREOF, Arch Insurance Company has caused this policy to be executed and attested.

Brian D. First	Regan Shulman
President	Secretary

GENERAL PROVISIONS

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In consideration of the payment of the premium and in reliance upon the **Application**, the Insurer specified in the Declarations (the **"Insurer"**) and the **Insureds** agree as follows:

GENERAL PROVISIONS

1. APPLICABILITY OF GENERAL PROVISIONS

A. Except as specifically provided herein, the General Provisions apply to all Coverage Parts.

B. Except as specifically provided therein, the provisions of each Coverage Part apply to such Coverage Part only.

C. If there is a conflict between the General Provisions and any Coverage Part, the provisions of the Coverage Part shall control.

2. DEFINITIONS

Whether used in the singular or plural, the following terms shall have the meanings specified below:

A. **"Antitrust Claim"** means any **Claim** for, based upon, arising from or in any way related to any **Antitrust Wrongful Act**, regardless of whether such **Claim** includes non-**Antitrust Wrongful Act** allegations.

B. **"Antitrust Wrongful Act"** means any actual or alleged price fixing, restraint of trade, price discrimination, predatory pricing, monopolization, unfair competition, or violation of any law regulating any of the foregoing, including, without limitation, the Federal Trade Commission Act, Sherman Act, Clayton Act, or any similar law.

C. **"Application"** means any:

1. application for this Policy, including any information submitted in connection with or incorporated therein;

2. public documents filed by an **Insured Organization** with the Securities and Exchange Commission or any similar state, local, or foreign regulatory agency during the 12 months prior to the inception of the **Policy Period**; and

3. warranty provided to the **Insurer** within the past 3 years in connection with any coverage part or policy of which this Policy is a renewal or replacement.

Application excludes any such public documents filed more than 12 months prior to the inception of the **Policy Period**.

Regarding the Crime Coverage Part, **Application** also means any application, including any information submitted in connection with or incorporated therein, submitted to the **Insurer** for any insurance policy of which this Policy is a direct or indirect renewal or replacement provided that coverage has been continuously maintained between the time that such insurance policy was issued and the issuance of this Policy.

D. **"Appraisal Claim"** means any written demand or civil proceeding brought by a security holder of an **Insured Organization** pursuant to any law which provides appraisal rights to determine the value of such **Insured Organization's** securities, including, without limitation, Section 262 of the Delaware General Corporation Law or any similar law, commenced by the receipt by, or service upon, an **Insured** of such demand or a petition or similar document initiating such proceeding.

E. **"Claim"** shall have the meaning specified in each applicable Coverage Part.

F. **"Claim Manager"** means any:

1. chief executive officer;
2. chief financial officer;
3. chief legal officer; or
4. risk manager,

of the **Named Organization**. If the Employment Practices Liability Coverage Part is elected in Item 6 of the Declarations, **"Claim Manager"** also means any manager responsible for overseeing the human resources activities of the **Named Organization**.

G. **"Contract Claim"** is a **Claim** for, based upon, arising from, or in any way related to any liability under any written contract or agreement, regardless of whether such **Claim** includes allegations other than those specified above.

H. **"Debtor in Possession"** means a "debtor in possession" as defined in Chapter 11 of the United States Bankruptcy Code or any similar law.

I. **"Defense Costs"** shall have the meaning specified in each applicable Coverage Part.

J. **"Domestic Partner"** means any natural person qualifying as a domestic partner under any federal, state or local law or under the provisions of any formal program established by any **Insured Organization**.

K. **"Employee"** shall have the meaning specified in each applicable Coverage Part.

L. **"Employee Privacy Claim"** means any **Claim** for, based upon, arising from, or in any way related to any **Employee Privacy Wrongful Act**, regardless of whether such **Claim** includes non-**Employee Privacy Wrongful Act** allegations.

M. **"Employee Privacy Wrongful Act"** means:

1. any actual or alleged failure by an **Insured** to protect the **Personal Information** of any **Employee**, **Executive**, applicant for employment with an **Insured Organization**, or **Independent Contractor** while in the care, custody or control of an **Insured**; or
2. any actual or alleged violation of any **Privacy Law** by any **Insured** regarding the **Personal Information** of any **Employee**, **Executive**, applicant for employment with an **Insured Organization**, or **Independent Contractor**.

N. **"ERISA"** means the Employee Retirement Income Security Act of 1974 (including amendments relating to the Consolidated Omnibus Budget Reconciliation Act of 1985, and the Health Insurance Portability and Accountability Act of 1996), the English Pension Scheme Act 1993, the English Pensions Act 1995, or any similar law.

O. **"Executive"** means any natural person who is, was, or becomes a duly elected or appointed:

1. director, officer, risk manager, or member of the board of managers or management committee of an **Insured Organization**;

2. in-house chief legal officer of an **Insured Organization** as well as any other natural person employed by an **Insured Organization** as an in-house attorney;

3. general partner of an **Insured Organization** organized as a limited partnership; or

4. manager of an **Insured Organization** organized outside the United States of America if such position is equivalent to those specified in 1, 2 or 3 above.

P. **"Extradition"** means any formal process by which an **Insured Person** is surrendered from his or her current country of employment and domicile to any other country for trial or to otherwise answer any criminal accusation.

Q. **"Extradition Costs"** means **Defense Costs** incurred to lawfully oppose any **Extradition**, including the appeal of any order or other grant of **Extradition**.

R. **"Immigration Investigation Claim"** means an investigation of any **Insured** commenced by the service upon such **Insured** of a notice of inspection, audit or investigation by any governmental agency for an Immigration **Investigation Wrongful Act**.

S. **"Immigration Investigation Wrongful Act"** means any actual or alleged violation of the Immigration Reform and Control Act of 1986 or any similar law.

T. **"Independent Contractor"** means any natural person working for an **Insured Organization** in the capacity of an independent contractor pursuant to an express contract or agreement with an **Insured Organization** governing the nature of such person's engagement.

U. **"Inquiry"** shall have the meaning specified in the Directors, Officers, & Organization Liability Coverage Part.

V. **"Insolvency"** means the status of an **Insured Organization** due to:

1. the appointment of any conservator, liquidator, receiver, trustee, or similar official to control, supervise, or liquidate such **Insured Organization**; or

2. such **Insured Organization** becoming a **Debtor in Possession**.

W. **"Insured Organization"** means:

1. the **Named Organization**; or

2. any **Subsidiary**;

including any such organization as a **Debtor in Possession**.

X. **"Insured Person"** shall have the meaning specified in each Coverage Part.

Y. **"Insured Person Investigation"** shall have the meaning specified in the Directors, Officers, & Organization Liability Coverage Part.

Z. **"Insureds"** shall have the meaning specified in each Coverage Part.

AA. **"Interrelated Wrongful Acts"** means **Wrongful Acts** that have as a common nexus any fact, circumstance, situation, event, transaction, cause or series of causally connected facts, circumstances, situations, events, transactions or causes.

BB. **"Liability Coverage Part"** means each of the following coverages: Directors, Officers, & Organization Liability Coverage Part; Employment Practices Liability Coverage Part; Fiduciary Liability Coverage Part; and Insuring Agreements A.1 Network and Privacy Liability and A.2 Media Liability of the Network Security, Privacy, & Media Liability Coverage Part. When used in the plural, this term means all such coverages.

CC. **"Loss"** shall have meaning specified in each Coverage Part.

DD. **"Management Control"** means the **Named Organization**:

1. directly or indirectly owning interests representing more than 50% of the voting, appointment or designation power for the selection of:

a. a majority of the board of directors of a corporation;

b. the members of the board of managers of a limited liability company; or

c. the general partners of a limited partnership; or

2. having the right, pursuant to a written contract or the articles of incorporation, bylaws, operating agreement, or equivalent organizational or governance documents of an entity, to control the operation of such entity.

EE. **"Named Organization"** means the organization named in Item 1 of the Declarations.

FF. **"Non-Indemnifiable Loss"** means any **Loss** incurred by an **Insured Person** that no **Insured Organization** can advance or indemnify because of:

1. legal prohibition; or

2. **Insolvency**.

GG. **"Non-Liability Coverage Part"** means each of the following coverages: Crime Coverage Part; Kidnap & Ransom Coverage Part; and Insuring Agreements B.1 Data Incident Response, B.2 Business Interruption, B.3 Extortion, and B.4 Reputation Harm of the Network Security, Privacy & Media Liability Coverage Part. When used in the plural, this term means all such coverages.

HH. **"Personal Information"** means any:

1. information from which a person may be uniquely and reliably identified or contacted, including, without limitation, any: (i) name; (ii) address; (iii) telephone number; (iv) social security number; (v) drivers license number or any other state identification number; (vi) medical or healthcare data, including protected health information; or (vii) credit, debit or other account numbers in combination with security codes, access codes, passwords or PIN numbers for such account numbers; or

2. non-public personal information as defined in any **Privacy Law**.

II. **"Plan"** shall have the meaning specified in the Fiduciary Liability Coverage Part.

JJ. **"Policy Period"** means the period specified in Item 2 of the Declarations, subject to any cancellation prior to the scheduled expiration date.

KK. **"Privacy Law"** means:

1. those parts of the following laws regulating the use and protection of non-public personal information:

a. Health Insurance Portability and Accountability Act of 1996 (HIPAA);

b. Gramm-Leach-Bliley Act of 1999 (GLBA);

c. Biometric Information Privacy Act (BIPA);

d. consumer protection and unfair and deceptive trade practice laws enforced by state Attorneys General or the Federal Trade Commission, including, without limitation, Section 5(a) of the Federal Trade Commission Act, 15. U.S.C § 45 (a); or

e. security breach notification laws that require notice to any person of the actual or potential theft of their non-public personal information, including, without limitation, the California Security Breach Notification Act of 2003 (CA SB1386); or

2. any similar law to those specified in 1 above that regulates the use and protection of non-public personal information.

LL. **"Pollutants"** means any solid, liquid, gaseous, biological, radiological or thermal contaminant or irritant, including, without limitation, smoke, vapor, soot, fumes, acids, alkalis, chemicals, mold, fungi, odors, noise, lead, oil or oil products, radiation, asbestos or asbestos containing products, waste or any electric, magnetic, or electromagnetic field of any frequency. "Waste" includes, without limitation, material to be recycled, reconditioned, or reclaimed. **"Pollutants"** also means any substance identified on a list of hazardous substances issued by any governmental agency, including, without limitation, the Environmental Protection Agency.

MM. **"Products-Services Claim"** means any **Claim** for, based upon, arising from or in any way related to any products or services offered by any **Insured Organization** for a customer or client, including, without limitation, any defect, deficiency, inadequacy, malfunction, misrepresentation or false advertising, failure to warn, warranty, failure to perform or meet expectations, of or for any product or service, regardless of whether such **Claim** includes allegations other than those specified above.

NN. **"Subsidiary"** means any:

1. for-profit organization while under **Management Contr**ol; or

2. not-for-profit organization or entity that is a foundation, charitable trust, or political action committee in which, and for as long as, the **Named Organization** exclusively sponsors such entity or organization.

OO. **"Wage & Hour Claim"** means any **Claim** for, based upon, arising from, or in any way related to any **Wage & Hour Wrongful Act**, regardless of whether such **Claim** includes non-**Wage & Hour Wrongful Act** allegations.

PP. **"Wage & Hour Wrongful Act"** means any actual or alleged act, error, omission, misstatement, misleading statement, neglect or breach of duty involving any: (i) violation of federal, state, local or common law regarding the payment of compensation to any person; (ii) violation of the Fair Labor Standards Act (except the Equal Pay Act) or any similar law; (iii) overtime compensation; (iv) on-call time compensation, including, without limitation, compensation for waiting time and dressing time; (v) minimum wage or prevailing wage compensation; (vi) classification of employees for the purpose of determining eligibility for compensation; (vii) meal or rest periods; (viii) work scheduling, including, without limitation, predictive work scheduling; (ix) reimbursement of expenses; or (x) maintenance of accurate records relating to any law, compensation or activity mentioned in items (i) through (ix).

QQ. **"Wrongful Act"** shall have the meaning specified in each **Liability Coverage Part**.

3. COVERAGE TERRITORY

A. This Policy shall apply on a worldwide basis.

B. If a judgment is rendered, a settlement is denominated, or any other element of **Loss** is stated or incurred in a currency other than in United States of America dollars, payment of such **Loss** shall be made in either such other currency, at the option of the **Insurer** and if agreeable to the **Named Organization**, or in United States of America dollars at the rate of exchange published in the Wall Street Journal on the date that the **Insurer's** obligation to pay such **Loss** is established. If the Wall Street Journal is not published on such date, the rate of exchange published in the Wall Street Journal on its next publication date shall apply.

4. SPOUSAL, DOMESTIC PARTNER, ESTATE, & LEGAL REPRESENTATIVE COVERAGE

Regarding the **Liability Coverage Parts**, coverage shall apply to a **Claim** made against the lawful spouse or **Domestic Partner** of an **Insured Person** or, if an **Insured Person** dies, becomes incapacitated, or files for bankruptcy, such **Insured Person's** estate, trustee, beneficiaries, heirs, assigns, or legal representatives provided that:

A. such **Claim** arises solely out of such person's:

1. status as the spouse, **Domestic Partner**, trustee, beneficiary, heir, assign, or legal representative of such **Insured Person**; or

2. ownership of property sought as recovery for a **Wrongful Act**; and

B. no coverage shall apply to any **Claim** for any actual or alleged act, error, omission, misstatement, misleading statement, neglect, or breach of duty of such persons or entities.

Coverage for such **Claim** shall be on the same terms and conditions (including, without limitation, the Retention) as apply to a **Claim** made against an **Insured Person**.

5. EXTENDED REPORTING PERIOD

Regarding the **Liability Coverage Parts**:

A. If this Policy is canceled or not renewed, other than cancellation for non-payment of premium, the **Insureds** shall have the right to elect a continuation of coverage for the Additional Period stated in Item 4 of the Declarations (the "Extended Reporting Period"). If elected, the Extended Reporting Period shall commence upon the effective date of such cancellation or non-renewal. Such continuation of coverage shall apply only to any:

1. **Claim** first made against the **Insureds** during the Extended Reporting Period for a **Wrongful Act** occurring prior to the end of the **Policy Period**; or

2. **Inquiry** first made against an **Insured Person** during the Extended Reporting Period for matters, circumstances, or **Wrongful Acts** occurring prior to the end of the **Policy Period**,

that is otherwise covered under this Policy.

B. The rights contained in this Section shall terminate unless a written notice of election together with the additional premium stated in Item 4 of the Declarations is received by the **Insurer** within 30 days after the effective date of cancellation or non-renewal.

C. The additional premium for the Extended Reporting Period shall be fully earned at the inception of the Extended Reporting Period. The Extended Reporting Period is not cancelable.

D. There is no separate limit of liability for the Extended Reporting Period.

6. LIMIT OF LIABILITY & COVERAGE COORDINATION

A. Regarding the **Liability Coverage Parts**:

1. The Limit of Liability specified in Item 6 of the Declarations for each **Liability Coverage Part** shall be the maximum aggregate amount that the **Insurer** shall pay under such **Liability Coverage Part**.

2. Notwithstanding 1 above, if the Liability Coverage Parts Aggregate Limit of Liability option is elected in Item 6.A of the Declarations:

   a. such single Aggregate Liability Coverage Parts Limit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under all **Liability Coverage Parts** combined; and

   b. any amount specified as a Limit of Liability for an elected **Liability Coverage Part** shall be:

      1. the maximum aggregate amount that the **Insurer** shall pay under such **Liability Coverage Part**; and

      2. part of, and not in addition to, the amount specified as the Aggregate Liability Coverage Parts Limit of Liability.

3. Notwithstanding 1 above, if the Liability Coverage Parts Subject to Shared Limit of Liability - Shared Limit of Liability option is elected in Item 6.B of the Declarations:

   a. such single shared Limit of Liability shall apply to all **Liability Coverage Parts** designated in Item 6.B of the Declarations and be:

      1. the maximum aggregate amount that the **Insurer** shall pay under all shared **Liability Coverage Parts** combined; and

      2. part of, and not in addition to, the amount specified as the Aggregate Liability Coverage Parts Limit of Liability; and

b. any amount specified as a Limit of Liability for an designated shared **Liability Coverage Part** shall be:

1. the maximum aggregate amount that the **Insurer** shall pay under such **Liability Coverage Part**; and

2. part of, and not in addition to, the amount specified as the Shared Liability Coverage Parts Limit of Liability.

4. **Defense Costs** shall be part of, and not in addition to, each applicable Limit of Liability. Payment of **Defense Costs** by the **Insurer** shall reduce each applicable Limit of Liability.

5. If any **Loss** is covered under two or more **Liability Coverages Parts**:

a. **Loss** covered under the Employment Practices Liability Coverage Part shall be paid prior to paying **Loss** under any other **Liability Coverage Part**;

b. the **Insureds** shall be entitled to recover **Loss** only once; and

c. the maximum aggregate amount that the **Insurer** shall pay for all **Loss** arising from a **Claim**, including **Loss** resulting from any **Claims** arising out of the same **Wrongful Act**, **Interrelated Wrongful Acts** or fact, circumstance, situation, event, transaction, or cause that are deemed a single **Claim**, shall not exceed the single greatest remaining Limit of Liability of any applicable **Liability Coverage Part**.

B. **Additional Defense Costs Limit of Liability**

1. If Additional Defense Costs coverage is elected in Item 6.I of the Declarations, the Additional Defense Costs Limit specified shall be available to pay Defense Costs for Claims covered under the designated Liability Coverage Part ("Additional Defense Costs").

2. The Additional Defense Costs Limit specified shall be the maximum amount the Insurer shall pay for Additional Defense Costs for each designated **Liability Coverage Part**; however, if the Shared Defense Limit option is elected, the maximum amount the Insurer shall pay for Additional Defense Costs for all designated **Liability Coverage Parts** combined shall not exceed the largest Additional Defense Cost Limit listed.

3. Notwithstanding 6.A.4 above, the Additional Defense Costs Limits shall be: (i) in addition to, and not part of, any limit of liability otherwise applicable to any designated Liability Coverage Part; and (ii) part of, and not in addition to, any Liability Coverage Parts Aggregate Limit of Liability specified in Item 6 of the Declarations.

4. Loss shall be allocated between, and paid by the Insurer under, the Additional Defense Costs Limit and any limit of liability otherwise applicable to the elected Liability Coverage Parts in whatever portions will maximize the total amount of covered Loss being paid under this Policy.

C. If any applicable Limit of Liability of this Policy is exhausted by the payment of **Loss**, the premium for this Policy shall be fully earned.

7. **RETENTION**

Regarding the **Liability Coverage Parts**:

A. The **Insurer** shall pay **Loss** resulting from each **Claim** covered under any **Liability Coverage Part** only to the extent such **Loss** exceeds the applicable Retention specified in Item 6 of the Declarations or elsewhere in this Policy.

B. Each Retention shall be uninsured, provided that any Retention applicable to a **Claim** made against an **Insured Person** may be paid by any Side A DIC insurer.

C. Any **Loss** paid by the **Insurer** under any **Liability Coverage Part** pursuant to a duty to defend or otherwise that is within any applicable Retention shall be reimbursed by any **Insured Organization** upon the **Insurer's** request.

D. If a **Claim** is subject to multiple Retentions, then each Retention shall apply separately to such **Claim**, provided that the total Retention for such **Claim** shall not exceed the largest applicable Retention.

E. No Retention shall apply to **Non-Indemnifiable Loss**.

F. All **Insured Organizations** shall provide indemnification for **Loss**, and advance **Defense Costs**, on behalf of any **Insured Person** to the fullest extent permitted or required by law. If such indemnification or advancement is permitted or required by law and all such **Insured Organizations**:

1. refuse in writing to indemnify or advance; or

2. fail to indemnify or advance within 60 days after any written request of an **Insured Person** for such indemnification or advancement,

then any coverage under any **Liability Coverage Part** for such **Insured Person** shall apply without any Retention and such **Insured Organizations** shall reimburse the **Insurer** for the Retention that would have applied if such indemnification or advancement had been made. Such reimbursement shall become immediately due and payable as a direct obligation of such **Insured Organizations** to the **Insurer**. The refusal or failure of any **Insured Organization** to indemnify or advance shall not impair the rights of any **Insured Person** under this Policy.

8. DEFENSE & SETTLEMENT OF CLAIMS

Regarding the **Liability Coverage Parts**:

A. Insured Duty to Defend & Current Advancement of Defense Costs

1. It shall be the duty of the **Insureds** to defend any **Claim**, provided that the **Insurer** shall have the right to effectively associate with the **Insureds** in the defense of any **Claim** and make any investigation it deems appropriate.

2. At the written request of the **Insureds**, the **Insurer** shall advance on a current basis covered **Defense Costs** excess of the applicable Retention. If the **Insurer** and the **Insureds** disagree on the amount of covered **Defense Costs**, then the **Insurer** shall advance **Defense Costs** on a current basis that it believes to be covered under this Policy, if any, until a different amount shall be agreed upon or determined pursuant to the provisions of this Policy and applicable law. If it is subsequently determined that **Defense Costs** that have been advanced are not covered under this Policy, then such **Defense Costs** shall be repaid to the **Insurer** by any **Insured Organization** or

Insured Person severally by the entity or person on whose behalf such advancement was made.

B. Insurer Duty to Defend after Tender of Defense

1. The **Named Organization** shall have the option to tender the defense of any **Claim** against an **Insured** to the **Insurer** other than any:

a. **Antitrust Claim**;

b. **Appraisal Claim**;

c. **Contract Claim**;

d. **Employee Privacy Claim**;

e. **Immigration Investigation Claim**;

f. **Product-Services Claim**; or

g. **Wage & Hour Claim**.

2. To elect the option described in 1 above, the **Named Organization** shall provide written notice of its election to the **Insurer** no later than the earlier of: (i) 30 days after a **Claim** is deemed first made; or (ii) such time as a **Claim** is first reported to the **Insurer**.

3. If the **Named Organization** properly tenders the defense of a **Claim** to the **Insurer**:

a. the **Insurer** shall have the right and duty to defend such **Claim**, even if such **Claim** is groundless, false or fraudulent;

b. the **Insurer's** duty to defend such **Claim** shall end upon exhaustion of any applicable Limit of Liability; and

c. the **Insurer** may settle any **Claim** for a monetary amount that the **Insurer** deems reasonable, provided the **Insurer** has the written consent of the **Insureds**, such consent not to be unreasonably withheld.

C. Insurer Consent

The **Insureds** shall neither admit nor assume any liability, make any settlement offer, enter into any settlement agreement, stipulate to any judgment, or incur any **Defense Costs** or any other fees or expenses for any **Claim** or other matter without the prior written consent of the **Insurer**, such consent not to be unreasonably withheld. The **Insurer** shall not be liable for any admission, assumption, offer, settlement, stipulation, **Defense Costs** or any other costs or expenses to which it has not consented.

D. Duty of Cooperation and Severability

The **Insureds** shall give to the **Insurer** all information and cooperation as the **Insurer** may reasonably request. The failure of any **Insured Person** to cooperate with the **Insurer** shall not affect coverage for any other **Insured Person**.

E. Claim Settlement – Retention Discount and Waiver

1. If the **Insureds** consent to the first settlement offer by the **Insurer** for a **Claim** and such offer is accepted by the claimant, the applicable Retention specified in Item 6 of the Declarations shall be reduced by 10% and the **Insurer** shall reimburse the **Insureds** for any covered **Loss** paid by the **Insureds** within such Retention.

2. Notwithstanding any other provision of this Policy, the **Insurer** shall reimburse the **Insureds** for any covered **Defense Costs** paid by the **Insureds** within the Retention otherwise applicable to a **Claim**, provided that such **Claim**:

   a. has been resolved by a:

      1. final adjudication with prejudice pursuant to a trial, motion to dismiss, or motion for summary judgment; or

      2. complete and final settlement with prejudice,

      establishing that none of the **Insureds** named in such **Claim** are liable for any **Loss**; and

   b. is not subject to a Retention of $100,000 or any greater amount.

9. ALLOCATION

Regarding the **Liability Coverage Parts**:

A. Defense Costs – Insured Duty to Defend

If the **Insureds** have the duty to defend a **Claim** and the **Insureds** incur **Defense Costs** that are only partially covered by this Policy because a **Claim** includes both covered and uncovered matters or because a **Claim** is made against both covered and uncovered parties, then **Defense Costs** shall be allocated based upon the relative legal and financial exposures of any covered and uncovered matters or covered and uncovered parties.

B. Defense Costs – Insurer Duty to Defend

If the **Insurer** has the duty to defend a **Claim** pursuant to Section 8.B of this Policy and the **Insureds** incur **Defense Costs** that are only partially covered by this Policy because a **Claim** includes both covered and uncovered matters or because a **Claim** is made against both covered and uncovered parties, then 100% of **Defense Costs** incurred by an **Insured** shall be allocated to covered **Loss**.

C. Allocation of Loss Other Than Defense Costs

If **Loss** other than **Defense Costs** arising from a **Claim** is only partially covered by this Policy because a **Claim** includes both covered and uncovered matters or because a **Claim** is made against both covered and uncovered parties, then such **Loss** shall be allocated based upon the relative legal and financial exposures of any covered and uncovered matters or covered and uncovered parties.

If the **Insurer** and the **Insureds** cannot agree on allocation of **Loss**, then the **Insurer** shall make an interim payment of the amount of **Loss** which the parties agree is not in dispute until a final amount is agreed upon or determined pursuant to the provisions of this Policy and applicable law.

10. CLAIM AND POTENTIAL CLAIM NOTICES

Regarding the **Liability Coverage Parts**:

A. As a condition precedent to coverage, the **Insureds** shall give the **Insurer** written notice of any **Claim** as soon as practicable after any **Claim Manager** first becomes aware of such **Claim**, but no later than 90 days after the end of the **Policy Period** or the Extended Reporting Period, if applicable. Such notice shall specify the **Liability Coverage Part** under which notice is being given.

B. If, during the **Policy Period**, any **Claim Manager** becomes aware of a **Wrongful Act** that may reasonably be expected to give rise to a **Claim** against an **Insured** for which coverage may be available under a **Liability Coverage Part**, and if written notice of such **Wrongful Act** is given to the **Insurer** during the **Policy Period** specifying the (i) reasons for anticipating such a **Claim**, (ii) nature and date of the **Wrongful Act**, (iii) identity of the **Insureds** involved, (iv) injuries or damages sustained, (v) names of potential claimants, (vi) manner in which the **Insureds** first became aware of the **Wrongful Act** and (vii) the **Liability Coverage Part** under which such notice is being given, then any **Claim** subsequently arising from such **Wrongful Act** shall be deemed to be a **Claim** first made at the time that the **Insurer** receives such notice.

C. Notice of an **Inquiry** is optional and at the **Insureds'** sole discretion. An **Inquiry** shall not be deemed a **Claim** unless and until it is noticed to the **Insurer**. If the **Insureds** elect to seek coverage for an **Inquiry**, written notice of such **Inquiry** must be provided to the **Insurer** during the **Policy Period**. If written notice of an **Inquiry** is provided to the **Insurer** during the **Policy Period**, then such **Inquiry** shall be deemed a **Claim** first made at the time that the **Insurer** receives such notice.

An **Inquiry** received by the **Insureds** prior to the **Policy Period** may be noticed under this Policy provided that: (i) such **Inquiry** was received by the **Insureds** at a time when a previous policy issued by the **Insurer** was in effect and such previous policy would have provided coverage for such **Inquiry** had such **Inquiry** been noticed under such policy; and (ii) the coverage described in (i) has been continuously maintained in effect with the **Insurer** up until the commencement of this Policy. Except for the foregoing, no coverage is provided under this Policy for any **Inquiry** received by the **Insureds** prior to the **Policy Period**.

D. Regardless of the **Liability Coverage Part** under which a notice of **Claim** or potential **Claim** is given by the **Insureds**, the **Insurer** shall be entitled to make its own determination as to which **Liability Coverage Part**, if any, **Loss** is covered and should be paid.

E. No coverage shall be provided for any fees or expenses for any **Claim** to the extent that such fees or expenses have been incurred prior to the furnishing of written notice of such **Claim** to the **Insurer**.

11. INTERRELATED CLAIMS

Regarding the **Liability Coverage Parts**, all **Claims** arising from, based upon, or in any way related to the same **Wrongful Act**, any **Interrelated Wrongful Acts**, or the same or related fact, circumstance, situation, event, transaction, or cause shall be deemed to be a single **Claim** for all purposes under this Policy that is first made on the earliest date that:

A. any of such **Claims** was commenced, even if such date is before the **Policy Period**;

B. proper notice of such **Wrongful Act** or **Interrelated Wrongful Act** was given and accepted as sufficient to the **Insurer** pursuant to Section 10.B above; or

C. notice of such **Wrongful Act**, **Interrelated Wrongful Act**, or fact, circumstance, situation, event, transaction, or cause was given and accepted as sufficient under any prior directors and officers liability, employment practices liability, fiduciary liability, or similar liability policy.

No coverage is provided for any **Claim** first made, or deemed first made, prior to the **Policy Period**.

12. SUBROGATION

A. The **Insurer** shall be subrogated to all of the **Insureds'** rights of recovery regarding any payment of **Loss** under this Policy. The **Insureds** shall do everything necessary to secure and preserve such rights, including, without limitation, the execution of any documents necessary to enable the **Insurer** to effectively bring suit in the name of the **Insureds**. The **Insureds** shall do nothing to prejudice the **Insurer's** position or any rights of recovery. The failure of any **Insured Person** to comply with this section shall not affect the rights of any other **Insured Person**. Any successful subrogation by the **Insurer** shall reinstate the Limit of Liability by the amount of the net recovery of such successful subrogation.

B. Regarding the **Liability Coverage Parts**, the **Insurer** shall not subrogate against any **Insureds** or any direct or indirect shareholder of the **Named Organization**.

C. If the **Insurer** exercises its subrogation rights and recovers **Loss** from a person or entity causing such **Loss**, such recovery shall be applied as follows:

1. first, to the costs incurred by the **Insurer** in making such recovery;

2. second, to **Loss** incurred by an **Insured** in excess of the sum of the applicable Limit of Liability and Retention of this Policy;

3. third, to **Loss** paid by the **Insurer** under this Policy; and

4. last, to the Retention applicable to such **Loss** under this Policy.

13. OTHER INSURANCE

Coverage under this Policy shall apply only in excess of any other valid and collectible insurance or bond regardless of whether such other insurance or bond is stated to be excess, contributory, contingent or otherwise, unless such other insurance or bond is written specifically excess of this Policy by reference in such other insurance or bond to this Policy's policy number.

Notwithstanding the above, if **Loss** is covered under this Policy and is also covered under any:

A. management liability insurance policy issued to a security holder of an **Insured Organization**;

B. personal umbrella excess liability insurance purchased by or on behalf of an **Insured Person**; or

C. personal director liability insurance purchased by or on behalf of an **Insured Person**,

coverage under this Policy shall apply as primary insurance for **Loss** resulting from a **Wrongful Act** of an **Executive**, regardless of any indemnification that may be owed to such **Executive** by a security holder of an **Insured Organization**.

14. ORGANIZATIONAL CHANGES

A. Takeover of Named Organization

If, during the **Policy Period**:

1. any person or entity or group of persons and/or entities acting in concert acquires securities which result in ownership by such person(s) and/or entity(ies) of more than 50% of the outstanding securities representing the present right to vote for the election of directors or equivalent positions of the **Named Organization**; or

2. the **Named Organization** merges into or consolidates with another organization such that the **Named Organization** is not the surviving organization,

then coverage shall continue for: (i) regarding any **Liability Coverage Part**, **Loss** resulting from any **Wrongful Act**, matter or circumstance occurring before such transaction; and (ii) regarding any **Non-Liability Coverage Part**, **Loss** resulting from any covered event occurring before such transaction. Regarding any **Liability Coverage Part**, no coverage shall be available for any act, error, omission, misstatement, misleading statement, neglect, breach of duty, matter or circumstance occurring, or alleged to have occurred, after such transaction. Regarding any **Non-Liability Coverage Part**, no coverage shall be available for any **Loss** resulting from any event occurring after such transaction. Upon such transaction, the entire premium for this Policy shall be deemed fully earned. The **Insureds** shall give the **Insurer** written notice of such transaction as soon practicable, but not later than 90 days after the effective date of such transaction.

B. Acquisition or Creation of New Subsidiary

If, before or during the **Policy Period**, any **Insured Organization**:

1. acquires or creates a **Subsidiary**; or

2. merges with another organization such that the **Insured Organization** is the surviving entity,

then such newly acquired, created, or merged organization and its **Insureds** shall be covered for: (i) regarding any **Liability Coverage Part**, **Loss** resulting from any otherwise covered **Wrongful Act**, matter or circumstance occurring after such transaction; and (ii) regarding any **Non-Liability Coverage Part**, **Loss** resulting from any covered event occurring after such transaction.

C. Subsidiary Coverage

Regarding any **Subsidiary**, coverage shall be limited to: (i) regarding any **Liability Coverage Part**, **Loss** resulting from any otherwise covered **Wrongful Act**, matter or circumstance occurring while such entity or organization is a **Subsidiary**; and (ii) regarding any **Non-Liability Coverage Part**, **Loss** resulting from any covered event occurring while such entity or organization is a **Subsidiary**. No coverage is provided for any actual or alleged act, error, omission, misstatement, misleading statement, neglect, breach of duty, matter, circumstance, or event of any **Subsidiary** or any **Insured Person** or **Plan** of such **Subsidiary** occurring or alleged to have occurred prior to such entity or organization becoming a **Subsidiary** or after such entity or organization ceased to be a **Subsidiary**.

15. RUNOFF PERIOD

Regarding the **Liability Coverage Parts**:

A. If a transaction described in Section 14. Organizational Changes, A. Takeover of Named Organization (the "Takeover") occurs during the **Policy Period**, other than an acquisition by, merger into, or consolidation with, an entity or organization whose securities are offered to the public or any direct or indirect subsidiary of such entity or organization, the **Insureds** shall have the right to elect a continuation of coverage for one of the Runoff Period options stated in Item 5 of the Declarations (the "Runoff Period"). If no Runoff Option is designated in Item 5 of the Declarations, the Insureds shall not have the right to elect such continuation of coverage. If elected, the Runoff Period shall commence upon the effective date of the Takeover and the **Policy Period** shall end at such time. Such continuation of coverage shall apply only to any:

1. **Claim**, other than an **Insured Person Investigation** or an **Inquiry**, first made against the **Insureds** during the Runoff Period for a **Wrongful Act** occurring prior to the Takeover; or

2. **Insured Person Investigation** or **Inquiry** first made against an **Insured Person** during the Runoff Period for matters or circumstances occurring prior to the Takeover, that is otherwise covered under this Policy.

B. The rights contained in this Section shall terminate unless a written notice of election together with the applicable additional premium stated in Item 5 of the Declarations is received by the **Insurer** within 30 days after the effective date of the Takeover. Such written notice shall specify the Runoff Period option selected by the **Insureds**.

C. The additional premium for the Runoff Period shall be fully earned at the inception of the Runoff Period. The Runoff Period is not cancelable.

D. There is no separate limit of liability for the Runoff Period.

16. PRIORITY OF LOSS PAYMENTS

Regarding the **Liability Coverage Parts**:

A. If **Loss** is incurred that is acknowledged by the **Insurer** to be covered under this Policy except that such **Loss** exceeds the remaining Limit of Liability for this Policy, the **Insurer** shall pay such **Loss**, subject to the applicable Limits of Liability, in the following priority:

1. first, the **Insurer** shall pay **Loss** incurred by an **Insured Person** other than **Loss** indemnified by an **Insured Organization**;

2. second, the **Insurer** shall pay **Loss** incurred by an **Insured Person** that is indemnified by an **Insured Organization**;

3. third, the **Insurer** shall pay any other **Loss**.

B. If **Loss** is incurred by an **Insured Organization** that is acknowledged by the **Insurer** to be covered under this Policy, the **Named Organization** shall have the right to direct the **Insurer** to delay payment of such **Loss** until such time as the **Named Organization** specifies. Any such direction by the **Named Organization** to delay payment of **Loss** shall be authorized by the board of directors or other governing board of the **Named Organization** and conveyed by written notice to the **Insurer** from the chief executive officer of the **Named Organization**. The **Insurer's** liability under this Policy shall not be increased, and the **Insurer** shall not be liable for any interest, as a result of any such delayed **Loss** payment. Any such delayed **Loss** payment shall be available to the **Insurer** to pay **Loss** incurred by an **Insured Person** other than **Loss** indemnified by an **Insured Organization**. Any such payment of **Loss** incurred by an **Insured Person** out of funds withheld pursuant to this provision shall terminate the **Insurer's** obligation to make a delayed **Loss** payment on behalf of an **Insured Organization**.

C. Except as otherwise provided in this Section, the **Insurer** may pay **Loss** without regard to any other current or future payment obligations under this Policy.

17. APPLICATION

A. If the **Application** contains any material misrepresentation or omission of information made with intent to deceive or that materially affects the acceptance of the risk or the hazard assumed by the **Insurer** under this Policy, the **Insurer** shall not pay **Loss**, including **Loss** in connection with any **Claim**, for, based upon, arising from, or in any way related to any:

1. **Insured Person** who knew at the inception of the **Policy Period** of such information, including **Loss** resulting from indemnification of any such **Insured Person**; or

2. **Insured Organization** or **Plan** if:

   a. regarding all Coverage Parts other than the Crime Coverage Part, the **Named Organization's** chief executive officer or chief financial officer; or

   b. regarding the Crime Coverage Part, the **Named Organization's** chief executive officer or chief financial officer or the person signing the **Application**,

   knew at the inception of the **Policy Period** of such information.

The above provision shall apply regardless of whether the **Insured Person**, the **Named Organization's** chief executive officer or chief financial officer, or the person signing the **Application** was aware that the above described information had been misrepresented or omitted from the **Application**.

B. Except as described above, knowledge possessed by any **Insured** shall not be imputed to any other **Insured**.

C. Notwithstanding any provision of this Policy, the **Insurer** shall not rescind this Policy.

D. The **Application** shall be deemed attached to, and incorporated into, this Policy.

18. SUITS AGAINST THE INSURER

A. No suit or other proceeding shall be commenced by the **Insureds** against the **Insurer** unless there shall have been full compliance with all the terms and conditions of this Policy.

B. No person or organization shall have any right under this Policy to join the **Insurer** as a party to any **Claim** against the **Insureds** nor shall the **Insurer** be impleaded by the **Insureds** in any **Claim**.

19. ENTIRE AGREEMENT

This Policy, including the Declarations, General Provisions, elected Coverage Part(s), written endorsements, and the **Application** shall constitute the entire agreement between the **Insurer** and the **Insureds** regarding the insurance provided hereunder.

20. POLICY CHANGES

This Policy shall not be changed in any manner except by a written endorsement issued by the **Insurer**.

21. ASSIGNMENT

Assignment of any interest under this Policy shall not bind the **Insurer** unless such assignment is acknowledged by a written endorsement issued by the **Insurer**.

22. NAMED ORGANIZATION'S AUTHORITY

The **Named Organization** shall act on behalf of all **Insureds** regarding all matters under this Policy, including, without limitation, cancellation, election of the Extended Reporting Period, transmission and receipt of notices, reporting of **Claims** and potential **Claims**, acceptance of endorsements, payment of premiums, and receipt of return premiums.

23. CANCELLATION

A. The **Insurer** may cancel this Policy for non-payment of premium by sending not less than 20 days notice to the **Named Organization**. This Policy may not otherwise be cancelled by the **Insurer**.

B. Except as otherwise provided, the **Named Organization** may cancel this Policy by sending written notice of cancellation to the **Insurer**. Such notice shall be effective upon receipt by the **Insurer** unless a later cancellation date is specified therein.

C. If the **Insurer** or the **Named Organization** cancels this Policy, unearned premium shall be calculated on a pro rata basis. Payment of any unearned premium shall not be a condition precedent to the effectiveness of a cancellation. The **Insurer** shall make payment of any unearned premium as soon as practicable.

24. BANKRUPTCY

A. Bankruptcy or **Insolvency** of any **Insureds** shall not relieve the **Insurer** of any of its obligations under this Policy.

B. If a bankruptcy or I**nsolvency** of an **Insured Organization** occurs, the **Insurer** and **Insureds** shall cooperate to obtain relief from any stay or injunction preventing the payment of policy proceeds for the benefit of **Insured Persons**.

25. NOTICES

A. Notices to the **Insureds** shall be sent to the **Named Organization** at the address specified in Item 1 of the Declarations.

B. Notices to the **Insurer** shall be sent to the applicable address specified in Item 7 of the Declarations and become effective upon receipt at such address.

C. All notices and supporting documents shall be submitted in writing in English.

26. TITLES

The titles of the sections of, and endorsements to, this Policy are for reference only. Such titles shall not be part of the terms and conditions of coverage.

27. REFERENCES TO LAWS

A. Any statute, act, or code mentioned in this Policy shall be deemed to include all amendments of, and rules and regulations promulgated under, such statute, act, or code.

B. The phrase “any similar law” following any statute, act, or code mentioned in this Policy shall be deemed to include all similar laws of all jurisdictions throughout the world, including, without limitation, any common law.

28. STATE AMENDATORY INCONSISTENCY

If there is an inconsistency in language between a state amendatory endorsement to this Policy and any provisions of this Policy, the **Insurer** shall apply the language that is more favorable to the **Insureds** provided such application is permitted by law.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CANOPY PLUS
(AON)
(GENERAL PROVISIONS)

Regarding the General Provisions, it is agreed that:

1. APPLICATION DEFINITION – WARRANTY

Section 2. Definitions C, "Application" 3 is deleted and replaced by:

3. warranty provided to the **Insurer** in connection with any coverage part or policy of which this Policy is a renewal or replacement.

2. CLAIM MANAGER – REMOVE RISK MANAGER AND HR DIRECTOR

Section 2. Definitions F, "Claim Manager" is deleted and replaced by:

F. "Claim Manager" means any:

1. chief executive officer;

2. chief financial officer; or

3. chief legal officer;

of the **Named Organization**.

3. EMPLOYEE PRIVACY WRONGFUL ACT DEFINITION

Section 2. Definitions M, "Employee Privacy Wrongful Act" is deleted and replaced by:

M. "Employee Privacy Wrongful Act" means:

1. any actual or alleged failure by an **Insured**, or a third party on an **Insured's** behalf, to protect the **Personal Information** of any **Employee**, **Executive**, applicant for employment with an **Insured Organization**, or **Independent Contractor**; or

2. any actual or alleged violation of any **Privacy Law** by any **Insured**, or a third party on an **Insured's** behalf, regarding the **Personal Information** of any **Employee**, **Executive**, applicant for employment with an **Insured Organization**, or **Independent Contractor**.

4. ERISA DEFINITION – PENSION BENEFITS STANDARDS ACT

Section 2. Definitions N, "ERISA" is deleted and replaced by:

N. "ERISA" means the Employee Retirement Income Security Act of 1974 (including amendments relating to the Consolidated Omnibus Budget Reconciliation Act of 1985, and the Health Insurance Portability and Accountability Act of 1996), the English Pension Scheme Act 1993, the English Pensions Act 1995, the Pension Benefits Standards Act 1985, or any similar law.

5. EXECUTIVE DEFINITION – COMMITTEE, BOARD OBSERVER, DE FACTO DIRECTOR, SHADOW DIRECTOR, CIO, AND RESPONSIBLE PERSONS

Section 2. Definitions O, "Executive" is deleted and replaced by:

O. **"Executive"** means any natural person who is, was, or becomes a duly elected or appointed:

1. director, officer, risk manager, or member of the board of managers or committee of an **Insured Organization** including, without limitation, the Chief Information Officer or Data Protection Officer;

2. in-house chief legal officer of an **Insured Organization** as well as any other natural person employed by an **Insured Organization** as an in-house attorney;

3. general partner of an **Insured Organization** organized as a limited partnership;

4. board observer of an **Insured Organization**;

5. de facto director of an **Insured Organization**;

6. shadow director of any **Subsidiary** incorporated or domiciled in the United Kingdom or the Republic of Ireland as defined in Section 741 of the United Kingdom's Companies Act 1985; or

7. manager of an **Insured Organization** organized outside the United States of America if such position is equivalent to those specified above, including, without limitation, European Union and United Kingdom "Responsible Persons".

6. EXTRADITION DEFINITION - TREATY

Section 2. Definitions P, "Extradition" is deleted and replaced by:

P. **"Extradition"** means any formal process (including but not limited to a written request pursuant to a treaty) by which an **Insured Person** is surrendered from his or her current country of employment and domicile to any other country for trial or to otherwise answer any criminal accusation.

7. PERSONAL INFORMATION DEFINITION

Section 2. Definitions HH "Personal Information" is deleted and replaced by:

HH. **"Personal Information"** means any:

1. information from which a person may be uniquely and reliably identified or contacted, including, without limitation, any: (i) name; (ii) address; (iii) telephone number; (iv) social security number; (v) drivers license number or any other state identification number; (vi) biometric identifier or biometric information; (vii) medical or healthcare data, including protected health information; or (viii) credit, debit or other account numbers in combination with security codes, access codes, passwords or PIN numbers for such account numbers; or

2. non-public personal information as defined in any **Privacy Law**.

Regarding the Network Security, Privacy, & Media Liability Coverage Part, **Personal Information** shall have the meaning specified in the Network Security, Privacy, & Media Liability Coverage Part.

8. <u>PRIVACY LAW DEFINITION</u>

Section 2. Definitions KK, "Privacy Law" is deleted and replaced by:

KK. "Privacy Law" means:

1. any of the following laws:

a. Health Insurance Portability and Accountability Act of 1996 (HIPAA);

b. Gramm-Leach-Bliley Act of 1999 (GLBA);

c. Biometric Information Privacy Act (BIPA);

d. European Union General Data Protection Regulation (GDPR);

e. California Consumer Privacy Act (CCPA);

f. consumer protection or unfair and deceptive trade practice laws, including, without limitation, Section 5(a) of the Federal Trade Commission Act, to the extent any such laws are applied to non-public personal information;

g. security breach notification laws that require notice to any person of the actual or potential theft of their non-public personal information, including, without limitation, the California Security Breach Notification Act; or

2. any similar law to those specified in 1 above that regulates non-public personal information.

Regarding the Network Security, Privacy, & Media Liability Coverage Part, **Privacy Law** shall have the meaning specified in the Network Security, Privacy, & Media Liability Coverage Part.

9. <u>CRISIS MANAGEMENT COSTS – COVERAGE COORDINATION</u>

Section 6. Limit of Liability & Coverage Coordination is amended to add:

If any **Crisis Management Costs** are covered under two or more Coverage Parts, the maximum aggregate amount that the **Insurer** shall pay for all **Crisis Management Costs** arising out of the same fact, circumstance, situation, event, transaction, or cause shall not exceed the single greatest remaining Sublimit of Liability applicable to **Crisis Management Costs**.

10. <u>CLAIM SETTLEMENT – SETTLEMENT WITHIN 50% OF THE RETENTION</u>

Section 8. Defense & Settlement of Claims, C. is amended to add:

Notwithstanding the above, the **Insureds** may make a settlement offer of a **Claim** without the **Insurer's** prior consent if the total amount of **Loss** for such **Claim**, including **Loss** resulting from any other **Claims** arising out of the same **Wrongful Act** or **Interrelated Wrongful Acts** that are deemed to be a single **Claim**, does not exceed 50% of the applicable Retention.

11. ALLOCATION – BEST EFFORTS

Section 9. Allocation, A and C are deleted and replaced by:

A. Defense Costs – Insured Duty to Defend

If the **Insureds** have the duty to defend a **Claim** and the **Insureds** incur **Defense Costs** that are only partially covered by this Policy because a **Claim** includes both covered and uncovered matters or because a **Claim** is made against both covered and uncovered parties, then **Defense Costs** shall be allocated based upon the relative legal and financial exposures of any covered and uncovered matters or covered and uncovered parties. In making such a determination, the **Insurer** and the **Insureds** shall use their best efforts to determine a fair and proper allocation of all such amounts.

C. Allocation of Loss Other Than Defense Costs

If **Loss** other than **Defense Costs** arising from a **Claim** is only partially covered by this Policy because a **Claim** includes both covered and uncovered matters or because a **Claim** is made against both covered and uncovered parties, then such **Loss** shall be allocated based upon the relative legal and financial exposures of any covered and uncovered matters or covered and uncovered parties. In making such a determination, the **Insurer** and the **Insureds** shall use their best efforts to determine a fair and proper allocation of all such amounts.

12. NOTICE TO THE POLICY

Section 10. Claim and Potential Claim Notices, is amended to add:

Written notice to the **Insurer** under A., B., or C. above shall be deemed notice under the Policy in its entirety.

13. SUBSIDIARY CLARIFICATION

Section, 14. Organizational Changes, C is deleted and replaced by:

C. Subsidiary Coverage

Regarding any **Insured Organization** that is or was at any time a **Subsidiary**, coverage shall be limited to: (i) regarding any **Liability Coverage Part**, **Loss** resulting from any otherwise covered **Wrongful Act**, matter or circumstance occurring while such entity or organization is a **Subsidiary**; and (ii) regarding any **Non-Liability Coverage Part**, **Loss** resulting from any covered event occurring while such entity or organization is a **Subsidiary**. No coverage is provided for any actual or alleged act, error, omission, misstatement, misleading statement, neglect, breach of duty, matter, circumstance, or event of any **Subsidiary** or any **Insured Person** or **Plan** of such **Subsidiary** occurring or alleged to have occurred prior to such entity or organization becoming a **Subsidiary** or after such entity or organization ceased to be a **Subsidiary**.

14. INSOLVENCY EXTENSION AND RUNOFF QUOTE

Section 14. Organizational Changes, is amended to add:

D. Insolvency Extension and Runoff Quote

If the **Named Organization** gives the **Insurer** written notice of a potential **Insolvency**, liquidation or any other wind down restructuring, together with all information requested by the **Insurer**, then the **Insurer** shall furnish the **Insured** with a quote for:

1. an extension of the **Policy Period for** up to one (1) year ("Insolvency Extension Quote"); and

2. a continuation of coverage for up to six (6) years ("Insolvency Runoff Quote").

Such quotes shall be on such terms and conditions, including any additional premium, as the **Insurer,** in its sole discretion, chooses. If the **Named Organization** accepts the Insolvency Extension Quote or Insolvency Runoff Quote then Section 5, Extended Reporting Period and Section 15. Runoff Period are deleted.

15. <u>PRE-AGREED RUN-OFF – PUBLIC SHELL TRANSACTION, 90 DAYS ELECTION, UNEARNED RETURN PREMIUM</u>

Section 15. Runoff Period, A and B are deleted and replaced by:

A. If a transaction described in Section 14. Organizational Changes, A. Takeover of Named Organization (the "Takeover") occurs during the **Policy Period**, other than if the **Named Organization** is acquired by, merges into, or consolidates with a Special Purpose Acquisition Company ("SPAC"), blank check company, or other publicly traded company with substantially no operations, the **Insureds** shall have the right to elect a continuation of coverage for one of the Runoff Period options stated in Item 5 of the Declarations (the "Runoff Period"). If no Runoff Option is designated in Item 5 of the Declarations, the **Insureds** shall not have the right to elect such continuation of coverage. If elected, the Runoff Period shall commence upon the effective date of the Takeover and the **Policy Period** shall end at such time. Such continuation of coverage shall apply only to any:

1. **Claim,** other than an **Insured Person Investigation** or an **Inquiry**, first made against the **Insureds** during the Runoff Period for a **Wrongful Act** occurring prior to the Takeover; or

2. **Insured Person Investigation** or **Inquiry** first made against an **Insured Person** during the Runoff Period for matters or circumstances occurring prior to the Takeover,

that is otherwise covered under this Policy.

B. The rights contained in this Section shall terminate unless a written notice of election together with the applicable additional premium stated in Item 5 of the Declarations is received by the **Insurer** within 90 days after the effective date of the Takeover. Such written notice shall specify the Runoff Period option selected by the **Insureds**. If elected, any unearned premium shall be calculated on a pro rata basis and will be credited against the amount of the Additional Premium due.

16. <u>BANKRUPTCY STAY WAIVER</u>

Section 24. Bankruptcy, is amended to add:

If a voluntary or involuntary petition is filed for any **Insured Organization** under Chapter 11 of the United States Bankruptcy Code or any similar law:

1. none of the **Insureds** shall object or make any opposition to any efforts by the **Insurer** to pay **Loss** under the Policy (including a motion for relief from an automatic stay or otherwise); and

2. the **Insureds** shall waive and release any automatic stay or injunction that may apply to the proceeds of the Policy as a result of such bankruptcy petition.

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED ORGANIZATION(S) WITH PRIOR ACTIVITY EXCLUSION DATES

It is agreed that:

A. Regarding the General Provisions, the definition of **Insured Organization** is amended to add the following entity(ies):

JPC Ventures LLC, JPC Energy LLC, Landmarc Holdings, LLC, JPC Holdings LLC., Weaver Consultants Group Northeast, LLC d/b/a Weaver Consultants Group Northeast Engineering, Anchor Construction East, LLC, Trinity Architecture LLC, Trinity Architecture PLLC, Weaver Consultants Group of North Carolina, PLLC

B. “Prior Activity Date” means:

N/A

C. Regarding each **Liability Coverage Part**, the **Insurer** shall not pay **Loss** in connection with any **Claim** against the entity(ies) specified in A above or any **Insureds** of such entity(ies) for, based upon, arising from, or in any way related to any act, error, omission, misstatement, misleading statement, neglect or breach of duty occurring, or alleged to have occurred on or before the Prior Activity Date, or after the Prior Activity Date if related to any act, error, omission, misstatement, misleading statement, neglect or breach of duty occurring, or alleged to have occurred, on or before the Prior Act Date.

D. Regarding each **Non-Liability Coverage Part**, the **Insurer** shall not pay for **Loss** sustained on or prior to the Prior Activity Date by the entity(ies) specified in A above or any **Insureds** of such entity(ies).

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SPECIFIED CLAIMANT EXCLUSION
CLAIMS BROUGHT BY OR AGAINST

This endorsement applies to each **Liability Coverage Part** designated with an “X” below:

☒ Director, Officers, & Organization Liability Coverage Part
☒ Employment Practices Liability Coverage Part
☒ Fiduciary Liability Coverage Part
☐ Network Security, Privacy, & Media Liability Coverage Part – Insuring Agreements A.1 Network and Privacy Liability and A.2 Media Liability

It is agreed that the **Insurer** shall not pay **Loss** in connection with any **Claim** brought by, on behalf of or against, or in any way related to the following entity(ies) and/or person(s):

John Briest

If any of the above is an entity, then this exclusion shall also apply to any **Claim** brought by, on behalf of or against, or in any way related to any subsidiary of any such entity, or any past, present or future director, officer, partner, owner, affiliate, member, member of the board of managers or management committee, or employee of any such entity or any person whose labor or service was, is, or shall be engaged or directed by any such entity.

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

DIRECTORS, OFFICERS, & ORGANIZATION LIABILITY COVERAGE PART

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DIRECTORS, OFFICERS, & ORGANIZATION LIABILITY COVERAGE PART

1. INSURING AGREEMENTS

A. Insured Person Liability

Except for **Loss** paid as indemnification by an **Insured Organization**, the **Insurer** shall pay **Loss** on behalf of any **Insured Person** resulting from a **Claim** first made against such **Insured Person** during the **Policy Period** or Extended Reporting Period, if applicable.

B. Organization Reimbursement

The **Insurer** shall pay **Loss** on behalf of an **Insured Organization** that such **Insured Organization** is permitted or required to indemnify any **Insured Person** resulting from a **Claim** first made against such **Insured Person** during the **Policy Period** or Extended Reporting Period, if applicable.

C. Organization Liability

The **Insurer** shall pay **Loss** on behalf of an **Insured Organization** resulting from a **Claim** first made against such **Insured Organization** during the **Policy Period** or Extended Reporting Period, if applicable.

2. DEFINITIONS

Whether used in the singular or plural, the following terms shall have the meanings specified below:

A. **"Asset Protection Costs"** means reasonable fees and expenses incurred by or on behalf of an **Executive** to:

1. oppose any efforts by any **Investigating Authority** to seize or otherwise enjoin the personal assets or real property of an **Executive** or to revoke, overturn or set aside a court order which in any way impairs the use of such assets or property; or

2. seek the release of an **Executive** from any arrest, detainment or incarceration by an **Investigating Authority**.

B. **"Books & Records Demand"** means a written demand or proceeding brought by a security holder of an **Insured Organization** pursuant to any law which provides a right to inspect such **Insured Organization's** books and records, including, without limitation, Section 220 of the Delaware General Corporation Law or any similar law, commenced by the receipt by, or service upon, any **Insured** of such demand or proceeding.

C. **"Claim"** means:

1. any:

   a. written demand for civil monetary damages or injunctive or other civil non-monetary relief commenced by the receipt by any **Insured** of such demand, including, without limitation, any **Derivative Demand** or **Books & Records Demand** subject to the provisions of Section 3 Coverage Extensions and Sublimits A;

b. civil proceeding or arbitration, mediation or other alternative dispute resolution proceeding, commenced by the receipt by, or service upon, any **Insured** of a complaint, arbitration demand, mediation request or similar document;

c. criminal proceeding, including any related **Extradition**, commenced by the return of an indictment, information or similar document;

d. administrative or regulatory proceeding commenced by the receipt by, or service upon, any **Insured** of a notice of charges or similar document;

e. any **Insured Organization Investigation**, subject to the provisions of Section 3 Coverage Extensions and Sublimits E;

provided that: (i) such demand, proceeding or investigation is for a **Wrongful Act**; (ii) a and b shall not include any administrative, regulatory, or criminal proceeding or investigation; and (iii) c and d shall not include any administrative, regulatory, or criminal investigation;

2. any **Insured Person Investigation**;

3. regarding Insuring Agreements A and B only, any **Inquiry**, which shall be deemed a **Claim** only if the **Insured** provides written notice in accordance with General Provisions Section 10. Claim and Potential Claim Notices;

4. any written request to an **Insured** to toll or waive a period or statute of limitations regarding a potential **Claim** as described in 1.b, c or d above commenced by the receipt by any **Insured** of such request; or

5. any **Appraisal Claim**, subject to the provisions of Section 3 Coverage Extensions and Sublimits B.

D. **"Computer System"** means any

1. computer hardware, electronic mobile device, software or firmware, and components thereof, including data stored thereon, that is: (i) owned or leased by an **Insured Organization**; and (ii) under the direct operational control of an **Insured Organization**; or

2. electronic mobile device owned and under the direct operational control of an employee of an **Insured Organization**.

E. **"Crisis Management Costs"** means reasonable fees and expenses incurred by an **Insured** in response to any **Network Breach** or **Privacy Violation** for:

1. public relations firm services to mitigate reputational damage; and

2. legal services by an attorney approved by the **Insurer** to:

a. provide counsel on the obligations of any applicable **Privacy Law**; and

b. draft notices required by any applicable **Privacy Law**.

Crisis Management Costs excludes any compensation, internal expenses, or overhead of any **Insured**.

F. **"Defense Costs"** means reasonable fees and expenses incurred in the defense or appeal of a **Claim**, including **Extradition Costs** and **UK Corporate Manslaughter Act Defense Costs**. **Defense Costs** include the premium for any appeal, attachment or similar bond, provided that the **Insurer** shall have no obligation to issue, or provide collateral for, such bond. **Defense Costs** exclude any: (i) compensation, benefit expenses, or overhead of any **Insureds**; (ii) **Investigation Costs**; or (iii) **Inquiry Response Costs**.

G. **"Derivative Demand"** means any written demand by any security holder of an **Insured Organization**, in their capacity as such, upon the board of directors or other governing board of such **Insured Organization** to bring a lawsuit against an **Insured Person** for a **Wrongful Act**.

H. **"Derivative Suit"** means any lawsuit against an **Insured Person** for a **Wrongful Act** of such **Insured Person** made on behalf of an **Insured Organization** by any securities holder of such **Insured Organization**, in their capacity as such, including any lawsuit naming the **Insured Organization** as a nominal defendant.

I. **"Employee"** means any natural person who is, was, or becomes an employee of an **Insured Organization**, including any full time, part-time, seasonal, leased, loaned and temporary employee, as well as any volunteer or intern of an **Insured Organization**. **Employee** excludes any **Independent Contractor**.

J. **"Employment Claim"** means any **Claim** for wrongful employment termination, employment discrimination or any other employment related **Wrongful Act**.

K. **"Inquiry"** means any:

1. subpoena or similar document compelling witness testimony or document production by an **Insured Person** regarding such **Insured Person's** capacity in an **Insured Organization** or an **Insured Organization's** business activities;

2. written request by an **Investigating Authority** for an **Insured Person** to appear for an interview or meeting or to produce documents regarding such **Insured Person's** capacity in an **Insured Organization** or an **Insured Organization'**s business activities; or

3. written request by an **Insured Organization** for an **Insured Person** to appear for an interview or meeting or to produce documents regarding such **Insured Person's** capacity in an **Insured Organization** or an **Insured Organization's** business activities if such request is in response to any investigation: (i) by an **Insured Organization's** board of directors or other governing board of a **Derivative Demand** or a **Derivative Suit**; or (ii) by an **Investigating Authority** of an **Insured Organization's** business activities.

Inquiry excludes any routine or regularly scheduled oversight, compliance, audit, examination or inspection conducted by an **Investigating Authority** or an **Insured Organization**.

L. **"Inquiry Response Costs"** means reasonable fees and expenses incurred by an **Insured Person** in response to an **Inquiry**, including, without limitation, fees and expenses incurred in preparation for, and attendance at, an interview or meeting requested by an **Investigating Authority** or an **Insured Organization**. **Inquiry Response Costs** exclude any: (i) compensation, benefits expenses, or overhead of any **Insureds**; or (ii) fees or expenses to comply with any discovery or production request seeking documents, records or electronic information in the possession of an **Insured Organization** or any third-party.

M. **"Insured Organization Investigation"** means any civil, criminal, administrative or regulatory investigation of any **Insured Organization** for a **Wrongful Act** commenced by the receipt by, or service upon, such **Insured Organization** of a formal order of investigation, Wells Notice, subpoena or target letter (within the meaning of title 9-11.151 of the United States Attorneys Manual) from an **Investigating Authority** identifying such **Insured Organization** in writing as a target of an investigation against whom a civil, criminal, administrative or regulatory proceeding may be brought.

N. **"Insured Person"** means any:

1. **Executive**;

2. **Employee**;

3. natural person who is, was, or becomes a duly elected or appointed member of an advisory board of any **Insured Organization**, including, without limitation, a medical, scientific, or technology advisory board, provided that such member shall not be considered an **Insured Person** for purposes of Section 4. Exclusions, A.6;

4. natural person who is a manager or member of the Board of Governors of an **Insured Organization**; or

5. **Independent Contractor**, if, within 60 days of a **Claim** being made against such person, any **Insured Organization** agrees in writing to indemnify such person for such **Claim**.

O. **"Insured Person Investigation"** means any civil, criminal, administrative or regulatory investigation of an **Insured Person**, in their capacity as such, commenced by: (1) receipt by, or service upon, such **Insured Person** of a formal order of investigation, Wells Notice, subpoena or target letter (within the meaning of title 9-11.151 of the United States Attorneys Manual) from an **Investigating Authority** identifying such **Insured Person** in writing as a target of an investigation against whom a civil, criminal, administrative or regulatory proceeding may be brought; or (ii) the arrest and detainment or incarceration for more 24 hours of such **Insured Person** by any law enforcement authority in a jurisdiction other than the United States of America or its territories or possessions.

P. **"Insureds"** means any:

1. **Insured Organization**; or

2. **Insured Person**.

Q. **"Investigating Authority"** means any federal, state, local or foreign law enforcement or governmental entity (including, without limitation, the U.S. Department of Justice, the U.S. Securities and Exchange Commission and any attorney general) or the enforcement unit of any securities or commodities exchange or other self-regulatory body.

R. **"Investigation Costs"** means reasonable fees and expenses incurred by an **Insured Organization**, or on its behalf by its board of directors or other governing board or any committee thereof, to investigate, evaluate, and respond to a **Derivative Demand**, **Derivative Suit**, or **Books & Records Demand**. **Investigation Costs** exclude any: (i) compensation, benefits expenses, or overhead of any **Insureds**; or (ii) **Defense Costs**.

S. **"Loss"** means **Defense Costs**, damages, settlements, judgments, and pre- and post-judgment interest, including plaintiff legal fees and costs awarded pursuant to a covered settlement or judgment. Regarding Insuring Agreements A and B only, **"Loss"** also means **Inquiry Response Costs** and **SOX 304/Dodd-Frank 954 Costs**. Regarding Section 3. Coverage Extensions and Sublimits, A. Derivative and Books & Records Demands Coverage, **"Loss"** means **Investigation Costs** only. Regarding Section 3. Coverage Extensions and Sublimits B. Appraisal Claim Coverage, **"Loss"** includes **Investigation Costs**. Regarding Section 3. Coverage Extensions and Sublimits C. Asset Protection Costs Coverage, **"Loss"** means **Asset Protection Costs** only. Regarding Section 3. Coverage Extensions and Sublimits, D. Crisis Management Costs Coverage, **"Loss"** means **Crisis Management Costs** only.

The following items are specifically included in, or excluded from, **Loss**:

1. **Loss** includes any:

a. judgment or settlement amounts attributable to violations of Sections 11, 12 or 15 of the Securities Act of 1933, provided that if any **Insured Persons** and an **Insured Organization** are co-defendants in any **Claim** in which such judgment or settlement occurs, the **Insurer** shall allocate 100% of such **Loss** to the **Insured Persons**;

b. punitive, exemplary or multiple damages awarded pursuant to a covered judgment or settlement;

c. civil penalties assessed against an **Insured Person** pursuant to Section 2(g)2(B) of the Foreign Corrupt Practices Act, the UK Bribery Act, or any similar law;

d. civil fines or civil penalties incurred by **Insured Persons** imposed in a jurisdiction outside of the United States of America and where insurable by applicable law;

e. civil fines or civil penalties incurred by **Insured Persons** that all **Insured Organizations** cannot indemnify solely because of **Insolvency** and where insurable by applicable law; or

f. regarding Insuring Agreement A, taxes assessed against an **Insured Organization** that an **Insured Person** becomes liable to pay because of **Insolvency**.

Except where required by law, the **Insurer** shall not assert that the above types of **Loss** are uninsurable. Notwithstanding 2.e below, the insurability of the above types of **Loss** shall be governed by the laws of any applicable jurisdiction that does not prohibit coverage for such **Loss.**

2. **Loss**, other than **Defense Costs**, excludes any:

a. fines or penalties imposed by law, except as provided in **1.c**, **1.d**, and **1.e** above;

b. taxes, except as provided in **1.f** above;

c. amount for which the **Insureds** are not financially liable or for which the claimants are without legal recourse to the **Insureds**;

d. non-monetary relief;

e. matters that are uninsurable pursuant to applicable law; or

f. amount representing, or substantially equivalent to, an increase in consideration paid, or proposed to be paid, in connection with any purchase of securities or assets of, or by, an **Insured Organization**.

3. Regarding any **Employment Claim**, **Loss**, other than **Defense Costs**, also excludes any:

a. amounts sought under any contract or agreement;

b. future compensation for any person hired, promoted or reinstated to employment;

c. employment-related benefits (including, without limitation, retirement benefits, perquisites, vacation or sick days, medical or insurance benefits, stock benefits, stock options, stock appreciation rights, deferred compensation or any other type of compensation);

d. costs of any accommodation required by the Americans with Disabilities Act or any similar law;

e. employment termination severance payments other than payments negotiated with and consented to by the **Insurer** as part of a settlement; or

f. compensation earned by, or due to, a claimant in the course of employment but not paid.

T. **"Malicious Code"** means any virus, Trojan, worm or other similar malicious software program, code or script designed to infect, harm, harm data on, or steal data from, a **Computer System**.

U. **"Network Breach"** means any:

1. unauthorized access to, or unauthorized use of, a **Computer System**;

2. transmission of **Malicious Code** into or from a **Computer System**; or

3. malicious attack intended to overwhelm the capacity of any **Computer System** by sending an excessive volume of electronic data to such **Computer System** in order to prevent authorized access to such **Computer System**.

V. **"Outside Capacity"** means service by an **Insured Person** as a director, officer, trustee, regent, governor or equivalent executive of an **Outside Organization** with the knowledge and consent of or at the request of an **Insured Organization**.

W. **"Outside Organization"** means any not-for-profit corporation, community chest, fund or foundation that is: (i) not an **Insured Organization**; and (ii) exempt from federal income tax as an entity described in Section 501(c)(3), (4), (7) or (10) of the Internal Revenue Code of 1986, or any other entity organized for a religious or charitable purpose under any non-profit organization act or statute.

X. "**Privacy Violation**" means any:

1. failure to protect **Private Information** while in the care, custody or control of an **Insured**;

2. violation of a **Privacy Law** by an **Insured**; or

3. violation of an **Insured's** privacy policy prohibiting any **Insured** from disclosing **Private Information**.

Y. **"Private Information"** means any:

1. **Personal Information**; or

2. confidential or proprietary business information that is not available to the general public.

Z. **"Public Shell Company"** means any entity that:

1. is a special purpose acquisition company, blank check company or other publicly traded company with substantially no operations;

2. directly or indirectly controls, is controlled by, or is under common control with, the entity specified in 1 above; or

3. is a successor in interest to, or is the resulting or surviving entity after, a merger, consolidation, or business combination involving an entity specified in 1 or 2 above.

AA. **"Securities Wrongful Act"** means any **Wrongful Act**:

1. in the purchase or sale, or an offer or solicitation of an offer to purchase or sell, any securities issued by an **Insured Organization**, regardless of whether such purchase, sale or offer occurs in the open market or in a transaction with such **Insured Organization**; or

2. alleged by a securities holder of an **Insured Organization** in their capacity as such in a **Claim**, including a **Derivative Demand** or **Derivative Suit**.

BB. **"SOX 304/Dodd-Frank 954 Costs"** means reasonable fees and expenses (including a premium or origination fee for a loan or bond) incurred by any **Insured Person** to facilitate any reimbursement under Section 304(a) of the Sarbanes-Oxley Act of 2002 or Section 954 of the Dodd-Frank Wall Street Reform and Consumer Protection Act of 2010. **SOX 304/Dodd-Frank 954 Costs** exclude any amounts required to be reimbursed under Section 304(a) or Section 954.

CC. **"UK Corporate Manslaughter Act Defense Costs"** means **Defense Costs** incurred by an **Insured Person** resulting from a **Claim** made against an **Insured Organization** for violation of the United Kingdom Corporate Manslaughter and Corporate Homicide Act of 2007 or any similar law.

DD. **"Whistleblowing"** means the lawful provision of information or other assistance by an **Insured Person** to any investigation conducted by any:

1. regulatory or any legal enforcement;

2. governmental legislative body or committee thereof;

3. **Employee** with supervisory authority over the **Insured Person**; or

4. **Employee** with authority to investigate corporate misconduct.

EE. **"Wrongful Act"** means:

1. regarding an **Insured Person**, any actual or alleged:

   a. act, error, omission, misstatement, misleading statement, neglect or breach of duty by an **Insured Person** in their capacity as such; or

   b. matter claimed against an **Insured Person** by reason of their serving in such capacity, including service in an **Outside Capacity**; or

2. regarding an **Insured Organization**, any actual or alleged act, error, omission, misstatement, misleading statement, neglect or breach of duty by such **Insured Organization**.

3. COVERAGE EXTENSIONS AND SUBLIMITS

A. Derivative and Books & Records Demands Coverage

1. The **Insurer** shall pay **Investigation Costs** resulting from a **Derivative Demand**, **Derivative Suit**, or **Books & Records Demand** first made during the **Policy Period** or Extended Reporting Period, if applicable. Such coverage shall be subject to the Derivative and Books & Records Demands Coverage: Investigation Costs Sublimit of Liability specified in Item 6.C of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Investigation Costs** resulting from all **Derivative Demands**, **Derivative Suits**, or **Books & Records Demands** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

2. No Retention shall apply to **Investigation Costs** under this Coverage Extension.

B. Appraisal Claim Coverage

The **Insurer** shall pay **Defense Costs** and **Investigation Costs** resulting from an **Appraisal Claim** first made during the **Policy Period** or Extended Reporting Period, if applicable. Coverage for **Appraisal Claims** shall be limited to **Defense Costs** and **Investigation Costs** only and shall be subject to the Appraisal Claim: Defense Costs and Investigation Costs Sublimit of Liability specified in Item 6.C of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Appraisal Claims** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

C. Asset Protection Costs Coverage

1. The **Insurer** shall pay **Asset Protection Costs** resulting from a **Claim** first made against an **Executive** during the **Policy Period** or Extended Reporting Period, if applicable. Such coverage shall be subject to the Per Executive and Aggregate Asset Protection Costs Sublimits of Liability specified in Item 6.C of the Declarations. Such Sublimits of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Asset Protection Costs** combined.

Such Sublimits of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

2. No Retention shall apply to **Asset Protection Costs** under this Coverage Extension.

3. The **Insurer** shall provide coverage for **Asset Protection Costs** only if:

a. such **Asset Protection Costs** result from a **Wrongful Act** by an **Executive**;

b. such **Asset Protection Costs** are not otherwise covered under this Policy;

c. an **Insured Organization** fails, refuses or is financially unable to indemnify, advance or pay such **Asset Protection Costs**; and

d. the **Claim** described in 1 above has been reported in compliance with General Provisions Section 10. Claim and Potential Claim Notices.

D. Crisis Management Costs Coverage

1. The **Insurer** shall pay **Crisis Management Costs** resulting from a **Network Breach** or **Privacy Violation** occurring during the **Policy Period**. Such coverage shall be subject to the Crisis Management Costs Sublimit of Liability specified in Item 6.C of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Crisis Management Costs** resulting from all **Network Breaches** and **Privacy Violations** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

2. No Retention shall apply to **Crisis Management Costs**.

3. Any **Claim Manager** shall give the **Insurer** written notice of any **Network Breach** or **Privacy Violation** as soon as practicable but no later than 60 days after the end of the **Policy Period**. Notice shall be given to the **Insurer** at the address for Claims or Potential Claims specified in Item 7 of the Declarations.

4. Section 4. Exclusions shall not apply to Crisis Management Costs Coverage.

E. Insured Organization Investigation Coverage

The **Insurer** shall pay **Loss** resulting from an **Insured Organization Investigation** first made during the **Policy Period** or Extended Reporting Period, if applicable. Such coverage shall be subject to the Insured Organization Investigation Sublimit of Liability specified in Item 6.C of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Insured Organization Investigations** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

F. Outside Positions

Subject to the provisions applicable to this **Liability Coverage Part**, coverage shall apply to a **Claim** made against an **Insured Person** for a **Wrongful Act** while serving in an **Outside Capacity**. Such coverage shall be specifically excess of any: (i) indemnification available from or provided by the **Outside Organization**; and (ii) valid and collectible insurance issued to the **Outside Organization**. Payment by the **Insurer**, or any insurance company controlling, controlled by or under common control with the **Insurer**, under any other insurance policy as a result of such **Claim** shall reduce, by the amount of such payment, the limit of liability available under this Policy for such **Claim**.

4. EXCLUSIONS

A. The **Insurer** shall not pay **Loss**:

1. in connection with any **Claim** for, based upon, arising from, or in any way related to any fact, circumstance or situation that, before the inception date of this Policy, was the subject of any notice given and accepted as sufficient under any directors and officers liability, employment practices liability, fiduciary liability, or similar liability policy;

2. in connection with any **Claim** for, based upon, arising from, or in any way related to any: (i) written demand, suit or proceeding made or initiated against any **Insured** on or prior to the applicable Prior Litigation Date in Item 6.C of the Declarations; or (ii) **Wrongful Act** described in any such demand, suit or proceeding or any **Interrelated Wrongful Acts** thereto;

3. for bodily injury, sickness, disease, or death of any person, or damage to or destruction of any tangible property, including loss of use thereof, provided that this exclusion shall not apply to any **Loss**: (i) resulting from any **Securities Wrongful Act**; (ii) resulting from emotional distress, humiliation or mental anguish in any **Employment Claim**; or (iii) constituting **UK Corporate Manslaughter Act Defense Costs**;

4. in connection with any **Claim** for, based upon, arising from, or in any way related to any:

a. discharge, dispersal, release, escape, seepage, migration or disposal of **Pollutants**, nuclear material or nuclear waste or any threat of such discharge, dispersal, release, escape, seepage, migration or disposal; or

b. direction, request or voluntary decision to test for, abate, monitor, clean up, remove, contain, treat, detoxify or neutralize **Pollutants**, nuclear material or nuclear waste,

provided that this exclusion shall not apply to any (i) **Non-Indemnifiable Loss**; or (ii) **Loss** resulting from a **Securities Wrongful Act**;

5. for any violation of **ERISA** involving any employee benefit plan sponsored by an **Insured Organization**;

6. in connection with any **Claim** by or on behalf of: (i) any **Insured** in any capacity or any entity that is majority owned or controlled by an **Insured**; or (ii) a security holder of an **Insured Organization** with the assistance, active participation or solicitation of any **Executive** against an **Insured**; provided that this exclusion shall not apply to any:

a. **Claim** that is a **Derivative Demand** or **Derivative Suit** that is initiated and maintained without the assistance, active participation or solicitation of any **Executive** who has served as an **Executive** during the two years prior to such **Claim** being made;

b. **Claim** by an **Insured Person** for contribution or indemnification if such **Claim** directly results from a **Claim** that it otherwise covered under this **Liability Coverage Part**;

c. **Claim** by any **Employee** who has not served as an **Executive** during the two years prior to such **Claim** being made, if such **Claim** is made without the assistance, active participation or solicitation of any **Executive** who has served as an **Executive** during the two years prior to such **Claim** being made;

d. **Loss** resulting from any wrongful employment termination, employment discrimination or any other employment practices **Wrongful Act** in a **Claim** by an **Executive** who has served as an **Executive** during the two years prior to such **Claim** being made;

e. **Claim** by a former **Executive** who has not served as an **Executive** during the two years prior to such **Claim** being made, provided that such **Claim** is made without the assistance, active participation or solicitation of any **Executive** who has served as an **Executive** during the two years prior to such **Claim** being made;

f. **Claim** by any bankruptcy or insolvency trustee, examiner, receiver, creditors committee or similar official for any **Insured Organization** or **Outside Organization** or any assignee of such trustee, examiner, receiver, creditors committee or similar official; or

g. **Claim** made in a jurisdiction outside the United States of America, Canada or Australia by an **Insured Person** of an **Insured Organization** organized in such jurisdiction,

provided that assistance, active participation or solicitation shall not include **Whistleblowing**;

7. in connection with any **Claim** for, based upon, arising from, or in any way related to any **Insured Person** serving at any time as a director, officer, trustee, regent, governor or equivalent executive, or as an employee, of any entity other than an **Insured Organization** even if such service is with the knowledge and consent, or at the request, of an **Insured Organization**, provided that this exclusion shall not apply to **Loss** resulting from a **Wrongful Act** by an **Insured Person** in an **Outside Capacity**;

8. by or on behalf of any **Outside Organization** for which an **Insured Person** serves or has served in an **Outside Capacity**, or any director, officer, trustee, regent, governor or equivalent executive of any such **Outside Organization**, provided that this exclusion shall not apply to any **Claim**:

a. that is a derivative suit made on behalf of such **Outside Organization** by any person who is not an:

1. **Insured Person**; or

2. director, officer, trustee, regent, governor or equivalent executive of the **Outside Organization**,

and who makes such **Claim** without the assistance, active participation or solicitation of any such person; or

b. by any:

1. **Insured Person**; or

2. director, officer, trustee, regent, governor or equivalent executive of such **Outside Organization**,

for contribution or indemnification if such **Claim** results directly from a **Claim** that is otherwise covered under this **Liability Coverage Part**;

9. in connection with any **Claim** for, based upon, arising from, or in any way related to any:

a. public offering of securities issued by or on behalf of: (i) an **Insured Organization** if such offering commences and trading of such securities begins; or (ii) a **Public Shell Company** if an **Insured Organization** completes a merger, consolidation, or other business combination with such **Public Shell Company**; or

b. purchase or sale of securities of an **Insured Organization** or **Public Shell Company** subsequent to an offering described in a above,

provided that this exclusion shall not apply to **Loss** resulting from any **Wrongful Act**: (i) in an offering, purchase, or sale of securities of an **Insured Organization** that is exempt from registration under the Securities Act of 1933 and any similar law; (ii) in an offering, purchase or sale of debt securities of an **Insured Organization**; or (iii) in the failure of an **Insured Organization** to complete an offering, merger, consolidation, or other business combination, including, without limitation, any presentations or representations made in connection with such failed offering, merger, consolidation, or other business combination;

10. in connection with any **Wage & Hour Claim**, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act**;

11. in connection with any **Claim** for, based upon, arising from, or in any way related to the gaining of any personal profit, remuneration or financial advantage to which such **Insured** is not legally entitled, if established by any final, non-appealable adjudication against any such **Insured** in any proceeding other than a proceeding initiated by the **Insurer**, provided that this exclusion shall not apply to: (i) **Defense Costs**; or (ii) amounts attributable to actual or alleged violations of the Securities Act of 1933, as amended (including Sections 11,12 or 15 therein); or

12. in connection with any **Claim** for, based upon, arising from, or in any way related to any deliberately fraudulent or criminal act or omission or any willful violation of law by such **Insured**, if established by any final, non-appealable adjudication against any such **Insured** in any proceeding other than a proceeding initiated by the **Insurer**, provided that: (i) a fraudulent or criminal act or omission under foreign law that is not a fraudulent or criminal act or omission under the federal or state laws of the United States of America shall not, by itself, be conclusive proof that a deliberately fraudulent or criminal act or omission occurred; and (ii) this exclusion shall not apply to **Defense Costs**.

Regarding exclusions 11 and 12 above: (i) no **Wrongful Act** of any **Insured Person** shall be imputed to any other **Insured Person**, and (ii) only a **Wrongful Act** by a past, present or future chief executive officer or chief financial officer of the **Named Organization** shall be imputed to an **Insured Organization**.

B. Regarding Insuring Agreement C**,** the **Insurer** shall not pay **Loss** in connection with any **Claim**:

1. that is a **Contract Claim**, provided that this exclusion shall not apply:

a. to the extent that liability would have been incurred in the absence of such contract or agreement; or

b. to **Loss** resulting from a **Securities Wrongful Act**;

2. that is an **Employment Claim**, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act;**

3. that is a **Product-Services Claim**, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act**;

4. for, based upon, arising from, or in any way related to any defamation or disparagement, invasion of privacy, wrongful entry or eviction, false arrest or imprisonment, malicious prosecution, abuse of process, assault, battery or loss of consortium, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act**;

5. for, based upon, arising from, or in any way related to infringement of any intellectual property rights, including, without limitation, copyrights, patents, trademarks, trade names, trade dress, service marks, or trade secrets, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act**;

6. that is an **Antitrust Claim**, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act**;

7. for, based upon, arising from, or in any way related to discrimination or sexual harassment, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act**; or

8. for, based upon, arising from, or in any way related to any: (i) **Network Breach**; (ii) failure to properly collect, handle, protect, use, manage, store, destroy or otherwise control data; (iii) violation of any state, federal or foreign identity theft or privacy protection law, including, without limitation, a **Privacy Law**; or (iv) violation of any **Insured Organization's** privacy policy prohibiting the disclosure of private information, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act**.

5. ADDITIONAL LIMIT OF LIABILITY FOR CLAIMS AGAINST INSURED PERSONS

A. The Additional Limit of Liability for Claims against Insured Persons specified in Item 6.C (the "Additional Limit of Liability") shall be available to pay **Non-Indemnifiable Loss** covered for **Claims** against **Insured Persons** under Insuring Agreement A.

B. Any Additional Limit of Liability shall be in addition to, and not part of, the Limit of Liability otherwise applicable to this **Liability Coverage Part**.

C. Any Additional Limit of Liability shall be excess of any valid and collectible insurance that is specifically excess of this Policy. Such excess insurance must be exhausted by the payment of loss covered thereunder before the **Insurer** shall be liable to pay the Additional Limit of Liability.

D. **Non-Indemnifiable Loss** covered under Insuring Agreement A shall be allocated between, and paid by the **Insurer** under, the Limit of Liability applicable to this **Liability Coverage Part** and the Additional Limit of Liability in whatever portions will maximize the total amount of covered **Loss** to be paid under this Policy.

6. PUBLIC OFFERING OF SECURITIES

If a public offering of an **Insured Organization's** equity securities occurs during the **Policy Period** that is not exempt from registration under the Securities Act of 1933, the **Insurer** shall furnish the **Insureds** with a quote for directors and officers liability insurance coverage of such offering, provided that:

A. at least 30 days prior to the effective date of such offering, the **Insureds** shall give the **Insurer** written notice of such offering together with all information requested by the **Insurer**; and

B. such quote shall be on such terms and conditions, including any additional premium, as the **Insurer**, in its sole discretion, chooses.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CANOPY PLUS
(AON)
(D&O)

Regarding the Directors, Officers, & Organization Liability Coverage Part, it is agreed that:

1. AIDING AND ABETTING DEFENSE COSTS

Section 2. Definitions is amended to add:

Aiding & Abetting Claim means a **Claim** for a **Wrongful Act** brought by any security holder of an **Acquisition Target**, in their capacity as such, alleging that the **Insureds** aided and abetted any:

1. breach of fiduciary duty owed to the **Acquisition Target's** shareholders; or

2. **Insured Organization's** acquisition or proposed acquisition of the **Acquisition Target.**

provided that coverage for an **Aiding & Abetting Claim** shall be limited to **Defense Costs** only.

"Acquisition Target" means any entity that an **Insured Organization** has acquired, or proposed to acquire, in a transaction that results in, or would result in, such entity becoming a **Subsidiary**

2. BOOKS & RECORDS DEMAND DEFINITION – ORGANIZATIONAL DOCUMENTS

Section 2. Definitions B. "Books & Records Demand" is deleted and replaced by:

"Books & Records Demand" means a written demand or proceeding brought by a security holder of an **Insured Organization** commenced by the receipt by, or service upon, any **Insured** of such demand or proceeding pursuant to:

1. any law including, without limitation, Section 220 of the Delaware General Corporation Law or any similar law; or

2. an **Insured Organization's** Articles of Incorporation, By-Laws, LLC Agreement, Shareholder Agreement, Partnership Agreement, or any similar governing document or ownership agreement,

which provides a right to inspect such **Insured Organization's** books and records.

3. DEFENSE COSTS – EXPERT FEES, E-DISCOVERY COSTS, PRE-CLAIM DEFENSE COSTS AND CLASS CERTIFICATION EVENT STUDY COSTS

Section 2. Definitions, F. "Defense Costs" is deleted and replaced by:

F. **"Defense Costs"** means reasonable fees and expenses (including expert fees, class certification event study costs, and expenses in connection with e-discovery) incurred in the defense or appeal of a **Claim**, including **Extradition Costs**, and **UK Corporate Manslaughter Act Defense Costs**. **Defense Costs** include the premium for any appeal, attachment or similar bond, provided that the **Insurer** shall have no obligation to issue, or provide collateral for, such bond. **Defense Costs** exclude any: (i) compensation, benefit expenses, or overhead of any **Insureds**; (ii) **Investigation Costs**; or (iii) **Inquiry Response Costs**.

If the **Insureds** give notice to the **Insurer** pursuant to General Provisions Section 10. Claim and Potential Claim Notices, B of a **Wrongful Act**, comply with all terms of this Policy, allow the **Insurer** to effectively associate in the defense of such **Wrongful Act**, obtain the prior written consent of the **Insurer** to incur legal fees and expenses in the defense of such **Wrongful Act** (such consent not to be unreasonably withheld), and a **Claim** subsequently arises from such **Wrongful Act**, then **Defense Costs** shall also mean all reasonable fees and expenses incurred in defense of such **Wrongful Act** that are incurred (i) on or after the date such notice is received by the **Insurer**, and (ii) prior to the time that a **Claim** is made for such **Wrongful Act** ("**Pre-Claim Defense Costs**"). Coverage for **Pre-Claim Defense Costs** shall be subject to a Sublimit of Liability of $50,000 per **Claim**. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay for all **Pre-Claim Defense Costs** related to a **Claim**, including **Pre-Claim Defense Costs** related to any **Claims** arising out of the same **Wrongful Act**, **Interrelated Wrongful Acts** or fact, circumstances, situation, event, transaction, or cause that are deemed a single **Claim**. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

4. <u>LOSS DEFINITION WITHOUT REGARD TO INDEMNIFACTION</u>

Section 2. Definitions, S. "Loss" is amended to add:

Loss incurred by an **Insured Person** shall be determined as such without regard to indemnification that may be available from any management liability insurance policy issued to a security holder of an **Insured Organization**.

5. <u>LOSS DEFINITION – FOREIGN TAXES</u>

Section 2. Definitions, S. "Loss" 1 is amended to add:

g. that portion of any tax assessment imposed on an **Insured Person** by a foreign jurisdiction due solely to an **Insurer's** payment of **Loss** as a foreign or non-admitted carrier;

Section 2. Definitions, S. "Loss" 2.b. is deleted and replaced by:

b. taxes, except as provided in 1.f and 1.g above;

6. <u>WRONGFUL ACT DEFINITION – CONTROLLING AND SELLING SHAREHOLDER CAPACITY</u>

Section 2. Definitions, EE. "Wrongful Act**"** is deleted and replaced by:

EE. **"Wrongful Act"** means:

1. regarding an **Insured Person**, any actual or alleged:

a. act, error, omission, misstatement, misleading statement, neglect or breach of duty by an **Insured Person** in their capacity as such (including in their capacity as a controlling or selling shareholder of an **Insured Organization**); or

b. matter claimed against an **Insured Person** by reason of their serving in such capacity, including service in an **Outside Capacity**; or

2. regarding an **Insured Organization**, any actual or alleged act, error, omission, misstatement, misleading statement, neglect or breach of duty by such **Insured Organization**.

7. CRISIS MANAGEMENT COSTS COVERAGE – ADVERSE EVENTS

Section 3. Coverage Extensions and Sublimits, D is deleted and replaced by:

D. Crisis Management Costs Coverage

1. The **Insurer** shall pay **Crisis Management Costs** resulting from an **Adverse Event, Network Breach** or **Privacy Violation** occurring during the **Policy Period**. Such coverage shall be subject to the Crisis Management Costs Sublimit of Liability specified in Item 6.C of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Crisis Management Costs** resulting from all **Adverse Events, Network Breaches** and **Privacy Violations** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

2. No Retention shall apply to **Crisis Management Costs**.

3. Any **Claim Manager** shall give the **Insurer** written notice of any **Adverse Event, Network Breach** or **Privacy Violation** as soon as practicable but no later than 60 days after the end of the **Policy Period**. Notice shall be given to the **Insurer** at the address for Claims or Potential Claims specified in Item 7 of the Declarations.

4. Section 4. Exclusions shall not apply to Crisis Management Costs Coverage.

"Adverse Event" means:

1. the unanticipated death, incapacity, resignation or federal or state criminal indictment of the chief executive officer or chief financial officer of an **Insured Organization**;

2. the **Insured Organization Insolvency,** defaulted or will default on or restructured or will restructure its debt;

3. the commencement or threat of litigation or other proceeding by any administrative or regulatory agency against an **Insured Organization**;

4. the **Insured Organization** reduction of workforce by 25% or more **Employees**; or

5. the unanticipated loss to an **Insured Organization** arising from a product recall, a delay in production, loss of intellectual property rights (other than by expiration) or loss of a major customer or contract;

provided that the above events result in adverse publicity with publication of unfavorable information regarding an **Insured** which can reasonably be considered to materially reduce public confidence in the competence, integrity or viability of an **Insured Organization**. Such publication must occur in a report about an **Insured** appearing in: (i) a daily newspaper of general circulation or (ii) a radio or television news program.

Section 2. Definitions, E. "Crisis Management Costs" is deleted and replaced by:

E. **"Crisis Management Costs"** means reasonable fees and expenses incurred by an **Insured Organization** in response to any **Adverse Event, Network Breach** or **Privacy Violation** for:

1. public relations firm services to mitigate reputational damage; and

2. legal services by an attorney approved by the **Insurer** to:

a. provide counsel on the obligations of any applicable **Adverse Event** or **Privacy Law**; and

b. draft notices required by any applicable **Adverse Event** or **Privacy Law**.

Crisis Management Costs excludes any compensation, internal expenses, or overhead of any **Insured**.

8. EXCLUSIONS PREAMBLE

Section 4. Exclusions is amended to apply the below preamble to Exclusions A.3 and A.5:

The **Insurer** shall not pay that part of **Loss**:

9. PRIOR LITIGATION EXCLUSION – MANAGEMENT LIABILITY SCOPE AND FALSE CLAIM ACT CLARIFICATION

Section 4. Exclusions, A.2. is deleted and replaced by:

in connection with any **Claim** for, based upon, arising from, or in any way related to any:

a. written demand, suit or proceeding made or initiated against any **Insured** within the scope of (whether covered or not) any directors and officers liability, employment practices liability, fiduciary liability, or similar liability policy, on or prior to the applicable Prior Litigation Date in Item 6.C of the Declarations; or.

b. **Wrongful Act** specified in such prior written demand, suit or proceeding or any **Interrelated Wrongful Acts** thereof,

provided that this exclusion shall not apply to any demand, suit or proceeding for an actual or alleged violation of the False Claims Act unless any **Insured** had actual knowledge of the making or initiation of such demand, suit or proceeding.

10. BI/PD EXCLUSION CARVEBACK

Section 4. Exclusions, A.3 shall not apply to **Non-Indemnifiable Loss**.

11. INSURED VS. INSURED EXCLUSION – EXCEPTIONS

Section 4. Exclusions, A.6.f and A.6.g are deleted and replaced by:

f. **Claim** by or on behalf of any examiner, trustee (including, without limitation, a litigation trustee), receiver, conservator, administrator, liquidator, rehabilitator, creditor's committee, or an **Insured Organization** or **Outside Organization** in its capacity as a debtor-in-possession after the appointment of a trustee, receiver, conservator, liquidator, or rehabilitator, or any similar entity or person, or any assignee of any of the foregoing, provided that such **Claim** is made without the assistance, active participation or solicitation of any **Executive** who has served as an **Executive** during the two years prior to such **Claim** being made;

g. **Claim** made in a jurisdiction outside the United States of America, Canada, Australia or any other common law jurisdiction due to a pleading requirement of such jurisdiction by an **Insured Person** of an **Insured Organization** organized in such jurisdiction; or

Section 4. Exclusions, A.6. is amended to add:

h. **SOX 304/Dodd-Frank 954 Costs.**

12. <u>OUTSIDE ORGANIZATION CLAIM EXCLUSION – ADDITIONAL EXCEPTIONS</u>

Section 4. Exclusions, A.8 is amended to add:

c. by a former **Outside Organization Executive** who has not served as an **Executive** or **Outside Organization Executive** for at least two years prior to such **Claim** being made, provided that such **Claim** is made without the assistance, participation or solicitation of any current **Executive** or **Outside Organization Executive** or any former **Executive** or **Outside Organization Executive** who has served as an **Executive** or **Outside Organization Executive** during the two years prior to such **Claim** being made; or

d. made in a jurisdiction outside the United States of America, Canada, Australia or any other common law jurisdiction due to a pleading requirement of such jurisdiction.

"Outside Organization Executive" means any natural person who was, is, or shall be a duly elected or appointed:

1. director, officer, or member of the board of managers, board of governors or management committee of an **Outside Organization**;

2. in-house chief legal officer of an **Outside Organization** as well as any other natural person employed by an **Outside Organization** as an in-house attorney;

3. general partner of an **Outside Organization** organized as a limited partnership;

4. manager of an **Outside Organization** organized outside the United States of America if such position is equivalent to those specified in 1, 2 or 3 above; or

5. any natural person, not described in items 1, 2 3, and 4 above who was, is or shall be a duly elected or appointed member of an advisory board of any **Outside Organization**, including, without limitation, a medical, scientific, or technology advisory board.

13. <u>PUBLIC SECURITIES OFFERING EXCLUSION – ROAD SHOW CLARIFICATION</u>

Section 4. Exclusions, A.9 is deleted and replaced by:

9. in connection with any **Claim** for, based upon, arising from, or in any way related to any:

a. public offering of securities issued by or on behalf of: (i) an **Insured Organization** if such offering commences and trading of such securities begins; or (ii) a **Public Shell Company** if an **Insured Organization** completes a merger, consolidation, or other business combination with such **Public Shell Company**; or

b. purchase or sale of securities of an **Insured Organization** or **Public Shell Company** subsequent to an offering described in a above,

provided that this exclusion shall not apply to **Loss** resulting from any **Wrongful Act**: (i) in an offering, purchase, or sale of securities of an **Insured Organization** that is exempt from registration under the Securities Act of 1933 and any similar law; (ii) in an offering, purchase or sale of debt securities of an **Insured Organization**; or (iii) in the failure of an **Insured Organization** to complete an offering, merger, consolidation, or other business combination, including, without limitation, any "road show" presentations or representations made in connection with such failed offering, merger, consolidation, or other business combination;

14. AMEND CONDUCT EXCLUSION – DELETE OMISSION

Section 4. Exclusion, A.12 is deleted and replaced by:

12. in connection with any **Claim** for, based upon, arising from, or in any way related to any deliberately fraudulent or criminal act or any willful violation of law by such **Insured**, if established by any final, non-appealable adjudication against any such **Insured** in any proceeding other than a proceeding initiated by the **Insurer**, provided that: (i) a fraudulent or criminal act under foreign law that is not a fraudulent or criminal act under the federal or state laws of the United States of America shall not, by itself, be conclusive proof that a deliberately fraudulent or criminal act occurred; and (ii) this exclusion shall not apply to **Defense Costs**.

15. D&O SHAREHOLDER SUBLIMITS – COVERAGE COORDINATION

If any **Loss** is covered under both Section 3 Coverage Extensions and Sublimits A and Section 3 Coverage Extensions and Sublimits B, the maximum aggregate amount that the **Insurer** shall pay for all **Loss** resulting from any **Claims** arising out of the same **Wrongful Act**, **Interrelated Wrongful Acts** or fact, circumstance, situation, event, transaction, or cause that are deemed a single **Claim**, shall not exceed the single greatest remaining of such Sublimits of Liability.

All other terms and conditions of this Policy remain unchanged.

Issued By: Arch Insurance Company

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

EMPLOYMENT PRACTICES LIABILITY
COVERAGE PART

TABLE OF CONTENTS

EMPLOYMENT PRACTICES
LIABILITY COVERAGE PART

1. INSURING AGREEMENTS

A. Employment Practices Liability

The **Insurer** shall pay **Loss** on behalf of an **Insured** resulting from a **Claim** by or on behalf of an **Employee**, applicant for employment, governmental agency, or **Independent Contractor** first made against such **Insured** during the **Policy Period** or Extended Reporting Period, if applicable.

B. Third Party Liability

The **Insurer** shall pay **Loss** on behalf of the **Insureds** resulting from a **Claim** by or on behalf of a **Third Party** first made against such **Insured** during the **Policy Period** or Extended Reporting Period, if applicable.

2. EEOC CHARGE & WRITTEN DEMAND CONTINUITY PROTECTION

A. All **Claims** arising from, based upon, or in any way related to the same **Employment Practices Wrongful Act**, any **Interrelated Wrongful Acts**, or the same or related facts, circumstances, or situations shall be deemed "Related Claims" and each such **Claim** shall be deemed a "Related Claim".

B. Notwithstanding General Provisions Section 11. Interrelated Claims, if the **Insureds** have a **Prior EPL Policy** and a **Claim** for an **Employment Practices Wrongful Act** that is an **EEOC Charge** or **Written Demand** commenced during the policy period of such **Prior EPL Policy** and notice of such **EEOC Charge** or **Written Demand** was not given under such **Prior EPL Policy**, then:

1. such **EEOC Charge** or **Written Demand**; and

2. any Related Claim to such **EEOC Charge** or **Written Demand** that is commenced during the **Policy Period** and is a: (i) civil lawsuit, arbitration or alternative dispute resolution proceeding; (ii) administrative or regulatory proceeding; or (iii) administrative or regulatory investigation (each a "Subsequent Related Claim"),

shall be deemed a **Claim** first made during the **Policy Period**.

C. Coverage for any **EEOC Charge**, **Written Demand**, or Subsequent Related Claim described in B above shall only be available if:

1. no **Claim Manager** was aware of such **EEOC Charge** or **Written Demand** prior to the expiration of the time to give notice of such **Claim** under the **Prior EPL Policy**;

2. no Related Claim to such **EEOC Charge** or **Written Demand** that is a: (i) civil lawsuit, arbitration or alternative dispute resolution proceeding; (ii) administrative or regulatory proceeding; or (iii) administrative or regulatory investigation, was commenced prior to the **Policy Period**;

3. such **EEOC Charge** or **Written Demand** would have been covered under the **Prior EPL Policy** had notice of such **Claim** been given under the **Prior EPL Policy**; and

4. written notice is given to the **Insurer** of such **Claim** no later than 60 days after the earlier of: (i) the date that any **Claim Manager** became aware of such **Claim**; or (ii) the end of the **Policy Period**.

D. Coverage for any **EEOC Charge**, **Written Demand**, or Subsequent Related Claim described in B above shall only apply to **Loss** incurred after the earliest date that: (i) any **Claim Manager** became aware of such **EEOC Charge** or **Written Demand**; or (ii) the date the Subsequent Related Claim was commenced. The maximum coverage available under this Policy for any such **EEOC Charge**, **Written Demand**, or Subsequent Related Claim shall be the lesser of the coverage available under the **Prior EPL Policy** or this Policy taking into account all of the terms, conditions and exclusions of each policy, including, without limitation, the applicable retention and available limit of liability under each policy as reduced by payments of **Loss.**

3. DEFINITIONS

Whether used in the singular or plural, the following terms shall have the meanings specified below:

A. **"Claim"** means:

1. any:

a. written demand for civil monetary damages or injunctive or other civil non-monetary relief commenced by the receipt by any **Insured** of such demand;

b. civil proceeding or arbitration, mediation or other alternative dispute resolution proceeding, commenced by the receipt by, or service upon, any **Insured** of a complaint, arbitration demand, mediation request or similar document;

c. administrative or regulatory proceeding, including, without limitation, any proceeding before the Equal Employment Opportunity Commission, any state or local fair employment practices agency, or the Office of Federal Contract Compliance Programs, commenced by the receipt by, or service upon, any **Insured** of an **EEOC Charge**, notice of charges, order to show cause or similar document;

d. administrative or regulatory investigation of any **Insured** commenced by the receipt by, or service upon, any **Insured** of a formal investigative order; or

provided that such demand, proceeding or investigation: (i) is for a **Wrongful Act**; and (ii) shall not include any criminal proceeding or investigation, labor or grievance proceeding initiated pursuant to a collective-bargaining agreement, or audit by the Office of Federal Contract Compliance Programs; or

2. any written request to an **Insured** to toll or waive a period or statute of limitations regarding a potential **Claim** as described in 1.a or 1.b above commenced by the receipt by any **Insured** of such request; or

3. any **Immigration Investigation Claim**, subject to the provisions of Section 4 Coverage Extensions and Sublimits C.

B. **"Defense Costs"** means reasonable fees and expenses incurred in the defense or appeal of a **Claim**. **Defense Costs** include the premium for any appeal, attachment or similar bond, provided that the **Insurer** shall have no obligation to issue, or provide collateral for, such bond. **Defense Costs** exclude any compensation, benefit expenses, or overhead of any **Insureds**.

C. **“EEOC Charge”** means any written charge filed by an **Employee**, applicant for employment with any **Insured Organization**, or **Independent Contractor** with the Equal Employment Opportunity Commission or any state or local fair employment practices agency. **EEOC Charge** excludes any lawsuit, proceeding, or investigation initiated by the Equal Employment Opportunity Commission or any state or local fair employment practices agency.

D. **“Employee”** means any natural person who is, was, or becomes an employee of an **Insured Organization**, including any full time, part-time, seasonal, leased, loaned and temporary employee as well as any volunteer or intern of an **Insured Organization**. **Employee** excludes any **Independent Contractor**.

E. **“Employment Practices Wrongful Act”** means any actual or alleged:

1. wrongful dismissal, discharge or termination of employment, including constructive dismissal, discharge, or termination;

2. employment discrimination based on age, gender, race, color, national origin, religion, creed, sexual orientation or preference, marital status, gender identity or expression, pregnancy, disability, health status, HIV status, military or veteran status, genetic makeup, political affiliation, or any other protected status specified under federal, state or local law;

3. sexual or other workplace harassment, including, without limitation, hostile work environment, bullying, or quid-pro-quo;

4. wrongful deprivation of a career opportunity, demotion, failure to employ or promote, discipline of employees, or failure to grant tenure;

5. breach of any oral, written, or implied employment contract or agreement including, without limitation, any obligation arising out of any employee manual, handbook, or policy statement;

6. **Retaliation**;

7. violation of the Family and Medical Leave Act; or

8. provided that the following conduct relates to matters described in 1 through 7 above:

a. invasion of privacy;

b. infliction of emotional distress, humiliation, or mental anguish;

c. employment related defamation, including, without limitation, a negative or defamatory employment reference;

d. employment related misrepresentation;

e. failure to provide or enforce adequate or consistent corporate employment policies and procedures; or

f. negligent hiring, retention, supervision, evaluation or training of **Employees**, committed or attempted: (i) against any **Employee**, applicant for employment with any **Insured Organization**, or **Independent Contractor**; and (ii) by any **Insured Person** in their capacity as such or any **Insured Organization**.

Without limitation, the conduct described in 1 through 8 above shall include matters carried out by any means in any location, including, without limitation, the Internet (i.e. e-mail, instant messaging, social networking services, blogs, or similar social media), regardless of whether access to the Internet is effected (i) on or off the premises of any **Insured Organization**; or (ii) through any computer or device owned or leased by any **Insured Organization**, **Insured Person**, or others.

F. **"Insured Person"** means any:

1. **Executive**;

2. **Employee**; or

3. **Independent Contractor**, if, within 60 days of a **Claim** being made against such person, any **Insured Organization** agrees in writing to indemnify such person for such **Claim**.

G. **"Insureds"** means any:

1. **Insured Organization**; or

2. **Insured Person**.

H. **"Loss"** means **Defense Costs**, damages (including front and back pay), settlements, judgments, and pre- and post-judgment interest, including plaintiff legal fees and costs awarded pursuant to a covered settlement or judgment. Regarding Section 4 Coverage Extensions and Sublimits A. Workplace Violence Coverage, **"Loss"** means any **Workplace Violence Costs** only.

The following items are specifically included in, or excluded from, **Loss**:

1. **Loss** includes any:

a. punitive, exemplary or multiple damages awarded pursuant to a covered judgment or settlement; or

b. liquidated damages awarded pursuant to the Age Discrimination in Employment Act or Equal Pay Act.

Except where required by law, the **Insurer** shall not assert that the above types of **Loss** are uninsurable. Notwithstanding 2.e below, the insurability of the above types of **Loss** shall be governed by the laws of any applicable jurisdiction that does not prohibit coverage for such **Loss**.

2. **Loss**, other than **Defense Costs**, excludes any:

a. fines or penalties imposed by law;

b. taxes;

c. amount for which the **Insureds** are not financially liable or for which the claimants are without legal recourse to the **Insureds**;

d. non-monetary relief;

e. matters that are uninsurable pursuant to applicable law;

f. future compensation of a claimant who was, is or shall be hired, promoted or reinstated to employment;

g. employment-related benefits (including, without limitation, retirement benefits, perquisites, vacation or sick days, medical or insurance benefits, stock benefits, stock options, stock appreciation rights, deferred compensation or any other type or compensation other than salary, wages or bonus compensation);

h. costs of any accommodation required by the Americans with Disabilities Act or any similar law;

i. employment termination severance amounts, including, without limitation, severance amounts offered and rejected, other than any amounts negotiated with and consented to by the **Insurer** as part of a settlement; or

j. compensation earned by, or due to, a claimant in the course of employment but not paid, other than back pay or front pay.

I. **"Mass Claim"** means any **Claim**:

1. that is a civil proceeding pursuant to Rule 23 of the Federal Rules of Civil Procedure or any similar law; or

2. by or on behalf of 2 or more persons.

J. **"Prior EPL Policy"** means an insurance policy that:

A. immediately precedes; and

B. offers employment practices liability coverage that is substantially equivalent to,

this Policy.

K. **"Retaliation"** means any negative treatment of an **Employee** or **Independent Contractor** in response to such **Employee** or **Independent Contractor**:

1. exercising his or her rights under law, including, without limitation, rights under any workers compensation laws, the Family and Medical Leave Act, or the Americans with Disabilities Act;

2. refusing to violate any law;

3. assisting, testifying in, or cooperating with, a proceeding or investigation regarding alleged violations of law;

4. disclosing or threatening to disclose to a superior or to any governmental agency any alleged violations of law; or

5. filing any claim under the False Claims Act, the Sarbanes–Oxley Act of 2002, the Dodd–Frank Wall Street Reform and Consumer Protection Act of 2010, or any similar law that protects a "whistleblower".

L. **"Third Party"** means any natural person who is not an **Employee**, **Independent Contractor**, or **Insured Person**.

M. **"Third Party Wrongful Act"** means any actual or alleged:

1. discrimination or sexual harassment directed against a **Third Party**; or

2. violation of a **Third Party's** civil rights relating to such discrimination or harassment,

by any **Insured Person** in their capacity as such or by any **Insured Organization**.

Without limitation, the conduct described in 1 and 2 above shall include matters carried out by any means in any location, including, without limitation, the Internet (i.e. e-mail, instant messaging, social networking services, blogs, or similar social media), regardless of whether access to the Internet is effected (i) on or off the premises of any **Insured Organization**; or (ii) through any computer or device owned or leased by any **Insured Organization**, **Insured Person**, or others.

N. **"Workplace Violence"** means an intentional and unlawful act perpetrated against an **Executive** or **Employee** within the buildings, facilities or properties occupied by an **Insured Organization** in conducting its business activities involving use of a deadly weapon, or threat of such use.

O. **"Workplace Violence Costs"** means the following reasonable costs incurred by an **Insured Organization** in response to any **Workplace Violence**:

1. security guard services for up to 15 days;

2. security consulting for up to 90 days;

3. public-relations consulting for up to 90 days;

4. a single group counseling for **Employees**; and

5. forensics analysis.

P. **"Written Demand"** means any **Claim** that is a written demand or request as described in Section 3. Definitions, A. "Claim", 1.a or 2.

Q. **"Wrongful Act"** means:

1. regarding Insuring Agreement A, any **Employment Practices Wrongful Act**;

2. regarding Insuring Agreement B, any **Third Party Wrongful Act**;

3. regarding the Employee Privacy Coverage Extension, any **Employee Privacy Wrongful Act**; or

4. regarding the Immigration Investigation Defense Costs Coverage Extension, any **Immigration Investigation Wrongful Act**.

4. **COVERAGE EXTENSIONS AND SUBLIMITS**

A. **WORKPLACE VIOLENCE COVERAGE**

1. The **Insurer** shall reimburse **Workplace Violence Costs** resulting from any **Workplace Violence** first commenced during the **Policy Period**. Such coverage shall be subject to the Workplace Violence Costs Sublimit of Liability specified in Item 6.D of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all Workplace Violence incidents combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

2. No Retention shall apply to coverage for **Workplace Violence Costs**.

3. Any **Claim Manager** shall give the **Insurer** written notice of any **Workplace Violence** as soon as practicable but no later than 60 days after the end of the **Policy Period**. Notice shall be given to the **Insurer** at the address for Claims or Potential Claims specified in Item 7 of the Declarations.

4. Section 5. Exclusions shall not apply to this Coverage Extension.

5. The **Insurer** shall not be liable to pay **Workplace Violence Costs** resulting from any:

   a. **Workplace Violence** initiated in connection with a demand for money, securities or other property;

   b. declared or undeclared war, civil war, insurrection, rebellion or revolution, military, naval or usurped power, governmental intervention or authority, expropriation or nationalization, or any act or condition incident or related to any of the foregoing; or

   c. attorneys fees, expenses, settlements, judgments, penalties or other amounts incurred in defending or prosecuting any legal proceeding or claim involving any **Workplace Violence**.

B. **EMPLOYEE PRIVACY CLAIM COVERAGE**

The **Insurer** shall pay **Loss** on behalf of an **Insured** resulting from an **Employee Privacy Claim** by or on behalf of an **Employee** or **Executive**, applicant for employment, governmental agency, or **Independent Contractor** first made against such **Insured** during the **Policy Period** or Extended Reporting Period, if applicable. Coverage for **Employee Privacy Claims** shall be subject to the Employee Privacy Claim Sublimit of Liability specified in Item 6.D of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Employee Privacy Claims** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

C. **IMMIGRATION INVESTIGATION DEFENSE COSTS COVERAGE**

The **Insurer** shall pay **Defense Costs** on behalf of an **Insured** resulting from an **Immigration Investigation Claim** first made during the **Policy Period** or Extended Reported Period, if applicable. Coverage for **Immigration Investigation Claims** shall be limited to **Defense Costs** only and shall be subject to the Immigration Investigation Defense Costs Sublimit of Liability specified in Item 6.D of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Immigration Investigation Claims** combined. Such Sublimit of Liability shall be part of, and not in addition to, the limit of liability applicable to this **Liability Coverage Part**.

5. EXCLUSIONS

A. The **Insurer** shall not pay **Loss:**

1. in connection with any **Claim** for, based upon, arising from, or in any way related to any fact, circumstance or situation that, before the inception date of this Policy, was the subject of any notice given and accepted as sufficient under any directors and officers liability, employment practices liability, fiduciary liability, or similar liability policy;

2. in connection with any **Claim** for, based upon, arising from or in any way related to any: (i) written demand, suit or proceeding made or initiated against any **Insured** on or prior to the applicable Prior Litigation Date in Item 6.D of the Declarations; or (ii) any **Wrongful Act** described in such demand, suit or proceeding or any **Interrelated Wrongful Acts** thereto;

3. for bodily injury, sickness, disease, or death of any person, or damage to or destruction of any tangible property, including loss of use thereof, provided that this exclusion shall not apply to any **Loss** resulting from emotional distress, humiliation or mental anguish;

4. for any violation of: (i) any workers' compensation, unemployment, social security, disability or pension benefits laws; (ii) **ERISA** (except Section 510 thereof); (iii) the National Labor Relations Act; (iv) the Worker Adjustment and Retraining Notification Act; (v) the Consolidated Omnibus Budget Reconciliation Act of 1985; (vi) the Occupational Safety and Health Act, or (vii) any similar laws to those mentioned in (i) through (vi) above, provided that this exclusion shall not apply to **Loss** resulting from **Retaliation**;

5. in connection with any **Wage & Hour Claim**, provided that this exclusion shall not apply to any: (i) **Loss** resulting from **Retaliation**; (ii) **Defense Costs**, provided that coverage for such **Defense Costs** shall be subject to the Sublimit of Liability specified in Item 6.D of the Declarations which Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay for all such **Defense Costs** under this **Liability Coverage Part** resulting from all **Wage & Hour Claims** combined and be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**; or (iii) **Loss** resulting from any **Wrongful Act** that is not a **Wage & Hour Wrongful Act** in a **Claim** that is not a **Mass Claim**;

6. for any breach of a written employment contract or agreement, provided that this exclusion shall not apply to any: (i) liability that would have been incurred in the absence of such written employment contract of agreement; or (ii) **Defense Costs**.

7. for any liability of others assumed by any **Insured** under any written contract or agreement, provided that this exclusion shall not apply to the extent that liability would have been incurred in the absence of such contract or agreement; or

8. in connection with any **Claim** for, based upon, arising from or in any way related to any breach of contract or agreement specifying the terms of an **Insured Organization's** engagement of an **Independent Contractor**.

B. Regarding Insuring Agreement B, the **Insurer** shall not pay **Loss** in connection with any **Claim** for, based upon, arising from or in any way related to any: (i) price discrimination; (ii) distribution, underwriting, design, marketing, manufacture or other policies or decisions relating to any products or services; or (iii) violation of any anti-trust law or other law designed to protect competition or prevent unfair trade practices, including, without limitation, redlining or any similar practice.

6. RETENTION

A. The **Insurer** shall pay **Loss** resulting from each **Claim** covered under this **Liability Coverage Part** only to the extent that such **Loss** exceeds the applicable Retention specified in Item 6.D of the Declarations.

B. If a **Claim** ceases to be a **Mass Claim**, the Retention applicable to a **Claim** other than a **Mass Claim** shall apply, provided that no Retention incurred by the **Insureds** while a **Claim** was a **Mass Claim** shall be reimbursed or indemnified by the **Insurer**. If a **Claim** becomes a **Mass Claim**, the **Mass Claim** Retention shall apply. In no event shall the maximum Retention for any **Claim** exceed the largest applicable Retention specified in in Item 6.D of the Declarations.

7. OTHER INSURANCE

A. To the extent that any **Claim** is covered under this **Liability Coverage Part** and any other insurance, the coverage provided under this **Liability Coverage Part** shall be primary.

B. Notwithstanding the above:

1. regarding any **Claim** made against a leased or temporary **Employee** or an **Independent Contractor**, coverage under this **Liability Coverage Part** shall be excess of, and not contribute with, any valid and collectible insurance insuring the employee leasing company, temporary employee agency, or **Independent Contracto**r; and

2. regarding any **Claim** made by or on behalf of a **Third Party**, coverage under this **Liability Coverage Part** shall be excess of, and not contribute with, any other valid and collectible insurance insuring the **Insureds** on a duty to defend basis,

regardless of whether such other insurance is stated to be excess, contributory, contingent or otherwise, unless such other insurance is written specifically excess of this Policy by reference in such other insurance to this Policy's Policy Number.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CANOPY PLUS
(AON)
(EPL)

Regarding the Employment Practices Liability Coverage Part, it is agreed that:

1. <u>CLAIM DEFINITION – FOREIGN CRIMINAL PROCEEDING AND OFFICE OF INSPECTOR GENERAL INVESTIGATIONS</u>

Section 3. Definitions, A. "Claim" is deleted and replaced by:

A. **"Claim"** means any:

1. any:

a. written demand for civil monetary damages or injunctive or other civil non-monetary relief commenced by the receipt by any **Insured** of such demand;

b. civil proceeding or arbitration, mediation or other alternative dispute resolution proceeding, commenced by the receipt by, or service upon, any **Insured** of a complaint, arbitration demand, mediation request or similar document;

c. criminal proceeding brought outside of the United States of America, Canada, Australia or any other common law jurisdiction if the jurisdiction where the proceeding is initiated requires that all proceedings for a **Wrongful Act** be brought as a criminal proceeding;

d. administrative or regulatory proceeding, including, without limitation, any proceeding before the Equal Employment Opportunity Commission, any state or local fair employment practices agency, or the Office of Federal Contract Compliance Programs, commenced by the receipt by, or service upon, any **Insured** of an **EEOC Charge**, notice of charges, order to show cause or similar document;

e. administrative or regulatory investigation, including, without limitation, any investigation before any human rights commission or Office of Inspector General, of any **Insured** commenced by the receipt by, or service upon, any **Insured** of a formal investigative order;

provided that such demand, proceeding or investigation: (i) is for a **Wrongful Act**; and (ii) shall not include any criminal proceeding or investigation (other than as described in c above), labor or grievance proceeding initiated pursuant to a collective-bargaining agreement, or audit by the Office of Federal Contract Compliance Programs;

2. any written request to an **Insured** to toll or waive a period or statute of limitations regarding a potential **Claim** as described in 1.b, 1.c or 1.d above commenced by the receipt by any **Insured** of such request; or

3. any **Immigration Investigation Claim**, subject to the provisions of Section 4 Coverage Extensions and Sublimits C.

2. <u>DEFENSE COSTS DEFINITION – EXPERT FEES, E-DISCOVERY COSTS, AND PRE-CLAIM DEFENSE COSTS</u>

Section 3. Definitions B. “Defense Costs” is deleted and replaced by:

B. **“Defense Costs”** means reasonable fees and expenses (including expert fees and expenses in connection with e-discovery) incurred in the defense or appeal of a **Claim**. **Defense Costs** include the premium for any appeal, attachment or similar bond, provided that the **Insurer** shall have no obligation to issue, or provide collateral for, such bond. **Defense Costs** exclude any compensation, benefit expenses, or overhead of any **Insureds**.

If the **Insureds** give notice to the **Insurer** pursuant to General Provisions Section 10. Claim and Potential Claim Notices, B of a **Wrongful Act**, comply with all terms of this Policy, allow the **Insurer** to effectively associate in the defense of such **Wrongful Act**, obtain the prior written consent of the **Insurer** to incur legal fees and expenses in the defense of such **Wrongful Act** (such consent not to be unreasonably withheld), and a **Claim** subsequently arises from such **Wrongful Act**, then **Defense Costs** shall also mean all reasonable fees and expenses incurred in defense of such **Wrongful Act** that are incurred (i) on or after the date such notice is received by the **Insurer**, and (ii) prior to the time that a **Claim** is made for such **Wrongful Act** (“**Pre-Claim Defense Costs**”). Coverage for **Pre-Claim Defense Costs** shall be subject to a Sublimit of Liability of $50,000 per **Claim**. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay for all **Pre-Claim Defense Costs** related to a **Claim**, including **Pre-Claim Defense Costs** related to any **Claims** arising out of the same **Wrongful Act**, **Interrelated Wrongful Acts** or fact, circumstances, situation, event, transaction, or cause that are deemed a single **Claim**. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part.**

3. <u>EMPLOYMENT PRACTICES WRONGFUL ACT DEFINITION - EXPANDED</u>

Section 3. Definitions E. “Employment Practices Wrongful Act” is deleted and replaced by:

E. **“Employment Practices Wrongful Act”** means:

1. wrongful dismissal, discharge or termination of employment, including constructive dismissal, discharge, or termination;

2. employment discrimination based on age, gender, race, color, national origin, religion, creed, sexual orientation or preference, marital status, gender identity or expression, pregnancy, disability, health status, HIV status, military or veteran status, genetic makeup, political affiliation, or any other protected status specified under federal, state, local or foreign law;

3. sexual or other workplace harassment, including, without limitation, abusive, intimidating, or hostile work environment, bullying, quid-pro-quo, workplace harassment that interferes with performance, workplace harassment based on protected status, or workplace harassment that is made a condition of employment with or used as a basis for employment decisions;

4. wrongful deprivation of a career opportunity, demotion, failure to employ or promote, discipline of employees, failure to grant tenure or reassignment;

5. breach of any oral, written, or implied employment contract or agreement including, without limitation, any obligation arising out of any employee manual, handbook, or policy statement;

6. **Retaliation**;

7. violation of the Family and Medical Leave Act;

8. violation of the Uniformed Services Employment and Reemployment Rights Act;

9. employment related misrepresentation (including any inducement to become or remain employed based upon an erroneous job description);

10. employment related defamation, including, without limitation, a negative or defamatory employment reference;

11. employment related negligent evaluation of **Employees**; or

12. provided that the following conduct relates to matters described in 1 through 11 above:

    a. invasion of privacy;

    b. infliction of emotional distress or mental anguish;

    c. failure to provide or enforce adequate or consistent corporate employment policies and procedures;

    d. negligent hiring, retention, supervision, or training of **Employees**; or

    e. employment related false imprisonment, malicious prosecution or false arrest,

committed or attempted: (i) against any **Employee**, applicant for employment with any **Insured Organization**, or **Independent Contractor**; and (ii) by any **Insured Person** in their capacity as such or any **Insured Organization**.

Without limitation, the conduct described in 1 through 12 above shall include matters carried out by any means in any location, including, without limitation, the Internet (i.e. e-mail, instant messaging, social networking services, blogs, or similar social media), regardless of whether access to the Internet is effected (i) on or off the premises of any **Insured Organization**; or (ii) through any computer or device owned or leased by any **Insured Organization**, **Insured Person**, or others.

4. <u>INSURED PERSON DEFINITION – ADVISORY BOARD MEMBERS AND BOARD OF GOVERNORS</u>

Section 3. Definitions, F. “Insured Person” is amended to add:

4. natural person who is, was, or becomes a duly elected or appointed member of an advisory board of any **Insured Organization**, including, without limitation, a medical, scientific, or technology advisory board; or

5. natural person who is a manager or member of the Board of Governors of an **Insured Organization**.

5. LOSS DEFINITION – FMLA LIQUIDATED DAMAGES

Section 3. Definitions, H. “Loss”, 1.b is deleted and replaced by:

b. liquidated damages awarded pursuant to the Age Discrimination in Employment Act, Equal Pay Act, or Family and Medical Leave Act.

6. RETALIATION DEFINITION – STRIKE

Section 3. Definitions, K. “Retaliation” also means any negative treatment of an **Employee** or **Independent Contractor** in response to such **Employee** or **Independent Contractor** participating in, cooperating with, or initiating any strike or lock-out from work.

7. THIRD PARTY DEFINITION – EXPANDED

Section 3. Definitions L. “Third Party” is deleted and replaced by:

L. **“Third Party”** means any natural person who is not an **Employee**, **Independent Contractor**, or **Insured Person** including, without limitation, students, members, customers, business invitees, business associates, vendors and suppliers.

8. THIRD PARTY WRONGFUL ACT DEFINITION – QUID PRO QUO AND HARASSMENT

Section 3. Definitions M. “Third Party Wrongful Act” is deleted and replaced by:

M. **“Third Party Wrongful Act”** means any actual or alleged:

1. discrimination or harassment, (including, but not limited to, any quid-pro-quo harassment or harassment that is abusive or intimidating), directed against a **Third Party**; or

2. violation of a **Third Party’s** civil rights relating to such discrimination or harassment,

by any **Insured Person** in their capacity as such or by any **Insured Organization**.

Without limitation, the conduct described in 1 and 2 above shall include matters carried out by any means in any location, including, without limitation, the Internet (i.e. e-mail, instant messaging, social networking services, blogs, or similar social media), regardless of whether access to the Internet is effected (i) on or off the premises of any **Insured Organization**; or (ii) through any computer or device owned or leased by any **Insured Organization**, **Insured Person**, or others.

9. EMPLOYEE PRIVACY COVERAGE – DEFENSE COSTS – RETALIATION CARVEBACK

Section 4. Coverage Extension B is deleted and replaced by:

B. EMPLOYEE PRIVACY DEFENSE COSTS COVERAGE

The **Insurer** shall pay **Defense Costs** on behalf of an **Insured** resulting from an **Employee Privacy Wrongful Act** in an **Employee Privacy Claim** by or on behalf of an **Employee** or **Executive**, applicant for employment, governmental agency, or **Independent Contractor** first made against such **Insured** during the **Policy Period** or Extended Reporting Period, if applicable. Coverage for **Employee Privacy Claims** shall be limited to **Defense Costs** only and shall be subject to the Employee Privacy Claim Sublimit of Liability specified in Item 6.D of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Employee Privacy Claims** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**. Notwithstanding the foregoing, the Employee Privacy Claim Sublimit shall not apply to **Loss** resulting from **Retaliation**.

10. EMPLOYMENT PRACTICES LIABILITY – CRISIS MANAGEMENT COSTS

Section 4. Coverage Extensions and Sublimits, is amended to add:

EPL Crisis Management Costs Coverage

1. The **Insurer** shall pay **Crisis Management Costs** resulting from an **EPL Crisis Event** occurring during the **Policy Period**. Such coverage shall be subject to a Sublimit of Liability of $25,000. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Crisis Management Costs** resulting from all **EPL Crisis Events** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

2. No Retention shall apply to **Crisis Management Costs**.

3. Any **Claim Manager** shall give the **Insurer** written notice of any **EPL Crisis Event** as soon as practicable but no later than 60 days after the end of the **Policy Period**. Notice shall be given to the **Insurer** at the address for Claims or Potential Claims specified in Item 7 of the Declarations.

4. Section 5. Exclusions shall not apply to EPL Crisis Management Costs Coverage.

5. **"Crisis Management Costs"** means reasonable fees and expenses incurred by an **Insured Organization** in response to any **EPL Crisis Event** for public relations firm services to mitigate reputational damage or legal services by an attorney approved by the **Insurer. Crisis Management Costs** excludes any compensation, internal expenses, or overhead of any **Insured**.

6. **"EPL Crisis Event"** means:

a. an allegation of an **Employment Practices Wrongful Act** which a **Claim Manager** reasonably believes will result in a **Mass Claim**; or

b. a **Claim** by an **Employee** against an **Executive** for harassment**;**

provided that the above events result in adverse publicity with publication of unfavorable information regarding an **Insured** which can reasonably be considered to materially reduce public confidence in the competence, integrity or viability of an **Insured Organization**. Such publication must occur in a report about an **Insured** appearing in: (i) a daily newspaper of general circulation or (ii) a radio or television news program.

11. EXCLUSIONS PREAMBLE

Section 5. Exclusions A is amended to apply the below preamble to Exclusions A.3, A.4, A.6, and A.7:

The **Insurer** shall not pay that part of **Loss**:

12. **PRIOR LITIGATION EXCLUSION – OFFICE OF FEDERAL CONTRACT COMPLIANCE PROGRAMS**

Section 5. Exclusions, A.2 is deleted and replaced by:

2. in connection with any **Claim** for, based upon, arising from, or in any way related to any:

a. written demand, suit or proceeding, or any audit by the Office of Federal Contract Compliance Programs, made or initiated against an **Insured** within the scope of (whether covered or not) any directors and officers liability, employment practices liability or fiduciary liability, or similar liability policy, on or prior to the applicable Prior Litigation Date in Item 6.D of the Declarations; or

b. **Wrongful Act** alleged in any such written demand, suit, proceeding or audit or any **Interrelated Wrongful Acts** thereto;

13. **WARN ACT DEFENSE COSTS COVERAGE**

Section 5 Exclusions A.4 is amended to add:

This exclusion shall not apply to **Defense Costs** resulting from any violation of the Worker Adjustment and Retraining Notification Act provided that coverage for such **Defense Costs** shall be subject to a Sublimit of Liability of $250,000 which Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay for all such **Defense Costs** under this **Liability Coverage Part** resulting from all violations of the Worker Adjustment and Retraining Notification Act combined and be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

14. **WAGE AND HOUR EXCLUSION – REMOVAL OF MASS CLAIM ALLOCATION**

Section 5. Exclusions, A.5 is deleted and replaced by:

5. in connection with any **Claim** for based upon, arising from, or in any way related to any **Wage & Hour Wrongful Act**, provided that this exclusion shall not apply to any: (i) **Loss** resulting from **Retaliation**; or (ii) **Defense Costs**, provided that coverage for such **Defense Costs** shall be subject to the Wage & Hour Claim Defense Costs Sublimit of Liability specified in Item 6.D of the Declarations which Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay for all such **Defense Costs** under this **Liability Coverage Part** resulting from all such **Claims** combined and be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

15. **OTHER INSURANCE – EXCESS CYBER**

Section 7. Other Insurance, B is deleted and replaced by:

B. Notwithstanding the above:

1. regarding any **Claim** made against a leased or temporary **Employee** or an **Independent Contractor**, coverage under this **Liability Coverage Part** shall be excess of, and not contribute with, any valid and collectible insurance insuring the employee leasing company, temporary employee agency, or **Independent Contractor**;

2. regarding any **Claim** made by or on behalf of a **Third Party**, coverage under this **Liability Coverage Part** shall be excess of, and not contribute with, any other valid and collectible insurance insuring the **Insureds** on a duty to defend basis; and

3. to the extent any **Claim** is covered under the Network Security, Privacy, & Media Liability Coverage Part or any privacy, network security or cyber liability insurance policy, coverage under this **Liability Coverage Part** shall be excess of, and not contribute with, any other valid and collectible insurance insuring the **Insureds**,

regardless of whether such other insurance is stated to be excess, contributory, contingent or otherwise, unless such other insurance is written specifically excess of this Policy by reference in such other insurance to this Policy's Policy Number.

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SEPARATE RETENTION FOR CLAIMS BROUGHT BY HIGH WAGE EARNERS (EMPLOYMENT PRACTICES LIABILITY COVERAGE PART)

Regarding the Employment Practices Liability Coverage Part, it is hereby agreed that:

1. Any **Claim** that is brought by or on behalf of a **High Wage Earner** shall be subject to a Retention of $250,000.

2. For the purpose of this endorsement, the below terms shall mean the following:

A. **High Wage Earner** means any **Employee** or **Independent Contractor** whose **Annual Compensation** from an **Insured Organization** is $200,000 or higher.

B. **Annual Compensation** means the sum of:

1. the most recent annualized base salary on the date the **Claim** is made; and

2. the annualized amount of any performance-based cash commission or bonuses earned in the twelve (12) months preceding the date the **Claim** is made.

Annual Compensation shall not include stock benefits.

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SCHEDULED STATE CLAIM RETENTION
(EPL)

Regarding the Employment Practices Liability Coverage Part, it is agreed that any **Claim**:

1. for a **Wrongful Act** occurring; or

2. filed in a court or otherwise litigated,

within the state of California shall be subject to a Retention of $50,000.

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WAGE & HOUR WRONGFUL ACT ENDORSEMENT

It is agreed that:

1. Regarding the General Provisions, Section 2. Definitions, PP. "Wage & Hour Wrongful Act" is deleted and replaced by:

PP. "Wage & Hour Wrongful Act" means any actual or alleged act, error, omission, misstatement, misleading statement, neglect or breach of duty involving any: (i) violation of federal, state, local or common law regarding compensation to any person; (ii) violation of the Fair Labor Standards Act (except the Equal Pay Act) or any similar law; (iii) overtime compensation; (iv) on-call time compensation, including, without limitation, compensation for waiting time and dressing time; (v) minimum wage or prevailing wage compensation; (vi) classification of employees for the purpose of determining eligibility for compensation; (vii) meal or rest periods; (viii) work scheduling, including, without limitation, predictive work scheduling; (ix) reimbursement of expenses; (x) disclosure of, or failure to disclose, compensation; or (xi) maintenance of accurate records relating to any law, compensation or activity mentioned in items (i) through (xi).

2. Regarding the Employment Practices Liability Coverage Part, Section 3. Definitions, Q. "Wrongful Act" is amended to add:

regarding the Wage & Hour Claim Defense Costs Sublimit of Liability, any **Wage & Hour Wrongful Act**.

All other terms and conditions of this Policy remain unchanged.

Issued By: Arch Insurance Company

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WAGE & HOUR EXCLUSION –
DEFENSE COST SUBLIMIT – OUTSIDE CALIFORNIA
(EPL COVERAGE PART)

Regarding the Employment Practices Liability Coverage Part, it is agreed that Section 5. Exclusions, A.5 is deleted and replaced by:

5. in connection with any **Wage & Hour Claim**, provided that this exclusion shall not apply to any: (i) **Loss** resulting from **Retaliation**; (ii) **Loss** resulting from any **Wrongful Act** that is not a **Wage & Hour Wrongful Act** in a **Claim** that is not a **Mass Claim**, or (iii) **Defense Costs** resulting from any **Wage & Hour Claim** made outside of California that does not include any **Wrongful Act** occurring within California and does not include any allegation of a violation of California state or local laws, provided that coverage for such **Defense Costs** shall be subject to the Wage & Hour Claim Defense Costs Sublimit of Liability specified in Item 6.D of the Declarations which Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay for all such **Defense Costs** under this **Liability Coverage Part** resulting from all such **Wage & Hour Claims** combined and be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

FIDUCIARY LIABILITY
COVERAGE PART

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FIDUCIARY LIABILITY
COVERAGE PART

1. INSURING AGREEMENTS

A. Fiduciary Liability

The **Insurer** shall pay **Loss** on behalf of an **Insured** resulting from a **Claim** first made against such **Insured** during the **Policy Period** or Extended Reporting Period, if applicable.

B. Settlement Programs

The **Insurer** shall pay a **Voluntary Settlement** and **Defense Costs** on behalf of an **Insured** resulting from a **Settlement Program Notice** first given to the **Insurer** during the **Policy Period** or Extended Reporting Period, if applicable, provided such **Voluntary Settlement** and **Defense Costs** are incurred after such **Settlement Program Notice** is first given to the **Insurer**.

This Insuring Agreement shall be subject to the Settlement Program Sublimit of Liability specified in Item 6.E of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this Insuring Agreement. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**. No Retention shall apply to this Insuring Agreement.

2. DEFINITIONS

Whether used in the singular or plural, the following terms shall have the meanings specified below:

A. "Administration" means:

1. advising, counseling or giving notice to **Employees**, participants or beneficiaries regarding any **Plan**;
2. providing interpretations regarding any **Plan**; or
3. handling records or enrolling, terminating or canceling **Employees**, participants or beneficiaries regarding any **Plan**.

B. "Claim" means:

1. any

   a. written demand for civil monetary damages or injunctive or other civil non-monetary relief commenced by the receipt by any **Insured** of such demand;

   b. civil proceeding or arbitration, mediation or other alternative dispute resolution proceeding, commenced by the receipt by, or service upon, any **Insured** of a complaint, arbitration demand, mediation request or similar document;

   c. criminal proceeding, including any related **Extradition**, commenced by the return of an indictment, information or similar document;

d. administrative or regulatory proceeding commenced by the receipt by, or service upon, any **Insured** of a notice of charges or similar document;

e. civil, criminal, administrative or regulatory investigation commenced by such **Insured's** receipt of a: (i) formal order of investigation; or (ii) target letter (within the meaning of title 9-11.151 of the United States Attorneys Manual), from an investigating authority identifying such **Insured** as a target against whom a proceeding described in 1.b, c, or d above may be commenced;

provided that: (i) such demand, proceeding or investigation is for a **Wrongful Act** by the **Insureds** or by any person for whose **Wrongful Acts** the **Insureds** are legally responsible; (ii) a and b shall not include any administrative, regulatory, or criminal proceeding or investigation; and (iii) c and d shall not include any administrative, regulatory, or criminal investigation;

2. regarding Insuring Agreement B, any **Settlement Program Notice**;

3. any **Fact-Finding Investigation** or **Procedural Appeal**, but only after such **Fact-Finding Investigation** or **Procedural Appeal** is noticed to the **Insurer**; or

4. any written request to an **Insured** to toll or waive a period or statute of limitations regarding a potential **Claim** as described in 1.b, c, or d above commenced by the receipt by any **Insured** of such request.

C. **"Defense Costs"** means reasonable fees and expenses incurred in the defense or appeal of a **Claim**. **Defense Costs** include any: (i) premium for an appeal, attachment or similar bond, provided that the **Insurer** shall have no obligation to issue, or provide collateral for, such bond; or (ii) fees and expenses of an independent fiduciary retained by an **Insured Organization** to review a proposed settlement of a covered **Claim** and any law firm retained by such fiduciary to facilitate a review of such proposed settlement. **Defense Costs** exclude any compensation, benefit expenses, or overhead of any **Insureds**.

D. **"Employee"** means any natural person who is, was, or becomes an employee of an **Insured Organization**, including any full time, part-time, seasonal, leased, loaned and temporary employee, as well as any volunteer or intern of an **Insured Organization**. **Employee** excludes any **Independent Contractor**.

E. **"Fact-Finding Investigation"** means any written notice of an investigation regarding a **Plan** by the Department of Labor ("DOL"), Pension Benefit Guaranty Corporation or any similar domestic or foreign government agency, including, without limitation, the United Kingdom's Pensions Ombudsman or Pensions Regulator.

Fact-Finding Investigation excludes any routine or regularly scheduled oversight, compliance, audit, examination or inspection conducted by a government agency or regulator.

F. **"Insured Person"** means any:

1. **Executive**;

2. **Employee**;

3. natural person who is, was, or becomes a duly elected or appointed: (i) trustee of any **Plan**; or (ii) pension or **Plan** committee or advisory board member of any **Insured Organization**, including any committee with one member;

4. **former Executive** serving in a consulting or an advisory capacity to any **Plan**, if, within 60 days of a **Claim** being made against such person, any **Insured Organization** agrees in writing to indemnify such person for such **Claim** on the same terms as is provided to any current **Executive**; or

5. **Independent Contractor**, if, within 60 days of a **Claim** being made against such person, any **Insured Organization** agrees in writing to indemnify such person for such **Claim**.

G. **"Insureds"** means any:

1. **Insured Organization**;

2. **Insured Person**; or

3. **Plan**.

H. **"Loss"** means **Defense Costs**, damages, settlements, judgments, and pre- and post-judgment interest, including plaintiff legal fees and costs awarded pursuant to a covered settlement or judgment. Regarding Insuring Agreement B, **"Loss"** means **Voluntary Settlements** and **Defense Costs**.

The following items are specifically included in, or excluded from, **Loss**:

1. **Loss** includes any:

   a. 5% or less civil penalties imposed under Section 502(i) of **ERISA**;

   b. 20% or less civil penalties imposed under Section 502(l) of **ERISA**;

   c. 15% or less civil penalties imposed under Section 4975 of the Internal Revenue Code of 1986 for covered judgments, provided that the **Insurer's** maximum aggregate liability for all such civil monetary penalties under this Policy shall be subject to the Internal Revenue Code Section 4975 Penalties Sublimit of Liability specified in Item 6.E of the Declarations that shall be the maximum aggregate amount that the **Insurer** shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

   d. civil penalties imposed for violation of the privacy provisions of the Health Insurance Portability and Accountability Act of 1996, provided that the **Insurer's** maximum aggregate liability for all such civil monetary penalties under this Policy shall be subject to the HIPAA Penalties Sublimit of Liability specified in Item 6.E of the Declarations that shall be the maximum aggregate amount that the **Insurer** shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

   e. civil penalties imposed for violation of Section 502(c) of **ERISA**, other than civil penalties under the Pension Protection Act of 2006, provided that the **Insurer's** maximum aggregate liability for all such civil monetary penalties under this Policy shall be subject to the ERISA Section 502(c) Penalties Sublimit of Liability specified in Item 6.E of the Declarations that shall be the maximum aggregate amount that the **Insurer** shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

f. civil penalties under the Pension Protection Act of 2006, provided that the **Insurer's** maximum aggregate liability for all such civil monetary penalties under this Policy shall be subject to the Pension Protection Act Penalties Sublimit of Liability specified in Item 6.E of the Declarations that shall be the maximum aggregate amount that the **Insurer** shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

g. civil penalties or other awards imposed by the Pension Ombudsman appointed by the United Kingdom Secretary of State for Social Services or by the Occupational Pensions Regulatory Authority in the United Kingdom or any successor thereto, provided that any coverage for such penalties applies only if the funds or assets of a **Plan** are not used to fund, pay or reimburse the premium for this Policy;

h. civil penalties for inadvertent violation of the Patient Protection and Affordable Care Act, provided that the **Insurer's** maximum aggregate liability for all such civil monetary penalties under this Policy shall be subject to the Patient Protection and Affordable Care Act Penalties Sublimit of Liability specified in Item 6.E of the Declarations that shall be the maximum aggregate amount that the **Insurer** shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

i. punitive, exemplary or multiple damages awarded pursuant to a covered judgment or settlement;

j. regarding Insuring Agreement B. **Voluntary Settlements**;

k. benefits that become payable by an **Insured Person** as a personal obligation; or

l. amounts representing a decrease in value of a **Sponsored Plan's** assets or a participant's account in a **Plan** due to investment losses, lost investment opportunities, excessive costs or failure to comply with a participant's investment directions, regardless of whether such amounts have been characterized as "benefits" by a claimant or any court or tribunal adjudicating any **Claim**.

Except where required by law, the **Insurer** shall not assert that the above types of **Loss** are uninsurable. Notwithstanding 2.c below, the insurability of the above types of **Loss** shall be governed by the laws of any applicable jurisdiction that does not prohibit coverage of such **Loss**.

2. **Loss**, other than **Defense Costs**, excludes any:

a. taxes, fines or penalties other than those specifically included above;

b. costs incurred in cleaning up, removing, containing, treating, detoxifying, neutralizing, assessing the effects of, testing for, or monitoring hazardous materials, **Pollutants**, or product defects;

c. matters that are uninsurable pursuant to applicable law;

d. amount for which the **Insureds** are not financially liable or for which the claimants are without legal recourse to the **Insureds**;

e. non-monetary relief; or

f. benefits under any **Plan**, including benefits that would be due under any **Plan** if such **Plan** complied with all applicable laws, except as provided in **1.k** and **1.l** above.

I. **"Managed Care Benefits"** means health care benefits provided through a **Plan** which utilizes cost control mechanisms, including, without limitation, utilization review, case management, disease management, or the use of a preferred provider network. **Managed Care Benefits** exclude any:

1. benefits provided by a **Plan** administered or managed by an **Insured**; or

2. medical and health care services and other services rendered in conjunction with medical and health care services, including, without limitation: (i) medical, surgical, dental, psychiatric, mental health, chiropractic, osteopathic, nursing or other professional health care or related services; (ii) use, prescription, furnishing or dispensing of medications, drugs, blood, blood products or medical, surgical, dental or psychiatric supplies, equipment or appliances in connection with the services specified in (i); (iii) furnishing of food, beverages, or appliances in connection with the services specified in (i); (iv) counseling or other social services; or (v) handling of, or the performance of post-mortem examinations of, human bodies.

J. **"Plan"** means any:

1. **Sponsored Plan**;

2. health insurance plan for the benefit of **Employees** only purchased by an **Insured Organization** through an exchange established pursuant to the Patient Protection and Affordable Care Act; or

3. government-mandated insurance program for workers compensation, unemployment, social security or disability benefits for **Employees**.

K. **"Procedural Appeal"** means any written notice of an appeal of any adverse benefits determination by an **Insured** pursuant to the United States Department of Labor claim procedure regulation at 29 C.F.R. Section 2560.503-1(h) or any similar claim procedure pursuant to applicable law.

L. **"Settlement Program"** means any voluntary compliance resolution program or similar voluntary settlement program administered by the United States Internal Revenue Service, United States Department of Labor or any other domestic or foreign governmental authority. Such programs include, without limitation, the Employee Plans Compliance Resolution System, Audit Closing Agreement Program, Voluntary Compliance Resolution Program, Walk-in Closing Agreement Program, Administrative Policy Regarding Self-Correction, Tax Sheltered Annuity Voluntary Correction Program, Delinquent Filer Voluntary Compliance Program, and Voluntary Fiduciary Correction Program.

M. **"Settlement Program Notice"** means prior written notice to the **Insurer** by any **Insured** of the **Insured's** intent to enter into a **Settlement Program**.

N. **"Sponsored Plan"** means any:

1. employee benefit plan, pension benefit plan or welfare benefit plan, as each is defined in **ERISA**, operated solely by an **Insured Organization**, or jointly by any **Insured Organization** and a labor organization, for the benefit of **Employees** only;

2. employee benefit plan or program not subject to **ERISA** sponsored solely by any **Insured Organization** for the benefit of **Employees** only, including any fringe benefit or excess benefit plan;

3. employee benefit plan or program otherwise described in 1 or 2 above while such plan or program is being actively developed, formed or proposed by any **Insured Organization** prior to the formal creation of such plan or program; or

4. plan, fund, or program specifically included as a **Sponsored Plan** in a written endorsement issued by the **Insurer**.

Sponsored Plan excludes any multi-employer plan or employee stock ownership plan, unless such plan is specifically included as a **Sponsored Plan** by a written endorsement issued by the **Insurer**.

O. **"Voluntary Settlement"** means any fees, fines, or penalties paid by an **Insured** to a governmental authority pursuant to a **Settlement Program** for any actual or alleged inadvertent non-compliance by a **Sponsored Plan** with any statute, rule or regulation; provided that **Voluntary Settlement** shall not include any: (i) costs to correct the non-compliance, or any other charges, expenses, taxes or damages; or (ii) fees, fines, or penalties relating to a **Sponsored Plan** that, as of the earlier of inception date of this Policy or the inception date of the first policy in an uninterrupted series of policies issued by the **Insurer** of which this Policy is a direct or indirect renewal or replacement, any **Insured Person** knew to be actually or allegedly non-compliant.

P. **"Wrongful Act"** means any actual or alleged:

1. breach by any **Insured** in their capacity as such of the responsibilities, obligations or duties imposed by **ERISA** upon fiduciaries of any **Sponsored Plan**;

2. act, error or omission in **Administration** by any **Insured** in their capacity as such;

3. act, error omission by any **Insured** in their capacity as such in advising, counseling, or providing assistance to **Employees** regarding their purchase of health insurance through any public, private or government-sponsored insurance exchange that is set up to facilitate the purchase of health insurance in accordance with the Patient Protection and Affordable Care Act;

4. act, error or omission by any **Insured** in a settlor capacity regarding any **Sponsored Plan**; or

5. matter claimed against any **Insured Person** solely by reason of their service as a fiduciary of any **Sponsored Plan**.

3. COVERAGE EXTENSION: LABOR MANAGEMENT RELATIONS ACT

Subject to the provisions of this **Liability Coverage Part**, coverage shall apply to **Loss** of any **Insured Person** as a result of a **Claim** first made against such **Insured Person** during the **Policy Period** or Extended Reporting Period, if applicable, arising from any allegation that such **Insured Person** violated Section 301 of the Labor Management Relations Act relating to alleged violations of collectively bargained contracts in connection with a **Plan**.

4. EXCLUSIONS

A. The **Insurer** shall not pay **Loss**:

1. in connection with any **Claim** for, based upon, arising from, or in any way related to any fact, circumstance or situation that, before the inception date of this Policy, was the subject of any notice given and accepted as sufficient under any directors and officers liability, employment practices liability, fiduciary liability, or similar liability policy;

2. in connection with any **Claim** for, based upon, arising from, or in any way related to any: (i) written demand, suit or proceeding made or initiated against any **Insured** on or prior to the applicable Prior Litigation Date in Item 6.E of the Declarations; or (ii) **Wrongful Act** described in any such demand, suit or proceeding or any **Interrelated Wrongful Acts** thereto;

3. for bodily injury, sickness, disease, emotional distress, mental anguish, humiliation or death of any person, or damage to or destruction of or loss of use of any tangible property, provided that this exclusion shall not apply to the selection by an **Insured** of any provider of **Managed Care Benefits**;

4. in connection with any **Claim** for, based upon, arising from, or in any way related to any contract or agreement, provided that this exclusion shall not apply to the extent that liability:

a. would have been incurred in the absence of such contract or agreement; or

b. was assumed in accordance with or under an agreement or declaration of trust pursuant to which a **Plan** was established;

5. for any violation of any workers' compensation, unemployment insurance, social security, disability benefits law or any similar law except the:

a. Consolidated Omnibus Budget Reconciliation Act of 1985; or

b. Health Insurance Portability and Accountability Act of 1996;

6. for discrimination in violation of any law other than **ERISA**;

7. in connection with any:

a. **Wage & Hour Claim**; or

b. **Claim** for, based upon, arising from, or in any way related to any violation of the: (i) Worker Adjustment and Retraining Notification Act; (ii) Occupational Safety and Health Act (OSHA); or (iii) any similar law to those mentioned in (i) through (ii) above;

8. in connection with any **Claim** for, based upon, arising from, or in any way related to the gaining of any personal profit, remuneration or financial advantage to which such **Insured** is not legally entitled, if established by any final, non-appealable adjudication against any such **Insured** in any proceeding other than a proceeding initiated by the **Insurer**, provided that this exclusion shall not apply to **Defense Costs**; or

9. in connection with any **Claim** for, based upon, arising from, or in any way related to any deliberately fraudulent or criminal act or omission or any willful violation of law by such **Insured,** if established by any final, non-appealable adjudication against any such **Insured** in any proceeding other than in a proceeding initiated by the **Insurer**, provided that: (i) a fraudulent or criminal act or omission under foreign law that is not a fraudulent or criminal act or omission under the federal or state laws of the United States of America shall not, by itself, be conclusive proof that a deliberately fraudulent or criminal act or omission occurred; and (ii) this exclusion shall not apply to **Defense Costs**.

Regarding exclusions 8 and 9 above: (i) no **Wrongful Act** of any **Insured Person** shall be imputed to any other **Insured Person**; and (ii) only a **Wrongful Act** by a past, present or future chief executive officer or chief financial officer of the **Named Organization** shall be imputed to an **Insured Organization** or **Plan**.

5. TERMINATED PLAN COVERAGE

If, before or during the **Policy Period**, any **Plan** is terminated, coverage for such **Plan** and its **Insureds** shall continue until termination of this Policy. Such coverage continuation shall apply to covered **Claims** for **Wrongful Acts** occurring prior to or after the date the **Plan** was terminated.

6. RECOURSE WAIVER

The **Insurer** shall have no right of recourse against any **Insureds** for any payment of **Loss** made by the **Insurer** under this **Liability Coverage Part** because of a **Wrongful Act** by such **Insureds** if the premium for this Policy was paid for by other than a **Plan**.

7. RETENTION WAIVER FOR CERTAIN PENALTIES

Notwithstanding any other provision of this Policy, no Retention shall apply to **Loss** constituting civil penalties under Section 4975 of the Internal Revenue Code of 1986, the Health Insurance Portability and Accountability Act of 1996, Section 502(c) of **ERISA**, the Pension Protection Act of 2006, or the Patient Protection and Affordable Care Act.

8. DISPROVEN ALLEGATION COVERAGE

If an allegation that potentially triggers coverage under this Policy is disproven, so that a **Claim** is outside the scope of coverage under this Policy, the **Insurer** shall not seek recovery of amounts that it has previously paid. Without limitation, examples of such situations would include:

A. an **Insured Organization** alleged to be the sponsor of a **Plan** was not, in fact, the sponsor of such plan;

B. an alleged **Plan** was not a plan or was not a covered **Plan**; or

C. a director, officer or employee of an **Insured Organization** who was alleged to be a fiduciary of a **Plan** was not, in fact, a fiduciary of a **Plan**.

9. PRIORITY OF LOSS PAYMENTS

If **Loss** is incurred that is acknowledged by the **Insurer** to be covered under this **Liability Coverage Part** except that such **Loss** exceeds the remaining Limit of Liability for this Policy, the **Insurer** shall pay such **Loss** in the following order:

A. first, **Non-Indemnifiable Loss**;

B. second, **Loss** incurred by a **Plan**; and

C. third, **Loss** incurred by an **Insured Organization**.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CANOPY PLUS
(AON)
(FIDUCIARY)

Regarding the Fiduciary Liability Coverage Part, it is agreed that:

1. **ADMINISTRATION DEFINITION – EXECUTIVES, MONITORING, CALCULATING, AND DETERMINING**

Section 2. Definitions, A. "Administration" is deleted and replaced by:

A. **"Administration"** means:

1. advising, counseling or giving notice to **Employees**, **Executives**, participants or beneficiaries regarding any **Plan**;

2. providing interpretations regarding any **Plan**;

3. handling records or enrolling, terminating or canceling **Employees**, **Executives**, participants or beneficiaries regarding any **Plan**;

4. selecting or monitoring of any third-party service providers to any **Plan**;

5. preparing, distributing or filing required notices or documents regarding any **Plan**; or

6. calculating benefits, determining vesting or eligibility for benefits regarding any **Plan.**

2. **INTERVIEW COVERAGE**

Section 2. Definitions, E. "Fact-Finding Investigation" is deleted and replaced by:

E. **"Fact-Finding Investigation"** means any written notice of an investigation or request for an interview regarding a **Plan** by the Department of Labor ("DOL"), Pension Benefit Guaranty Corporation or any similar domestic or foreign government agency, including, without limitation, the United Kingdom's Pensions Ombudsman or Pensions Regulator.

Fact-Finding Investigation excludes any routine or regularly scheduled oversight, compliance, audit, examination or inspection conducted by a government agency or regulator.

3. **DEFENSE COSTS – EXPERT FEES, E-DISCOVERY COSTS, AND PRE-CLAIM DEFENSE COSTS**

Section 2. Definitions, C. "Defense Costs" is deleted and replaced by:

C. **"Defense Costs"** means reasonable fees and expenses (including expert fees and expenses in connection with e-discovery) incurred in the defense or appeal of a **Claim**. **Defense Costs** include any: (i) premium for an appeal, attachment or similar bond, provided that the **Insurer** shall have no obligation to issue, or provide collateral for, such bond; or (ii) fees and expenses of an independent fiduciary retained by an **Insured Organization** to review a proposed settlement of a covered **Claim** and any law firm retained by such fiduciary to facilitate a review of such proposed settlement. **Defense Costs** exclude any compensation, benefit expenses, or overhead of any **Insureds**.

If the **Insureds** give notice to the **Insurer** pursuant to General Provisions Section 10. Claim and Potential Claim Notices, B of a **Wrongful Act**, comply with all terms of this Policy, allow the **Insurer** to effectively associate in the defense of such **Wrongful Act**, obtain the prior written consent of the **Insurer** to incur legal fees and expenses in the defense of such **Wrongful Act** (such consent not to be unreasonably withheld), and a **Claim** subsequently arises from such **Wrongful Act**, then **Defense Costs** shall also mean all reasonable fees and expenses incurred in defense of such **Wrongful Act** that are incurred (i) on or after the date such notice is received by the **Insurer**, and (ii) prior to the time that a **Claim** is made for such **Wrongful Act** ("**Pre-Claim Defense Costs**"). Coverage for **Pre-Claim Defense Costs** shall be subject to a Sublimit of Liability of $50,000 per **Claim**. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay for all **Pre-Claim Defense Costs** related to a **Claim**, including **Pre-Claim Defense Costs** related to any **Claims** arising out of the same **Wrongful Act**, **Interrelated Wrongful Acts** or fact, circumstances, situation, event, transaction, or cause that are deemed a single **Claim**. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

4. LOSS DEFINITION – ADD PENALTIES UNDER HITECH AND REPUBLIC OF IRELAND, ATTORNEY'S FEES UNDER SECTION 502(g), AND AMOUNTS DUE TO FAILURE TO ENROLL

Section 2. Definitions, H. "Loss" 1.d and 1.g are deleted and replaced by:

d. civil penalties imposed for violation of the privacy provisions of the Health Insurance Portability and Accountability Act of 1996 (HIPAA) and Health Information Technology for Economic and Clinical Health Act (HITECH), provided that the **Insurer's** maximum aggregate liability for all such civil monetary penalties under this Policy shall be subject to the HIPAA Penalties Sublimit of Liability specified in Item 6.E of the Declarations that shall be the maximum aggregate amount that the **Insurer** shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**;

g. civil penalties or other awards imposed by the Pension Ombudsman appointed by the United Kingdom Secretary of State for Social Services or by the Occupational Pensions Regulatory Authority in the United Kingdom or the Republic of Ireland's Pensions Board or Pensions Ombudsman or any successor thereto, provided that any coverage for such penalties applies only if the funds or assets of a **Plan** are not used to fund, pay or reimburse the premium for this Policy;

Section 2. Definitions, H. "Loss" 1. is amended to add:

m. plaintiff legal fees and costs awarded by a court pursuant to Section 502(g) of **ERISA**; or

n. amounts that would otherwise be due to, or on behalf of, a participant or beneficiary of a **Plan** but for the negligent failure to enroll such participant or beneficiay in such **Plan**.

5. SETTLEMENT PROGRAM DEFINITION – PBGC

Section 2. Definitions, L. "Settlement Program" is deleted and replaced by:

L. **"Settlement Program"** means any voluntary compliance resolution program or similar voluntary settlement program administered by the United States Internal Revenue Service, United States Department of Labor, the Pension Benefit Guaranty Corporation, or any other similar domestic or foreign governmental authority. Such programs include, without limitation, the Employee Plans Compliance Resolution System, Audit Closing Agreement Program, Voluntary Compliance Resolution Program, Walk-in Closing Agreement Program, Administrative Policy Regarding Self-Correction, Tax Sheltered Annuity Voluntary Correction Program, Delinquent Filer Voluntary Compliance Program, and Voluntary Fiduciary Correction Program.

6. SPONSORED PLAN DEFINITION – EXECUTIVE PLANS

Section 2. Definitions, N. "Sponsored Plan" is deleted and replaced by:

N. **"Sponsored Plan"** means any:

1. employee benefit plan, pension benefit plan or welfare benefit plan, as each is defined in **ERISA**, operated solely by an **Insured Organization**, or jointly by any **Insured Organization** and a labor organization, for the benefit of **Employees** or **Executives** only;

2. employee benefit plan or program not subject to **ERISA** sponsored solely by any **Insured Organization** for the benefit of **Employees** or **Executives** only, including any fringe benefit or excess benefit plan;

3. employee benefit plan or program otherwise described in 1 or 2 above while such plan or program is being actively developed, formed or proposed by any **Insured Organization** prior to the formal creation of such plan or program; or

4. plan, fund, or program specifically included as a **Sponsored Plan** in a written endorsement issued by the **Insurer**.

Sponsored Plan excludes any multi-employer plan or employee stock ownership plan, unless such plan is specifically included as a **Sponsored Plan** by a written endorsement issued by the **Insurer**.

7. FIDUCIARY LIABILITY - CRISIS MANAGEMENT COSTS

Section 3. Coverage Extension: Labor Management Relations Act, is amended to add:

Fiduciary Crisis Management Costs Coverage

1. The **Insurer** shall pay **Crisis Management Costs** resulting from a **Fiduciary Crisis Event** occurring during the **Policy Period**. Such coverage shall be subject to a Sublimit of Liability of $5,000. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Liability Coverage Part** for all **Crisis Management Costs** resulting from all **Fiduciary Crisis Events** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

2. No Retention shall apply to **Crisis Management Costs**.

3. Any **Claim Manager** shall give the **Insurer** written notice of any **Fiduciary Crisis Event** as soon as practicable but no later than 60 days after the end of the **Policy**

Period. Notice shall be given to the **Insurer** at the address for Claims or Potential Claims specified in Item 7 of the Declarations.

4. Section 4. Exclusions shall not apply to Fiduciary Crisis Management Costs Coverage.

5. **"Crisis Management Costs"** means reasonable fees and expenses incurred by an **Insured Organization** in response to any **Fiduciary Crisis Event** for public relations firm services to mitigate reputational damage or legal services by an attorney approved by the **Insurer. Crisis Management Costs** excludes any compensation, internal expenses, or overhead of any **Insured**.

6. **"Fiduciary Crisis Event"** means:

a. the assets of a **Sponsored Plan** decreased in value by 25% or more within a 30 day period;

b. a voluntary or involuntary Bankruptcy petition was or will be filed against any custodial trustee of any **Sponsored Plan**; or

c. an administrative or regulatory criminal proceeding against a **Sponsored Plan** fiduciary for theft or fraud with respect to a **Sponsored Plan**;

provided that the above events result in adverse publicity with publication of unfavorable information regarding an **Insured** which can reasonably be considered to materially reduce public confidence in the competence, integrity or viability of an **Insured Organization**. Such publication must occur in a report about an **Insured** appearing in: (i) a daily newspaper of general circulation or (ii) a radio or television news program.

8. **ADDITIONAL CIVIL PENALTIES SUBLIMIT**

Section 3. Coverage Extension: Labor Management Relations Act, is amended to add:

Additional Civil Penalties Sublimit

1. The **Insurer** shall pay an additional **Civil Penalties** Sublimit resulting from a **Loss** occurring during the **Policy Period**. Such coverage shall be subject to a Sublimit of Liability of $50,000. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay for all **Loss** and in excess to each **Civil Penalties** sublimit. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Liability Coverage Part**.

2. **"Civil Penalties"** means any civil penalties under 1.a, 1.b, 1.c, 1.d, 1.e, 1.f, 1.g, and 1.h under the definition of **Loss**. **Civil Penalties** shall not include civil penalties under 1.d if the HIPAA Penalties Sublimit of Liability specified in Item 6.E of the Declarations is $1,500,000 or greater.

9. **EXCLUSION PREAMBLE**

Section 4. Exclusions is amended to apply the below preamble to Exclusions A.3, A.5, and A.6:

The **Insurer** shall not pay that part of **Loss**:

10. PRIOR LITIGATION EXCLUSION – WITHIN SCOPE

Section 4. Exclusions, A.2 is deleted and replaced by:

2. in connection with any **Claim** for, based upon, arising from, or in any way related to any:

a. written demand, suit or proceeding made or initiated against any **Insured** within the scope of (whether covered or not) any directors and officers liability, employment practices liability, fiduciary liability, or similar liability policy, on or prior to the applicable Prior Litigation Date in Item 6.E of the Declarations; or

b. **Wrongful Act** specified in such prior demand, suit or proceeding or any **Interrelated Wrongful Acts** thereto;

11. BI/PD EXCLUSION – DEFENSE COSTS COVERAGE FOR ERISA VIOLATIONS

Section 4. Exclusions, A.3 is deleted and replaced by:

3. for bodily injury, sickness, disease, emotional distress, mental anguish, humiliation or death of any person, or damage to or destruction of or loss of use of any tangible property, provided that this exclusion shall not apply to: (i) **Defense Costs** resulting from a violation of **ERISA**; or (ii) the selection by an **Insured** of any provider of **Managed Care Benefits**;

12. AMEND CONDUCT EXCLUSIONS – DELETE OMISSION

Section 4. Exclusions, A.9 is deleted and replaced by:

9. in connection with any **Claim** for, based upon, arising from, or in any way related to any deliberately fraudulent or criminal act or any willful violation of law by such **Insured**, if established by any final, non-appealable adjudication against any such **Insured** in any proceeding other than in a proceeding initiated by the **Insurer**, provided that: (i) a fraudulent or criminal act under foreign law that is not a fraudulent or criminal act under the federal or state laws of the United States of America shall not, by itself, be conclusive proof that a deliberately fraudulent or criminal act occurred; and (ii) this exclusion shall not apply to **Defense Costs**.

13. DELETE CONTRACT EXCLUSION

Section 4. Exclusions, A.4 is deleted.

14. RETENTION – PLAN SPONSOR FAILURE TO ADVANCE

General Provisions, Section, 7. Retention, F is deleted and replaced by:

F. All **Insured Organizations** and **Plans** shall provide indemnification for **Loss**, and advance **Defense Costs**, on behalf of any **Insured Person** to the fullest extent permitted or required by law. If such indemnification or advancement is permitted or required by law and all such **Insured Organizations** and **Plans**:

1. refuse in writing to indemnify or advance; or

2. fail to indemnify or advance within 60 days after any written request of an **Insured Person** for such indemnification or advancement, then any coverage under any **Liability Coverage Part** for such **Insured Person** shall apply without any Retention and such **Insured Organizations** or **Plans** shall reimburse the **Insurer** for the Retention that would have applied if such indemnification or advancement had been made. Such reimbursement shall become immediately due and payable as a direct obligation of such **Insured Organizations** or **Plans** to the **Insurer**. The refusal or failure of any **Insured Organization** or **Plans** to indemnify or advance shall not impair the rights of any **Insured Person** under this Policy.

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

CRIME COVERAGE PART

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CRIME COVERAGE PART

1. INSURING AGREEMENTS

A. Employee Theft

The **Insurer** shall pay **Loss** by an **Insured** for which **Discovery** first occurs during the **Policy Period** resulting from any **Employee**, acting alone or in collusion with others, committing any:

1. **Theft** of **Money**, **Property**, or **Securities**;
2. **Forgery**; or
3. regarding an **ERISA Sponsored Plan**, **Fraud** or **Dishonesty**.

B. Customer Property

The **Insurer** shall pay **Loss** by a **Customer** for which **Discovery** first occurs during the **Policy Period** resulting from any **Employee**, not in collusion with such **Customer** or such **Customer's** employees, committing any:

1. **Theft** of **Money**, **Property**, or **Securities**; or
2. **Forgery**.

C. Inside the Premises

The **Insurer** shall pay **Loss** by an **Insured** for which **Discovery** first occurs during the **Policy Period**:

1. of **Money** or **Securities** while inside the **Premises** or any **Banking Premises** resulting from any:
   a. **Third Party** committing any **Robbery**, **Safe Burglary**, or **Theft**; or
   b. destruction or mysterious unexplainable disappearance; or
2. inside the **Premises** resulting from any **Third Party** committing any:
   a. damage to **Property** during any **Robbery** or attempted **Robbery**;
   b. damage to **Property** contained inside any safe during any **Safe Burglary** or attempted **Safe Burglary**;
   c. damage to a locked safe, cash drawer, cash box or cash register during any felonious entry or attempted felonious entry;
   d. felonious abstraction of a locked safe, cash drawer, cash box or cash register; or
   e. damage to the **Premises** during any **Safe Burglary** or attempted **Safe Burglary** or **Robbery** or attempted **Robbery**.

D. **Outside the Premises**

The **Insurer** shall pay **Loss** by an **Insured** for which **Discovery** first occurs during the **Policy Period:**

1. of **Money** or **Securities** while **In Transit**, or while temporarily inside the home of an **Employee** or a partner of an **Insured Organization**, resulting from any:

    a. **Third Party** committing any **Robbery** or **Theft**; or

    b. destruction or mysterious unexplainable disappearance; or

2. resulting from any **Third Party** committing any:

    a. damage to **Property** while **In Transit** during any **Robbery** or attempted **Robbery**; or

    b. **Theft** of **Property** while temporarily inside the home of an **Employee** or a partner of an **Insured Organization.**

E. **Forgery or Alteration**

The **Insurer** shall pay **Loss** by an **Insured** for which **Discovery** first occurs during the **Policy Period** resulting from any **Third Party** committing any:

1. **Forgery** of a **Financial Instrument**; or

2. **Alteration** of a **Financial Instrument**,

other than **Loss** resulting from **Charge Card Fraud**.

F. **Computer Fraud**

The **Insurer** shall pay **Loss** by an **Insured** of **Money**, **Property** or **Securities** for which **Discovery** first occurs during the **Policy Period** resulting from any **Third Party** committing any **Computer Fraud**.

G. **Fraudulent Transfer Instructions**

The **Insurer** shall pay **Loss** by an **Insured** of **Money** or **Securities** for which **Discovery** first occurs during the **Policy Period** resulting from any **Third Party** committing any **Fraudulent Transfer Instructions**.

H. **Social Engineering Fraud**

The **Insurer** shall pay **Loss** by an **Insured** of **Money** or **Securities** for which **Discovery** first occurs during the **Policy Period** resulting from any **Social Engineering Fraud**.

I. **Currency Fraud**

The **Insurer** shall pay **Loss** by an **Insured** for which **Discovery** first occurs during the **Policy Period** resulting from any **Third Party** committing any **Currency Fraud.**

J. **Charge Card Fraud**

The **Insurer** shall pay **Loss** by an **Insured** for which **Discovery** first occurs during the **Policy Period** resulting from any **Third Party** committing any **Charge Card Fraud** provided that:

1. the terms and conditions imposed by the issuer of any credit, debit or charge card have been complied with; and

2. the **Insured** is legally liable for such **Loss**.

2. DEFINITIONS

Whether used in the singular or plural, the following terms shall have the meanings specified below:

A. **"Alteration"** means the material modification of an original document by a person acting without authority and with the intent to deceive.

B. **"Banking Premises"** means the interior portion of any building occupied by a banking institution or similar safe depository to conduct its business.

C. **"Charge Card Fraud"** means **Forgery** or **Alteration** of any written instrument required in connection with any corporate credit, debit or charge card issued to any:

  1. **Insured Organization**; or

  2. **Executive** or **Employee** for which an **Insured Organization** has requested the issuance of such card to such **Executive** or **Employee**.

D. **"Computer Fraud"** means **Theft** directed against an **Insured Organization** committed through the use of any computer or computer network, including all input, output, processing, storage, off-line media libraries and communication devices connected to any computer or computer network.

E. **"Computer Restoration Costs"** means reasonable fees and expenses incurred by an **Insured** with the **Insurer's** prior written consent to reproduce or duplicate damaged or destroyed **Data** or computer programs. If such computer programs cannot be duplicated from other computer programs, then **Computer Restoration Costs** also include reasonable costs incurred for computer time, computer programmers, technical experts, and consultants to restore the computer programs to substantially the same level of operational capability immediately preceding the covered **Loss**. **Computer Restoration Costs** exclude any compensation, benefit expenses, or overhead of any **Insureds** or any fees or expenses incurred by any **Customer**.

F. **"Counterfeit"** means an imitation of an actual valid original that is intended to deceive and to be taken as the original.

G. **"Currency Fraud"** means the good faith acceptance by an **Insured Organization** in the regular course of business and in exchange for merchandise, **Money**, or services of any:

  1. **Counterfeit** post office or express money order issued, or purporting to have been issued, by any post office or express company that is not paid upon presentation; or

  2. **Counterfeit** paper currency.

H. **"Customer"** means any person or entity to which an **Insured Organization** provides goods or services for consideration.

I. **"Data"** means information of any kind regardless of the medium in which such information is stored, including, without limitation, accounts, microfilms, tapes or other paper or electronic records. **Data** includes, without limitation, any financial information, credit card information, health information, confidential information or personally identifiable information.

J. **"Discovery"** means knowledge acquired by an **Executive** that would cause a reasonable person to believe:

1. a covered **Loss** has occurred; or

2. that circumstances have arisen that may subsequently result in a covered **Loss**,

including **Loss**: (i) sustained prior to the inception date of this Policy specified in Item 2 of the Declarations; (ii) not exceeding the applicable Retention specified in Item 6.F of the Declarations; or (iii) for which exact details are unknown.

Discovery excludes knowledge acquired by an **Executive** acting alone or in collusion with an **Employee** as a participant in a **Theft** or **Forgery**.

K. **"Employee"** means any natural person who at the time of **Loss** is:

1. an employee of an **Insured Organization**, including any full time, part-time, seasonal, leased, loaned, or temporary employee, as well as any volunteer or intern of an **Insured Organization** other than any volunteer acting as a fund solicitor during fund-raising activities;

2. an **Executive** not meeting the definition of 1 above while performing acts within the scope of the usual duties of an employee of an **Insured Organization**;

3. any person formerly meeting the definition of 1 or 2 above while retained by, and consulting for, an **Insured Organization** pursuant to a written contract;

4. a fiduciary, trustee, administrator or employee of a **Sponsored Plan** or any other person required to be bonded in connection with a **Sponsored Plan** by Title 1 of **ERISA**; or

5. an **Independent Contractor**.

L. **"ERISA Sponsored Plan"** means any **Sponsored Plan** that is subject to **ERISA**.

M. **"Financial Instrument"** means any check, draft, or similar order to pay a specific amount of money that is made, drawn by or drawn upon an **Insured Organization** or by anyone acting as an agent of an **Insured Organization**, or that is purported to have been so made or drawn.

N. **"Fraud or Dishonesty"** means any larceny, theft, embezzlement, forgery, misappropriation, wrongful abstraction, wrongful conversion or willful misapplication, or any other fraudulent or dishonest act, including acts prohibited by Title 18, Section 1954 of the United States Code.

O. **"Forgery"** means the signing of another natural person's name with the intent to deceive. **Forgery** excludes a signature that consists in whole or in part of one's own name, signed with or without authority, in any capacity for any purpose. Mechanically or electronically produced or reproduced signatures shall be treated the same as hand-written signatures.

P. **"Fraudulent Transfer Instructions"** means any fraudulent written, electronic, telegraphic, cable, teletype or telephonic instructions issued to a financial institution directing such institution to initiate a transfer of **Money** or **Securities** from any account maintained by an **Insured Organization** at such institution which instructions purport to have been authorized by such **Insured Organization** but were, in fact, fraudulently transmitted by someone other than such **Insured Organization**.

Q. **"In Transit"** means a conveyance outside the **Premises** by an **Insured Organization** within the custody of any:

1. **Employee** or partner of an **Insured Organization**; or

2. authorized custodian of an **Insured Organization**.

Such conveyance begins upon receipt of the conveyance by any person described in 1 or 2 above from any **Insured Organization**, and ceases upon delivery of the conveyance to the designated recipient or its agent.

R. **"Insureds"** means any:

1. **Insured Organization**; or

2. **Sponsored Plan**.

Insureds exclude any **Customer**.

S. **"Investigation Costs"** means reasonable fees and expenses incurred by an **Insured** with the **Insurer's** prior written consent to establish the existence and amount of a covered **Loss**. **Investigation Costs** exclude any: (i) compensation, benefit expenses, or overhead of any **Insureds**; and (ii) fees or expenses incurred by any **Customer**.

T. **"Loss"** means direct loss sustained to the immediate deprivation of:

1. regarding all Insuring Agreements other than Insuring Agreement B. Customer Property, an **Insured**; or

2. regarding Insuring Agreement B. Customer Property, a **Customer**.

Loss excludes any indirect or consequential loss of any nature, including, without limitation, any fees, expenses, compensation, interest, fines, penalties, damages, settlements, or judgments.

Notwithstanding the above, **"Loss"** also means any: (i) amounts paid under Section 7. Defense Costs Coverage (Forgery or Alteration); (ii) **Investigation Costs** if Investigation Costs Coverage is elected in Item 6.F of the Declarations; or (iii) **Computer Restoration Costs** if Computer Restoration Costs Coverage is elected in Item 6.F of the Declarations.

U. **"Money"** means any:

A. currency, coin, and bank notes;

B. bullion; or

C. travelers checks, registered checks or money orders held for sale to the general public.

V. **“Premises”** means the interior portion of a building occupied by an **Insured Organization** to conduct its business.

W. **“Property”** means tangible property other than **Money** or **Securities**. **Property** excludes **Data**.

X. **“Robbery”** means a **Theft** from the care and custody of any:

1. **Employee**; or

2. authorized custodian of an **Insured Organization** other than a watchman, porter or janitor,

by violence or threat of violence committed in the presence and cognizance of such person.

Y. **“Safe Burglary”** means **Theft** from a locked vault or safe located inside the **Premises** by forcible or violent entry as evidenced by visible marks**.**

Z. **“Securities”** means negotiable and non-negotiable instruments representing either **Money** or **Property**, including tokens, tickets, revenue or other stamps in current use. **Securities** exclude **Money**.

AA. **“Social Engineering Fraud”** means a communication from a **Third Party** to an **Insured Organization** that: (i) purports to be from a customer, vendor, business affiliate, **Employee**, or **Executive**, of such **Insured Organization**, but is not actually from such customer, vendor, business affiliate, **Employee**, or **Executive**; and (ii) requests that such **Insured Organization** effectuate a transfer, payment or delivery of **Money** or **Securities.**

BB. **“Sponsored Plan”** means any:

1. employee benefit plan, pension benefit plan or welfare benefit plan, as each is defined in **ERISA**, operated solely by an **Insured Organization**, or jointly by any **Insured Organization** and a labor organization, solely for the benefit of employees of an **Insured Organization**;

2. employee benefit plan or program not subject to **ERISA** sponsored solely by any **Insured Organization** for the benefit of employees of an **Insured Organization,** including any fringe benefit or excess benefit plan; or

3. plan, fund, or program specifically included as a **Sponsored Plan** in a written endorsement issued by the **Insurer**.

Sponsored Plan excludes any multi-employer plan.

CC. **“Theft”** means any unlawful taking.

DD. **“Third Party”** means any natural person other than:

1. an **Employee** or an **Executive**; or

2. a person acting in collusion with an **Employee** or an **Executive**.

3. EXCLUSIONS

A. The **Insurer** shall not pay **Loss** resulting from any:

1. **Theft**, **Computer Fraud**, **Fraudulent Transfer Instructions** or any other fraudulent, dishonest or criminal act (other than **Robbery** or **Safe Burglary**), by any authorized representative of an **Insured Organization**, other than an **Employee**, provided that this exclusion shall not apply if an authorized representative is acting in collusion with an **Employee**;

2. fire, provided that this exclusion shall not apply to:

a. **Loss** of **Money** or **Securities**; or

b. damage to any safe or vault caused by the application of fire during any **Safe Burglary** or attempted **Safe Burglary**;

3. **Theft** or **Forgery** by an owner of an **Insured Organization**, whether acting alone or in collusion with others, provided that:

a. if such **Theft** or **Forgery** would have otherwise been a covered **Loss** if committed by someone else, the **Insurer** shall pay a percentage of such **Loss** equal to the percentage ownership of all innocent owners of such **Insured Organization** on the day immediately preceding the date of **Discovery**; and

b. this exclusion shall not apply to **Loss** by an **ERISA Sponsored Plan** resulting from **Fraud or Dishonesty**;

4. authorized or unauthorized trading, regardless of whether such trading is: (i) in the name of an **Insured** or another; (ii) in a genuine or fictitious account; or (iii) with or without the knowledge of any **Insured**, provided that this exclusion shall not apply to **Loss**:

a. caused by **Theft** or **Forgery** resulting in improper financial gain to an **Employee** (**Loss** as used in this exclusion means only the amount of improper financial gain to such **Employee** and excludes any compensation paid by an **Insured Organization** to such **Employee** such as salary, bonuses, incentive payments commissions, or employee benefits); or

b. by an **ERISA Sponsored Plan** resulting from **Fraud or Dishonesty**;

5. declared or undeclared war, civil war, insurrection, rebellion or revolution, military, naval or usurped power, governmental intervention or authority, expropriation or nationalization, or any act or condition incident or related to any of the foregoing;

6. loss of income, including, without limitation, interest and dividends;

7. **Employee** to the extent that **Loss** occurs after an **Executive** acquires knowledge of fraud or dishonesty committed by such **Employee** prior to or during employment with an **Insured** involving **Money**, **Property** or **Securities** valued at $25,000 or more;

8. giving or surrendering **Money**, **Property**, or **Securities** in any exchange or purchase with any person or entity not in collusion with an **Employee**, provided that this exclusion shall not apply to **Currency Fraud** or **Social Engineering Fraud**;

9. **Loss** sustained by one **Insured** to the advantage of any other **Insured**, provided that this exclusion shall not apply to **Loss** by an **ERISA Sponsored Plan** resulting from **Fraud or Dishonesty**;

10. disappearance of, or damage to, **Money**, **Property**, or **Securities** while in the custody of any bank, trust company, similar recognized place of safe deposit, armored motor vehicle company or any person duly authorized by an **Insured Organization** to have custody of the property, provided that this exclusion shall not apply to **Loss** excess of the amount recovered or received by an **Insured Organization** under:

    a. an **Insured Organization's** contract, if any, with, or insurance carried by, any of the foregoing; or

    b. any other valid or collectible insurance or indemnity; or

11. nuclear reaction, nuclear radiation or radioactive contamination, or any related act or incident.

B. Regarding all Insuring Agreements other than Insuring Agreements A. Employee Theft and H. Social Engineering Fraud, the **Insurer** shall not pay **Loss** resulting from **Social Engineering Fraud**.

C. Regarding Insuring Agreements A. Employee Theft and B. Customer Property, the **Insurer** shall not pay **Loss** resulting from any agent, broker, factor, commission merchant, consignee, contractor, independent contractor or other representative of the same general character, provided that this exclusion shall not apply to **Loss** resulting from any **Independent Contractor**.

D. Regarding Insuring Agreements C. Inside The Premises and D. Outside The Premises, the **Insurer** shall not pay **Loss** resulting from:

1. **Forgery**, **Computer Fraud**, **Currency Fraud**, **Charge Card Fraud** or **Fraudulent Transfer Instructions**; or

2. destruction, disappearance or damage to **Money**, **Property** or **Securities** while in the mail or in the custody of a carrier for hire other than an armored motor vehicle company.

E. Regarding Insuring Agreements C. Inside The Premises, D. Outside The Premises, F. Computer Fraud, and G. Fraudulent Transfer Instructions, the **Insurer** shall not pay **Loss** resulting from kidnap, ransom or other extortion payment, provided that this exclusion shall not apply to **Robbery**.

F. Regarding Insuring Agreement E. Forgery or Alteration, the **Insurer** shall not pay **Loss** resulting from **Forgery** or **Alteration** of any:

1. **Financial Instrument** committed by any **Third Party** in collusion with any **Employee**; or

2. registered or coupon obligations issued or purported to have been issued by the **Insured**.

4. LIMITS OF LIABILITY & RETENTION

A. The **Insurer's** maximum liability for each single **Loss** under each elected Insuring Agreement shall not exceed the applicable Limit of Liability specified in Item 6.F of the Declarations, regardless of the number of **Insureds** sustaining such **Loss**.

B. All **Loss** resulting from a single act or any number of acts of the same **Employee** or **Third Party**, regardless of whether such act or acts occurred before or during the **Policy Period**, shall be treated as a single **Loss** and the applicable Limit of Liability of this Coverage Part shall apply, subject to Section 10. Loss Occurring Prior to the Policy Period.

C. If **Loss** is covered under more than one Insuring Agreement of this Coverage Part, the **Insurer's** maximum liability for such **Loss** under all such Insuring Agreements combined shall not exceed the largest applicable Limit of Liability of any such Insuring Agreement.

D. If there is more than one **Insured**, the maximum liability of the **Insurer** for any single **Loss** sustained by more than one **Insured** shall not exceed the amount for which the **Insurer** would have been liable if the single **Loss** had been sustained by one **Insured**.

E. The amount that the **Insurer** shall pay for any single **Loss** shall not be cumulative from the **Policy Period** to the period of any other policy.

F. The **Insurer's** liability under this Coverage Part shall apply only to that part of each **Loss** excess of the applicable Retention specified in Item 6.F of the Declarations.

5. ERISA SPONSORED PLAN COVERAGE

A. Payment of **Loss** by an **ERISA Sponsored Plan** shall be paid by the **Insurer** to such **ERISA Sponsored Plan**.

B. The Limit of Liability applicable to any single **Loss** incurred by one or more **ERISA Sponsored Plans** shall be the applicable Limit of Liability specified in Item 6.F of the Declarations provided that such amount exceeds the minimum limit of liability for each **ERISA Sponsored Plan** (the "Minimum Limit of Liability") incurring such single **Loss**.

C. Notwithstanding any other provision of this Crime Coverage Part, the Minimum Limit of Liability for each **ERISA Sponsored Plan** shall be the greater of:

1. $1,000; or

2. 10% of an **ERISA Sponsored Plan's** assets handled during such **ERISA Sponsored Plan's** preceding fiscal year,

provided that such Minimum Limit of Liability shall not exceed: (i) $500,000 for an **ERISA Sponsored Plan** that does not hold securities of any **Insured Organization** (i.e., employer securities); or (ii) $1,000,000 for an **ERISA Sponsored Plan** that holds securities of any **Insured Organization** (i.e., employer securities).

D. If a single **Loss** is incurred by more than one **ERISA Sponsored Plan**, then the Limit of Liability applicable to such **Loss** shall be the greater of:

1. the applicable Limit of Liability specified in Item 6.F of the Declarations; or

2. the sum of the Minimum Limit of Liability for each **ERISA Sponsored Plan** incurring such single **Loss**.

E. Notwithstanding any other provision of this Crime Coverage Part:

1. no Retention shall apply to **Loss** by any **ERISA Sponsored Plan**; and

2. the **Insureds** shall have one year following the termination of this Policy to provide written notice of **Loss** by an **ERISA Sponsored Plan**:

a. sustained prior to the termination of this Policy; and

b. for which **Discovery** occurs during such one year following the termination of this Policy,

provided that the right to report such **Loss** shall terminate upon the effective date of any other insurance or bond providing coverage for such **Loss** in accordance with Section 412 of **ERISA**.

F. Notwithstanding any other provision of this Crime Coverage Part, any restriction limiting coverage for **Loss** resulting from **Fraud or Dishonesty** by any partner, owner, or **Executive** of an **Insured Organization** because of their status as a partner, owner, or **Executive** of an **Insured Organization** shall not apply to **Loss** by an **ERISA Sponsored Plan** resulting from **Fraud or Dishonesty**.

6. OWNERSHIP OF PROPERTY; INTERESTS COVERED

A. Regarding all Insuring Agreements other than Insuring Agreement B. Customer Property, coverage shall apply only to **Money**, **Property** or **Securities** owned by the **Insureds**, for which the **Insureds** are legally liable, or held by the **Insureds** whether or not the **Insureds** are liable, provided that:

1. the **Insurer** shall not be liable for damage to the **Premises** unless the **Insured Organization** is the owner or is liable for such damage; and

2. regarding Insuring Agreement A. Employee Theft, no coverage shall apply for **Money**, **Property** or **Securities** of a **Customer**.

B. Regarding Insuring Agreement B. Customer Property, coverage shall apply only to **Money**, **Property** or **Securities** of a **Customer** held by an **Insured Organization** or for which an **Insured Organization** is legally liable.

7. DEFENSE COSTS COVERAGE

The **Insurer** shall pay reasonable attorneys' fees and court costs incurred in defending an **Insured Organization** or an **Insured Organization's** financial institution in any legal proceeding brought to enforce payment of a **Financial Instrument**, provided that:

A. **Loss** resulting from the **Forgery** or **Alteration** of such **Financial Instrument** is otherwise covered under Insuring Agreement E. Forgery or Alteration;

B. as a condition precedent to coverage, the **Insured Organization** shall give the **Insurer** written notice of any such proceeding as soon as is practicable, but no later than 90 days after any **Claim Manager** first becomes aware of such proceeding;

C. the **Insurer** shall not have any duty to defend such proceeding;

D. payment of any fees and costs shall be subject to the prior written consent of the **Insurer**, such consent not to be unreasonably withheld;

E. the **Insured Organization** shall give to the **Insurer** all information and cooperation as the **Insurer** may reasonably request; and

F. payment of any fees and costs by the **Insurer** shall be part of, and not in addition to, the Limit of Liability that would otherwise apply under Insuring Agreement E. Forgery or Alteration for covered **Loss**.

8. INVESTIGATION COSTS COVERAGE

The **Insurer** shall pay **Investigation Costs** incurred by an **Insured** resulting from any **Loss** covered under any Insuring Agreement other than Insuring Agreement H. Social Engineering Fraud, provided that such **Loss** exceeds the Retention applicable to such Insuring Agreement.

This coverage shall be subject to the Investigation Costs Sublimit of Liability specified in Item 6.F of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this coverage. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability of the applicable Insuring Agreement. Other than as specified above, no Retention shall apply to this coverage.

9. COMPUTER RESTORATION COSTS

The **Insurer** shall pay **Computer Restoration Costs** incurred by an **Insured** resulting from any **Loss** covered under Insuring Agreements A. Employee Theft, B. Customer Property, or F. Computer Fraud, provided that such **Loss** exceeds the Retention applicable to the relevant Insuring Agreement.

This coverage shall be subject to the Computer Restoration Costs Sublimit of Liability specified in Item 6.F of the Declarations. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this coverage. Such Sublimit of Liability shall be part of, and not in addition to, the Limits of Liability applicable to the above Insuring Agreements. Other than as specified above, no Retention shall apply to this coverage.

10. LOSS OCCURRING PRIOR TO THE POLICY PERIOD

If **Loss** occurs prior to the **Policy Period** and such **Loss** is covered under this Policy and a bond or insurance policy issued prior to the **Policy Period**, then:

A. if such bond or insurance policy is issued by any insurer other than the **Insurer** and **Discovery** of such **Loss** first occurred prior to the expiration of the time allowed for discovery under such bond or policy, this Policy shall provide excess coverage over the amount paid under such prior bond or policy or the amount that would have been paid had proper notice of such **Loss** been given under such prior bond or policy; or

B. if such bond or insurance policy is issued by the **Insurer** or any affiliate of the **Insurer**, such prior bond or policy shall terminate as of the inception of this Policy and no coverage shall be provided under such prior bond or policy.

11. CALCULATION OF LOSS

A. For **Loss** of **Securities**, the **Insurer** shall pay the lesser of either:

1. the actual market value of lost, damaged or destroyed **Securities**, but only up to and including their value at the close of business on the business day immediately preceding the **Discovery** of such **Loss**;

2. the cost of replacing **Securities**; or

3. the cost to post a Lost Securities Bond in connection with issuing duplicates of the **Securities**.

B. For **Loss** of books of account or other records, the **Insurer** shall pay the cost of blank books, pages or tapes or other blank materials to replace lost or damaged books of account or other records.

C. For **Loss** of **Property**, the **Insurer** shall pay the lesser of either:

1. the price paid by an **Insured** for the **Property**; or

2. the cost to repair or replace **Property** with that of like kind, quality and value at the time that the **Named Organization** furnishes a proof of loss pursuant to Section 12. Loss Reporting Rights and Duties.

D. For **Loss** of foreign currency, the **Insurer** shall pay the United States of America dollar equivalent of foreign currency determined by the rate of exchange published in The Wall Street Journal on the date of **Discovery** of such **Loss**.

E. For **Loss** of precious metals, the **Insurer** shall pay the United States of America dollar equivalent of precious metals determined by the cash prices published in The Wall Street Journal on the date of **Discovery** of such **Loss**.

F. An **Insured** shall not use a comparison between its inventory records and a physical count of its inventory to prove that a covered **Loss** has been sustained under this Policy. Notwithstanding the foregoing, if an **Insured** establishes wholly apart from its inventory records that it has sustained a covered **Loss** caused by an identified **Employee**, then it may offer a comparison between its inventory records and a physical count of its inventory to prove the amount of such **Loss**.

12. LOSS REPORTING RIGHTS AND DUTIES

A. Knowledge possessed by any **Insured** or **Discovery** shall be deemed knowledge possessed or **Discovery** by all **Insureds**.

B. Upon **Discovery** of **Loss**, and as a condition precedent to coverage, the **Named Organization** shall:

1. provide written notice to the **Insurer** at the earliest practicable moment, but no later than 90 days after **Discovery**, provided that, if the **Named Organization** is voluntarily liquidated or dissolved during the **Policy Period**, written notice of **Loss** occurring during the **Policy Period** shall be given no later than one year following the expiration of the **Policy Period**;

2. provide a sworn proof of **Loss** to the **Insurer** with full particulars within 120 days of **Discovery**;

3. submit to an examination under oath and provide a signed statement of answers if requested by the **Insurer**;

4. produce all pertinent records at such reasonable times and places as the **Insurer** shall request; and

5. provide full and complete cooperation in all matters pertaining to a **Loss** or claim, including the investigation and settlement thereof.

C. No **Insured** shall institute legal proceedings against the **Insurer** regarding any **Loss**:

1. more than 2 years after **Discovery**; or

2. to recover a judgment or settlement against it or its bank resulting from **Forgery** or **Alteration**, or defense costs as specified in Section 7. Defense Costs Coverage, more than 2 years after the date such judgment shall become final or settlement was entered.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CANOPY PLUS
(AON)
(CRIME)

Regarding the Crime Coverage Part, it is agreed that:

1. SOCIAL ENGINEERING FRAUD – PROPERTY, GOVERNMENT AGENCY AND REGULATORY BODY

Section 1. Insuring Agreements H. is deleted and replaced by:

H. Social Engineering Fraud

The **Insurer** shall pay **Loss** by an **Insured** of **Money, Property** or **Securities** for which **Discovery** first occurs during the **Policy Period** resulting from any **Social Engineering Fraud**.

Section 2. Definitions, AA. "Social Engineering Fraud" is deleted and replaced by:

AA. "Social Engineering Fraud" means a communication from a **Third Party** to an **Insured Organization** or **Employee** that: (i) purports to be from a customer, vendor, financial institution, business affiliate, **Employee**, or **Executive**, of such **Insured Organization**, or purports to be from a government agency or regulatory body, but is not actually from such customer, vendor, financial institution, business affiliate, **Employee**, **Executive,** government agency or regulatory body; and (ii) results in a transfer, payment or delivery of **Money, Property** or **Securities**.

2. BANKING PREMISES DEFINITION

Section 2. Definitions, B. "Banking Premises" is deleted and replaced by:

B. "Banking Premises" means the interior portion of any building occupied by a banking institution, similar safe depository, or similar institutions at which the **Insured** maintains an account to conduct its business.

3. EMPLOYEE DEFINITION – GUEST STUDENTS, PLAN OFFICER/MANAGER, TERMINATED EMPLOYEE COVERAGE, DISCOVERY UP TO 90 DAYS AFTER TERMINATION

Section 2. Definitions, K. "Employee" is deleted and replaced by:

K. "Employee" means any natural person who at the time of **Loss** is:

1. an employee of an **Insured Organization**, including any full time, part-time, seasonal, leased, loaned, or temporary employee, as well as any volunteer, intern, or guest student of an **Insured Organization** other than any volunteer acting as a fund solicitor during fund-raising activities;

2. an **Executive** not meeting the definition of 1 above while performing acts within the scope of the usual duties of an employee of an **Insured Organization**;

3. any natural person as described in 1 or 2 above, during a period of ninety (90) days after termination with the **Insured**;

4. any natural person formerly meeting the definition of 1 or 2 above while retained by, and consulting for, an **Insured Organization**;

5. a fiduciary, trustee, administrator, employee, officer, or manager of a **Sponsored Plan** or any other person required to be bonded in connection with a **Sponsored Plan** by Title 1 of **ERISA**; or

6. an **Independent Contractor**.

4. EXPANDED "FINANCIAL INSTRUMENT" DEFINITION – SUBSTITUTE CHECKS

Section 2. Definitions, M. "Financial Instrument" is deleted and replaced by:

M. **"Financial Instrument"** means any check (including a substitute check), draft, or similar order to pay a specific amount of money that is made, drawn by or drawn upon an **Insured Organization** or by anyone acting as an agent of an **Insured Organization**, or that is purported to have been so made or drawn.

5. EXCLUSION A. 10. b.

Section 3. Exclusions, A.10.b is deleted and replaced by:

b. any other valid or collectible insurance or indemnity in force; or

6. CRYPTOCURRENCY EXCLUSION

"Cryptocurrency" means a digital or electronic medium of exchange, operating independently of a central bank, in which encryption techniques are used to regulate the generation of units and to verify the transfer of such units.

Section 2. Definitions, U. "Money", W. "Property" and Z "Securities" are each amended to exclude **Cryptocurrency**.

7. FORGERY OR ALTERATION – PERSONAL ACCOUNT EXTENSION

Personal Account Extension

A. The **Insurer** shall pay **Loss** by an **Insured** for which **Discovery** first occurs during the **Policy Period** resulting from any **Third Party** committing any **Forgery** or **Alteration** of a **Personal Instrument** from a **Personal Account**.

B. Regarding the above Personal Account Extension:

1. Section 2. Definitions R. "Insureds" is amended to read:

   "Insureds" means the chief executive officer, chief financial officer and general counsel of the **Named Organization**.

2. **"Personal Account"** means any personal financial account in a banking or brokerage institution owned by an **Insured**.

3. **"Personal Instrument"** means checks, drafts, or similar orders to pay a specific amount of money that are made, drawn by or drawn upon a **Personal Account**.

4. The **Insurer's** maximum aggregate liability for all **Loss** under this coverage extension shall be $50,000 for each **Insured.**

8. **TELEPHONE FRAUD COVERAGE**

Telephone Fraud Coverage

A. The **Insurer** shall pay **Loss** by an **Insured** for which **Discovery** first occurs during the **Policy Period** resulting from any **Third Party** committing any **Telephone Toll Fraud.**

B. Regarding the above Telephone Fraud Coverage:

1. **"Telephone Toll Fraud"** means toll and line charges the **Insured** is responsible for solely as a result of the fraudulent infiltration and manipulation of a **Telephone System** from a remote location to gain access to outbound long-distance telephone service. **Telephone Toll Fraud** excludes **Loss** (i) caused by any use of a **Calling Card** or (ii) that portion of loss sustained beginning thirty (30) days from the billing cut-off date shown in the first telephone service charge bill from the telephone carrier in which **Telephone Toll Fraud** is documented.

2. **"Telephone System"** means PBX, CBX, Merlin, VoIP, remote access (including DISA), and all related peripheral equipment or similar systems owned or leased by the **Insured** for purposes of voice-based telecommunications.

3. **"Calling Card"** means a calling card access number or telephone credit card access number issued by a telecommunications company which gives the **Calling Card** customer access to and use of telecommunications services.

4. The **Insurer's** maximum aggregate liability for all **Loss** under this coverage extension shall be $250,000. Such Sublimit of Liability shall be the maximum aggregate amount that the **Insurer** shall pay under this **Coverage Part** for all **Telephone Toll Fraud** combined. Such Sublimit of Liability shall be part of, and not in addition to, the Limit of Liability applicable to this **Coverage Part**.

9. **BLANKET LOSS PAYEE**

It is agreed that any **Loss** sustained by a **Customer** that is covered under this Coverage Part shall be payable by the **Insurer** to the **Insured Organization** and such **Customer** as joint payees as their interests may appear at the time of such **Loss**.

10. **OTHER INSURANCE – PRIMARY SOCIAL ENGINEERING FRAUD**

General Provisions, Section 13. Other Insurance, is amended to add:

If **Loss** is covered under Insuring Agreement H. Social Engineering Fraud and any other insurance, the coverage provided under Insuring Agreement H. Social Engineering Fraud shall be primary.

All other terms and conditions of this Policy remain unchanged.

Issued By: Arch Insurance Company

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ILLINOIS AMENDATORY ENDORSEMENT

It is agreed that:

A. The General Provisions are amended as follows:

1. Section 2. Definitions, I. **Defense Costs** is amended to add:

Defense Costs also exclude any compensation, benefit expenses, or overhead of the **Insurer**.

2. Any definition or use of the terms "spouse", "family", "married", "immediate family", "dependent" or any other descriptive of spousal relationships anywhere in this Policy shall be amended to include a civil union.

3. Section 5. Extended Reporting Period is deleted and replaced by:

Regarding the Liability Coverage Parts only:

A. If the **Named Organization** or the **Insurer** shall cancel or refuse to renew this Policy for any reason, the **Insureds** shall be entitled to a free "Automatic Extended Reporting Period". This period shall start with the effective date of nonrenewal or cancellation and remain in effect for 30 days.

B. If the **Named Organization** or the **Insurer** shall cancel or refuse to renew this Policy for any reason, the **Named Organization** shall have the right to purchase an "Optional Extended Reporting Period". If purchased, the Optional Extended Reporting Period shall start when the Automatic Extended Reporting Period ends and remain in effect for one year. The additional premium for the Optional Extended Reporting Period shall be 200% of this Policy's annual premium as determined by the rates in effect on the later of the date when the Policy was issued or last renewed. The **Insurer** shall provide the **Named Organization** with written notice of the availability of, the premium for, and the importance of purchasing Optional Extended Reporting Period coverage. The right to purchase an Optional Extended Reporting Period shall terminate unless a written notice of election together with the additional premium due is received by the **Insurer** within 30 days after the effective date of nonrenewal or cancellation. The Optional Extended Reporting Period shall not become effective until all premiums for this Policy has been paid in full. The additional premium for the Optional Extended Reporting Period shall be fully earned at the inception of the Optional Extended Reporting Period. The Optional Extended Reporting Period shall not be cancelable except for nonpayment of premium.

C. Each Extended Reporting Period shall apply to any **Claim**, other than an **Inquiry**, first made during such Extended Reporting Period that is: (i) for a **Wrongful Act** occurring prior to the end of the Policy **Period**; and (ii) reported to the **Insurer** during such Extended Reporting Period.

D. Each Extended Reporting Period shall apply on an excess basis to **Claims** that are covered under any other insurance available to the **Named Organization**.

E. There is no separate limit of liability for any Extended Reporting Period.

4. Section 13. Other Insurance is deleted and replaced by:

If **Loss** is insured under any other insurance, the **Insurer** shall not be liable under this Policy for a greater proportion of such **Loss** than the applicable limit of liability stated in the Declarations bears to the total applicable limits of liability of all valid and collectible insurance insuring such **Loss**.

5. Section 23. Cancellation, A. is deleted and replaced by:

If this Policy has been in effect less than 60 days, the **Insurer** may cancel this Policy for any reason.

If this Policy has been in effect for 60 days or more, the **Insurer** may cancel this Policy only for one of the following reasons:

1. nonpayment of premium;

2. obtaining of this Policy through a material misrepresentation;

3. violation of any of the terms and conditions of this Policy;

4. the risk originally accepted has measurably increased;

5. certification to the Director of the Department of Insurance of the loss of reinsurance by the Insurer which provided coverage to the Insurer for all or a substantial part of the underlying risk insured; or

6. determination by the Director of the Department of Insurance that the continuance of the Policy could place the Insurer in violation of the insurance laws of Illinois.

The **Insurer** shall mail written notice of cancellation to the **Named Organization** and the **Named Organization's** agent or broker of record at the last address known to the **Insurer** and any mortgagee or lienholder, if known. If this Policy has been in effect 60 days or less, notice of cancellation shall be provided at least 30 days before the effective date of cancellation except that cancellation for nonpayment of premium shall be provided at least 10 days before the effective date of cancellation. If this Policy has been in effect for 61 days or more, notice of cancellation shall be provided at least 60 days before the effective date of cancellation except that cancellation for nonpayment of premium shall be provided at least 10 days before the effective date of cancellation. The notice of cancellation shall state the reason or reasons for cancellation. The mailing of such notice shall be sufficient and the effective date of cancellation shall become the end of the Policy Period. The **Insurer** shall maintain proof of mailing on a recognized U.S. Post Office form or a form acceptable to the U.S. Post Office or other commercial mail delivery service.

6. The following is added:

NONRENEWAL

If the **Insurer** decides not to renew this Policy, the **Insurer** shall mail written notice of nonrenewal to the **Named Organization** at the last address known to the **Insurer** and the agent or broker of record and any mortgagee or lienholder, if known. The **Insurer** shall mail such notice at least 60 days before the end of the **Policy Period**. The notice shall state the reason or reasons for nonrenewal. The mailing of such notice shall be sufficient and the **Insurer** shall maintain proof of mailing on a recognized U.S. Post Office form or a form acceptable to the U.S. Post Office or other commercial mail delivery service.

B. The Directors, Officers, & Organization Liability Coverage Part, Section 4. Exclusions is amended as follows:

1. A.4 is amended to include the following:

Provided further that this exclusion shall not apply to damage caused by heat, smoke or fumes from a hostile fire.

2. B.4 is deleted and replaced by:

4. for, based upon, arising from, or in any way related to any defamation or disparagement, invasion of privacy, wrongful entry or eviction, false arrest or imprisonment, malicious prosecution, abuse of process, assault or battery (other than assault or battery involving use of reasonable force to protect persons or property in accordance with Illinois law) or loss of consortium, provided that this exclusion shall not apply to **Loss** resulting from a **Securities Wrongful Act**.

3. Section 2. Definitions, S. "Loss" is amended as follows:

a. Regarding any **Claim** governed by Illinois law and notwithstanding any other provision of this Policy, **Loss** shall:

1. exclude punitive or exemplary damages awarded against any **Insured** for such **Insured's** own **Wrongful Act**; and

2. include punitive or exemplary damages awarded against an **Insured** on a vicarious liability basis.

b. Any reference to "pre- and post-judgment interest" is removed.

C. The Employment Practices Liability Coverage Part Section 2. Definitions, H. "Loss" is amended as follows:

a. Regarding any **Claim** governed by Illinois law and notwithstanding any other provision of this Policy, **Loss** shall:

1. exclude punitive or exemplary damages awarded against any **Insured** for such **Insured's** own **Wrongful Act**; and

2. include punitive or exemplary damages awarded against an **Insured** on a vicarious liability basis.

b. Any reference to "pre- and post-judgment interest" is removed.

D. The Fiduciary Liability Coverage Part Section 2. Definitions, H. "Loss" is amended as follows:

a. Regarding any **Claim** governed by Illinois law and notwithstanding any other provision of this Policy, **Loss** shall:

1. exclude punitive or exemplary damages awarded against any **Insured** for such **Insured's** own **Wrongful Act**; and

2. include punitive or exemplary damages awarded against an **Insured** on a vicarious liability basis.

b. Any reference to "pre- and post-judgment interest" is removed.

c. 2.b. is deleted and replaced by:

b. costs incurred in cleaning up, removing, containing, treating, detoxifying, neutralizing, assessing the effects of, testing for, or monitoring hazardous materials, **Pollutants**, or product defects, unless such costs are incurred in connection with damage caused by heat, smoke or fumes from a hostile fire.

E. The Kidnap & Ransom Coverage Part is amended as follows:

Any definition or use of the terms "spouse", "family", "married", "immediate family", "dependent" or any other descriptive of spousal relationships anywhere in this Policy shall be amended to include a civil union.

F. The Network Security, Privacy, & Media Liability Coverage Part is amended as follows:

1. Section 2. Definition, P. "Media Loss" is amended as follows:

a. Regarding any **Claim** governed by Illinois law and notwithstanding any other provision of this Policy, **Media Loss** shall:

1. exclude punitive or exemplary damages awarded against any **Insured** for such **Insured's** own **Wrongful Act**; and

2. include punitive or exemplary damages awarded against an **Insured** on a vicarious liability basis.

b. Any reference to "pre- and post-judgment interest" is removed.

2. Section 2. Definitions, T "Network Loss" is amended as follows:

a. Regarding any **Claim** governed by Illinois law and notwithstanding any other provision of this Policy, **Network Loss** shall:

1. exclude punitive or exemplary damages awarded against any **Insured** for such **Insured's** own **Wrongful Act**; and

2. include punitive or exemplary damages awarded against an **Insured** on a vicarious liability basis.

b. Any reference to "pre- and post-judgment interest" is removed.

3. Section 3. Exclusions, A.4.is amended to include the following:

Provided further that this exclusion shall not apply to damage caused by heat, smoke or fumes from a hostile fire.

All other terms and conditions of this Policy remain unchanged.

Endorsement Number:

Policy Number: PCD1003118-04

Named Insured: Weaver Holdings, LLC

This endorsement is effective on the inception date of this Policy unless otherwise stated herein:

Endorsement Effective Date: December 31, 2025

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully**.

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – http://www.treas.gov/ofac.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

TERRORISM COVERAGE DISCLOSURE NOTICE

TERRORISM COVERAGE PROVIDED UNDER THIS POLICY

The Terrorism Risk Insurance Act of 2002 as amended and extended by the subsequent Terrorism Risk Insurance Program Reauthorization Acts (collectively referred to as the "Act") established a program within the Department of the Treasury, under which the federal government shares, with the insurance industry, the risk of loss from future terrorist attacks. An act of terrorism is defined as any act certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security and the Attorney General of the United States, to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of an air carrier or vessel or the premises of a United States Mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

In accordance with the Act, we are required to offer you coverage for losses resulting from an act of terrorism **that is certified under the federal program** as an act of terrorism. The policy's other provisions will still apply to such an act. Your decision is needed on this question: do you choose to pay the premium for terrorism coverage stated in this offer of coverage, or do you reject the offer of coverage and not pay the premium? You may accept or reject this offer.

If your policy provides commercial property coverage, in certain states, statutes or regulations may require coverage for fire following an act of terrorism. In those states, if terrorism results in fire, we will pay for the loss or damage caused by that fire, subject to all applicable policy provisions including the Limit of Insurance on the affected property. Such coverage for fire applies only to direct loss or damage by fire to Covered Property. Therefore, for example, the coverage does not apply to insurance provided under Business Income and/or Extra Expense coverage forms or endorsements that apply to those coverage forms, or to Legal Liability coverage forms or Leasehold Interest coverage forms.

Your premium will include the additional premium for terrorism as stated in the section of this Notice titled DISCLOSURE OF PREMIUM.

DISCLOSURE OF FEDERAL PARTICIPATION IN PAYMENT OF TERRORISM LOSSES

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. **The federal share equals 80% in years 2020 through 2027 of that portion of the amount of such insured losses that exceeds the applicable insurer deductible during Calendar Year 2020 and each Calendar Year thereafter through 2027.**

DISCLOSURE OF CAP ON ANNUAL LIABILITY

If the aggregate insured terrorism losses of all insurers exceed $100,000,000,000 during any Calendar Year provided in the Act, the Secretary of the Treasury shall not make any payments for any portion of the amount of such losses that exceed $100,000,000,000, and if we have met our insurer deductible, we shall not be liable for the payment of any portion of such losses that exceeds $100,000,000,000.

DISCLOSURE OF PREMIUM

Your premium for terrorism coverage is: $0.00
(This charge/amount is applied to obtain the final premium.)
You may choose to reject the offer by signing the statement below and returning it to us. Your policy will be changed to exclude the described coverage. If you chose to accept this offer, this form does not have to be returned.

REJECTION STATEMENT

I hereby decline to purchase coverage for certified acts of terrorism. I understand that an exclusion of certain terrorism losses will be made part of this policy.

______________________	Weaver Holdings, LLC
Policyholder/Legal Representative/Applicant's Signature	Named Insured
______________________	Arch Insurance Company
Print Name of Policyholder/Legal Representative /Applicant	Insurance Company
Date: 12/31/2025	Policy Number: PCD1003118-04